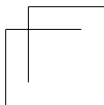
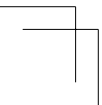
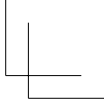
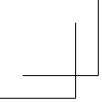




涉外法律文书

格式汇编

广州市律师协会涉外法律业务专业委员会 编



前言

为了能够向国内外客户提供更贴心、更高效的法律服务，从事涉外法律实务的律师除应具备扎实的中外法律功底和良好的中英文语言功底外，还需熟悉英汉两种法律的语言文体特点、写作规范及其在当下的发展趋势。此外，还需掌握基本的汉英翻译转换技巧，并进行大量实践和必要的总结和研究。

我这里主要想谈谈法律英语的一些基本特点，希望能或多或少帮助读者克服畏难心理。

法律英语作为英语语言的一个变体是在几百年法律实践过程中逐渐形成的，在遣词造句和谋篇布局方面庄重正式，语意清晰准确，具有较强的程式化、专业化特点。具体而言，在法律英语文书中要注意法律英语的以下特点^①：

1. 很多日常词汇在法律语境下具有特定的法律意思：例如action（诉讼）、consideration（对价）、execute（签署）、serve（送达）、estate（单独使用时经常表示“遗产”而非“房产”）、prayer（诉讼要求）等，这些词汇经常构成理解和表达陷阱，需在学习和写作中加以注意；

2. 大量使用正式程度较高的表达式：例如用prior to代替before，as per或in accordance with代替according to，following或subsequent to代替after，用pertaining to、relating to、concerning、with regard to、in respect of代替about；deem代替consider，construe代替understand或interpret；

3. 大量使用hereby、therefrom、whereas等古英语词汇；

4. 大量使用fee simple、letters patent、servitude等源于法语的正式词汇，有时也会使用ex post facto、res ipsa loquitur等拉丁语词汇；

5. 大量使用法律术语和行话；

6. 经常使用rights and interests、terms and conditions、customs fees and duties、null and void等近义词堆砌手法；

① 关于法律英语用词用句特点的文章和图书已有很多，大家可自行参看知网上的文章。



7. 大量使用subject to ... (以……为准), It is hereby certified that (兹证明……) 等套话

8. 大量使用带有插入语、修饰语、定语从句等修饰语的冗长句式。

当然,我们也注意到在美国、英国、澳大利亚、香港等普通法系地区中已经开展了四五十年的平易语言运动(Plain English Movement)的影响,并主张在我们书写的法律英语文书中尽量采用符合当代趋势的简洁明了的文风。

我们阐述法律英语的上述特点的主要目的是为了更好地了解英美法律认识书写的判决书与合同。因为过去的海量契约合同等文件毕竟大多采用的是传统法律英语,要想读懂这些文件就必须掌握法律英语的这些特点。此外,尽管英美很多律所和律师采用了平易英语,在跟新加坡、香港等习惯于使用保守英语文风的国家和地区的律师以及英美等部分传统律所之间进行法律文书交流时,有时也需要使用传统文风。

法律英语上述程式化、套语化、固定化的特点同时也表明,法律英语具有较强的可模仿性、较高的可学性。作为终身坚持学习、持续进步的一族,广大律师只要不畏艰难,一定能够熟练掌握这些法律英语习惯用语、程式套话和用句习惯,并最终创作出文风严谨的高质量法律英语文书。

学好法律英语和写作的一条行之有效的方法就是研读优秀范本,而这正是广州市律协组织编辑本合同范本的初衷之一。大家还可以参考一些优秀的专业数据库^①、律协网站^②、香港证券交易所^③披露的上市公司交易文件等平台上的优秀法律英语文书。

作为当代的涉外律师,还需熟悉并满足法律英语文书的以下写作原则:

① 例如Lexis Nexis、Elsevier Science、Westlaw、CCH、真实交易文件网(www.realdealdocs.com)等。

② 例如美国加州律协网站上面有海量的真实发生的各类免费英文合同www.onecle.com。

③ 在港交所上市的公司都在该平台用中英文双语披露所有相关文件,包括但不限于招股章程、年报、季报、交易合同、通函等等,在其中能够找到很多质量可靠的双语合同协议。网址:www.hkex.com.hk; 创业板文件查询网址: https://sc.hkex.com.hk/gb/www.hkgem.com/company/tc_default.htm。

1. 庄重性：尽量使用较正式的、通用的法律英语词汇、术语和表达式进行写作；

2. 精准性：在写作中要注意法律英语介词、名词单复数、动词的时态和语态等各类语法现象的准确表达；

3. 清晰性：注意准确使用英语逗号，注意区分并准确使用shall与may等具有法律意义的情态动词，注意各类修饰语与被修饰语之间的位置和距离等。

4. 一致性：同一个法律概念、标的、程序、当事人等应确保使用同一个词语或术语进行表达，而且要确保整部文件前后表达一致，以避免造成不必要的纠纷；

5. 专业性：注意区分我国法律术语尽量使用英美律师熟悉的专业术语进行表达，避免使用生造的法律英语术语。

此外，涉外律师还应具备一定的翻译技能，例如增词法、减词法、词类转换法、引申翻译法、拆译法、合译法、顺译法、重组法等，具体参见有关翻译教材即可。

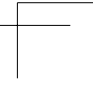
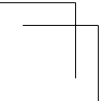
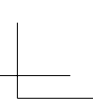
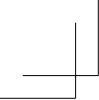
感谢编者 of 涉外律师们收集了一些典型的涉外法律文书格式，汇编成书，供大家学习和研究，共同进步。

张新红

广东外语外贸大学

国际商务英语学院法律英语系

2019年11月16日



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Employment Contract Template 2

专题一





Engagement Letter

[Date]

【日期】

By Email

通过电子邮件方式发送

To:

Attn :

致:

地址:

收件人:

Dear Sir or Madam,

敬启者,

Re: Engagement Letter for Contract Review

关于：合同审查聘书

Thank you very much for giving us the opportunity to provide contract review legal services to [] (hereinafter referred to as the “Company” or “You”) in respect of a contract to be entered into by and between the Company and a Mexico company. The purpose of this letter (“Engagement Letter”) is to confirm that [] Law Firm (“We”) have been engaged by the Company to provide contract review legal services in respect of the aforesaid contract (the “Project”).

非常感谢贵司给予我们就【 】有限公司（以下称“公司”）将与一墨西哥公司签订的合同提供合同审查法律事务的宝贵机会。本聘书（“聘书”）兹确认【 】律师事务所（“我们”）接受公司的委托，就前述合同提供合同审查法律服务（“本项目”）。

As you may know, [] is a PRC full-service law firm with recognized legal services in the fields of foreign direct investment, securities, M&A, general corporate, litigation and arbitration, IPO, banking and finance, labor and employment, international trade, tax, bankruptcy and restructuring, competition, etc.

如您所知，我们是一家提供全方位法律服务的中国律师事务所，在外商直接投资、证券、兼并收购、一般公司事务、诉讼仲裁、企业上市、银行金融、劳动就业、国际贸易、税务、破产重组、竞争等领域业绩卓著。

1. Scope of Work

1. 工作范围

By this engagement letter, we are appointed by the Company as its legal advisor to provide contract review legal services in respect of the Contract.

通过本聘书，我们接受公司的委托，担任其项目律师，就合同提供合同审查法律服务。

2. Team

2. 服务团队

The members of our team providing the aforesaid services mainly include []. [] will be the partner responsible for the Project and will coordinate and supervise our team to deliver our legal services to the Company. We may delegate certain works to some other colleagues, depending on the nature of works and merit of issues.

为更好提供上述法律服务，我们拟派出由【 】律师组成律师团队。【 】律师将作为本项目的牵头合伙人，协调和监督律师团队向公司提供服务。我们可能根据项目具体事项的不同要求，将某些工作交由其他律师完成。



3. Fee Structure

3. 收费模式

We seek to provide the best professional services in the most cost effective manner and usually charge on an hourly rates basis.

我们力求以最高效的方式提供最专业的法律服务，我们的服务通常是以小时费率为基础计费的。

We set out the current hourly rates of the team members for your reference as below:

以下为律师团队成员目前的小时费率：

Name 律师团队成员	Standard Hourly Rate (RMB/Hour) 标准小时费率（人民币/小时）
[] 【 】	

These rates may be adjusted annually subject to each attorney's annual review. When there is any change on the standard hourly rates of the team members serving the Company, We shall forthwith send a written notice to inform the Company, otherwise, the Company is entitled to pay the bill in accordance with the original hourly rates.

上述费率会根据每位律师的年度评价而有所调整。如律师团队成员的标准小时费率有任何变动，我们应当立即向公司出具书面通知，否则，公司应该按照原小时费率支付律师费。

4. Disbursements and Tax

4. 工作费用及税收

We will also include on our statement separate charges for expenses such as telephone call charges, messengers, travel expenses, photocopies, faxes, filing fees, other similar expenses incurred by us and VAT on the legal fees (6%) to be paid to Chinese tax authority.

对于我们因从事与本聘书约定服务事项而发生的电话、快递、差旅、复印、

传真、备案等类似费用，公司应当连同法律服务费的增值税款（6%）一并支付。

5. Billing Arrangements

5. 费用支付安排

We will bill the Company on a monthly basis. The fees, charges and expenses billed therein are payable within thirty (30) days after receipt. If the bills remain unpaid for 30 days after receipt, we are entitled not to proceed with further work until arrangements satisfactory to us have been made for payment of outstanding statements and the payment of future fees and expenses.

我们将按月向公司发出账单；请公司在收到账单的三十天内付清相关的律师费和工作费用。如在发出账单的三十天后仍未收到款项，我们将有权停止提供进一步的法律服务，直至就未付的款项以及将来费用的支付等事宜作出令我们满意的安排。

If the Company has any questions about our statements or the work for which the Company is billed, we ask the Company to call them to our attention within fifteen (15) days after the bill issuing date, otherwise it would be deemed as that the Company has accepted the statement of work.

如公司对我们的账单或账单的工作小时有任何疑问，请公司在账单出具之日起十五天内向我们提出，否则，即视为公司已接受该账单。

6. Company Feedback

6. 公司反馈

We always aim to provide our services with the highest standard. Accordingly, we encourage the Company to contact us promptly for any concerns or questions regarding either our services or fees.

我们力求为公司提供最高标准的法律服务。同时，欢迎公司就任何关于服务或收费的问题及时与我们联系。

We are delighted to have this opportunity to work with you. Please sign and return this



engagement letter to us if it is acceptable.

我们很高兴能有机会与公司一起工作。如公司接受本聘书，请安排签署并回寄给我们。

If you have any queries regarding this letter, please do not hesitate to contact us.

如您对本聘书有任何疑问，请随时与我们联系。

Yours sincerely,

谨上，

By:

Title: Partner

For and on behalf of [] Law Firm

Date:

授权代表：

职务：

律师事务所

日期：

Accepted and confirmed by:

接受并确认：

By:

Title:

For and on behalf of

Date:

授权代表：

职务：

有限公司

日期：

Contract for Retaining of Annual Legal Counsel

Contract Number:[]

This Contract on retaining of Legal Counsel (the “Contract”) is made and effective on_____, 2019 BETWEEN_____(“Party A”), a corporation duly organized and existing under the laws of the People’s Republic of China with its registered office located at. The person designated by Party B to contact Party A is:_____Passport No.:_____Tel.:_____or Email:_____Standby Person to contact is:_____Passport No.:_____Tel.:_____or Email:_____AND _____ Law Firm(“Party B”), a law firm duly organized and existing under the laws of the People’s Republic of China with its registered office located at _____ Tel: _____ Fax:_____

Pursuant to the stipulation of Article 29 of the Lawyer Law of the People’s Republic of China and for the purpose of retainer of the lawyers of Party B (“Legal Counsel”), both parties agree to enter into and be subject to the following provisions:

1. Party A hereby is willing to retain the lawyers of Party B to be its Annual Legal Counsel to satisfy its business needs. Party B hereby decides to accept the request of retaining from Party A. In consideration of mutual covenants and agreements, Party B appoints the following lawyers to be the Legal Counsel of Party A:

Ms/Mr. _____, a Certified Lawyer, permitted to practice law by the Justice Bureau of Guangdong Province.

1.1 Should the said Legal Counsel fail to perform the duties contained herein,, Party B shall designate another competent lawyer to perform the duties.

1.2 Should the lawyer appointed by Party B be deemed incompetent as Legal Counsel by Party A, Party A shall have the right to request Party B for appointment of another lawyer.

2. The said Legal Counsel shall, at the request of Party A at any time of the effective



period of this Contract, provide the following legal services to Party A under the jurisdiction of the People's Republic of China domestically and internationally:

2.1 To provide oral or/and written legal advice on legal issues concerning the business of Party A;

2.2 To review, revise or/and draft legal documents for the interests and benefits of Party A. Legal documents include, but not limited to, agreements, contracts, internal decisions, management rules, formal letters, applications or reports to Party A's buyers, suppliers and governmental agencies;

2.3 To design or revise systematically, according to the laws and regulations of China promulgated in national level and provincial levels, policies and rules of employment management, procurement and sales management, products and equipment import and export management, financial and accounting management, operations management, product after-sale-service and product liability management, intellectual property protection including copyrights, patent, know-how, business secrets, trademarks, business names, domain names, etc;

2.4 To initiate a legal action(s) or response to a legal action(s) in China's legal framework, including administrative, arbitral and judicial procedures, attend disputes mediation, arbitration and litigation, and enforce final or effective decisions, arbitral awards, judicial rulings and judgments;

2.5 To protect the lawful rights and interests of the legal representative and employees of Party A in China;

2.6 To conduct basic legal knowledge training and education on its employees at reasonable intervals per the request of Party A in order to increase legal awareness of its employees in their daily business activities;

2.7 To participate in the business activities, such as financing, investment, leasing, assignment of assets and shares and reformation, invitation for public bidding, opening of bid and witnesses as Party A's representative or legal counsel;

2.8 To issue lawyer's letters to transaction parties, governmental agencies or other organizations to protect Party A's rights, interests and benefits;

- 2.9** To undertake specific investigations and provide the investigation reports to Party A;
- 2.10** To carry out various registration procedures in China for and on behalf of Party A;
- 2.11** To handle other legal affairs entrusted by Party A.
- 3.** The lawyer appointed by Party B to be the Legal Counsel for Party A shall carry out the duties and protect the lawful rights and interests of Party A with professional skill and diligence.
- 4.** Pursuant to the Charging Standard of Practicing Lawyer of Guangdong Province, it has been agreed that Party A shall pay in a lump sum to Party B Annual Fee at the amount of RMB ¥ _____ Yuan for legal services covered in Article 2 (excluding Articles _____) of this Contract within three(3) days from the date on which this Contract comes into force.
- 5.** The bank details of Party B to receive the above payment are as follows:
- 6.** Within the validity term of this contract, where a lawyer is needed when Party A is involved in lawsuit(s) such as litigation, mediation and arbitration, the lawyers of Party B shall be preferred by Party A as attorney-in-fact, and a separate contract shall be signed by both parties for the said purpose.
- 7.** The Legal Counsel shall work in the following way:
- 7.1** Irregularly, the Legal Counsel shall work within or out of the office of Party A at any time at Party A's request. When the Legal Counsel's service is needed by Party A, except for a case of emergency one day advance notice shall be given to the Legal Counsel by Party A through telephone, fax or email.
- 7.2** Legal Counsel shall finish their paper work for Party A mainly in Chinese or English.
- 8.** Party A shall provide the Legal Counsel with relevant materials and documents for the latter to perform his duties, and ensure the credibility and integrality of the aforesaid materials and documents, otherwise Party A shall be held responsible for all consequences caused thereby.
- 9.** The Legal Counsel shall keep in strict confidentiality Party A's proprietary trade



secrets, document and materials and other legal information obtained and/or available to him during his execution of job duties.

10. Party A shall facilitate the Legal Counsel with all conditions and convenience necessary for the latter to fulfill his task. The travel expenses, accommodation fees and eviction allowance in case of the Legal Counsel's business trip to cities other than Guangzhou needed and/or requested by Party A shall be borne by Party A.

11. The term of this contract shall cover one year, commencing from _____ to _____. Provided Party A deems it necessary to renew retainer of the Legal Counsel within one month before expiration of this contract, both parties shall have another agreement.

12. Where Party A breaches the contract and cancels the contract without justifications, the fees paid by _____ Party A will not be refunded, where Party B fails to carry out the contract without justifications, all the fees paid by Party A will be fully refunded to Party A.

13. This Contract is governed by the laws of the People's Republic of China. All disputes arising from this Contract shall be settled through friendly consultations. In case no settlement can be reached, the case in dispute shall then be submitted to Guangzhou Arbitration Committee accordance with its then prevailing procedures and rules. The award made by the said Commission shall be final and binding upon both parties hereto. The losing party shall bear all the arbitration fees.

14. This Contract has been executed in three originals with each party holding one copy of equal authenticity. This Contract becomes immediately effective signature/seal by both parties.

Party A:

Party B:

Authorized Signature:

Authorized Signature:

Seal:

Seal:

专题二





ARTICLES OF ASSOCIATION

OF

XXX

Date

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ARTICLES OF ASSOCIATION OF XXX

CHAPTER I GENERAL PROVISIONS

ARTICLE 1 NAME AND ADDRESS OF THE JOINT VENTURE COMPANY

These Articles of Association are formulated by AAA and BBB in accordance with the “Law of the People's Republic of China on Sino-Foreign Equity Joint Venture”, the implementing regulations issued thereunder and the relevant laws and regulations, for the establishment of a Sino-foreign joint venture company in....., the People's Republic of China (“PRC”).

The English name of the Joint Venture Company shall be XXX. The Chinese name of the Joint Venture Company shall be XXX (hereinafter referred to as the “Company”).

The legal address of the Company shall be:.....

ARTICLE 2 INFORMATION OF INVESTORS

The investors of the Company are:

Party A : _____, _____

Party B : _____, _____



Party C : _____, _____

The parties may be hereinafter referred to individually as “Party” and collectively as “the Parties”.

ARTICLE 3 LEGAL REPRESENTATIVE

The Chairman of the Board shall be the legal representative of the Company.

ARTICLE 4 FORM OF ORGANISATION

The Company shall be a limited liability company. The liability of each Party shall be limited to its contributions to the registered capital as set forth in Chapter III of these Articles of Association, including each Party’s stake in any subsequent capital increases decided by the Board of Directors.

The Company shall be a legal person under the laws of the PRC. The activities of the Company shall be governed and protected by the published and publicly available laws, decrees and relevant rules and regulations of the PRC.

CHAPTER II PURPOSE – BUSINESS SCOPE AND ACTIVITIES OF THE COMPANY

ARTICLE 5 PURPOSE OF THE COMPANY

The purpose of the Company is to

ARTICLE 6 BUSINESS SCOPE

The business scope of the Company shall be

ARTICLE 7 ACTIVITIES OF THE COMPANY

The Company shall carry out its activities in accordance the stipulations of the joint venture contract executed by the Parties and as determined by its Board of Directors.

CHAPTER III TOTAL INVESTMENT & REGISTERED CAPITAL

ARTICLE 8 TOTAL INVESTMENT

The planned total amount of investment of the Company is

ARTICLE 9 REGISTERED CAPITAL

The registered capital of the Company is ..., which shall be contributed and shared between the Parties according to the following proportion:

- (a) Party A's contribution shall represent ...;
- (b) Party B's contribution shall represent ...;
- (c) Party C's contribution shall represent

ARTICLE 10 PAYMENT OF THE REGISTERED CAPITAL

The Parties shall make their capital contributions simultaneously within [] years after the date of issuance of the business license of the Company.

ARTICLE 11 CHANGE IN THE REGISTERED CAPITAL

11.1 The Company may increase its registered capital subject to the terms and



conditions of the Articles of Association, and provided that The Parties shall have the right to subscribe and contribute to a registered capital increase in proportion to their respective Equity Interest in the Company's registered capital, except otherwise agreed upon between the Parties.

Should a Party fail to comply with its financing obligation duly approved by the Board by unanimous decision, the other Party shall be entitled to provide the failing Party's contribution to such additional financing and, in the case of a capital increase, the share of the failing Party in the registered capital of the Company shall be diluted accordingly.

11.2 The Company may reduce its registered capital in accordance with applicable laws and subject to the terms and conditions of the Articles of Association, and provided that ...

ARTICLE 12 TRANSFER OF EQUITY INTEREST

Any transfer by a Party of all or any part of its interest in the registered capital shall be carried out only in accordance with applicable laws and regulations, and shall be subject to the unanimous decision of the Board of the Directors.

CHAPTER IV BOARD OF DIRECTORS

ARTICLE 13 FORMATION OF THE BOARD

The Board of Directors of the Company (the "Board of Directors" or the "Board") shall consist of five (5) Directors: [] appointed by Party A, [] appointed by Party B and [] appointed by Party C. The Chairman of the Board shall be appointed by Party [], and the Vice Chairman of the Board shall be appointed by Party [].

All Directors shall have a term of office of [] years and they may remain in office if continuously appointed by their relevant appointing Party. If for any reason there is a vacancy on the Board of Directors, a substitute Director shall be appointed by the Party by whom the vacant Director was originally appointed. A Director may only be removed or replaced by the Party that appointed him. Appointment or removal of any Director (including the Chairman) shall be done by written notification of the appointing Party to the Company and the other Party stating the name and, in the case of an appointment, the personal history of the candidate.

ARTICLE 14 BOARD MEETINGS

The Board of Directors shall hold at least [] ordinary meetings each year convened at the request of the Chairman. Extraordinary meetings of the Board of Directors shall be held whenever the Chairman deems such a meeting necessary or appropriate or whenever two or more Directors so request in writing.

ARTICLE 15 QUORUM AND PROXY

A minimum of [] Directors present or represented by proxy shall constitute a mandatory quorum for any Board meeting.

If a quorum is not attained within [] hours from the time of the holding of a meeting, the Chairman of the Board (in his absence inability, the Vice-Chairman) shall, within [] days, convene a new meeting which shall be held within [] days from the date on which such convening notice will be sent. Upon such reconvened meeting, the same quorum of [] Directors present or represented by proxy will constitute a valid meeting of the Board.

A Director who is unable to attend the Board meeting can appoint another Director appointed by the same Party, in writing, by any means including but not limited to letter and fax, to act as proxy. A single Director may represent one or more Directors at a Board meeting, provided that such Directors were appointed by the same Party.



ARTICLE 16 BOARD DECISIONS

The Board of Directors is the authority of the Company enjoying the highest power. It decides on major issues of the Company. Each Director present or represented at a Board meeting shall have one equal vote.

Subject to the provisions of the Articles of Association, decisions of the Board of Directors shall be made by a [] vote of those present or represented by a person holding a proxy at a meeting.

The decision to subscribe or acquire shares or equity interest in any other company shall be made by a [] vote of the Directors present or represented by a person holding a proxy at a meeting.

ARTICLE 17 RESERVED MATTER

The following decisions (each a “Reserved Matter”) may only be decided by the unanimous vote of all the Directors of the Company:

- (1) amendment of the Articles of Association of the Company;
- (2) termination, dissolution or liquidation of the Company;
- (3) any increase in or reduction of the registered capital of the Company;
- (4) merger of the Company or split of the Company;
- (5) any Transfer of Equity Interest in the Company;
- (6) taking or offering any loan (including shareholder’s loan, foreign debt, bank’s credit);
- (7) creation of guarantees, mortgages, pledges, collateral securities or other real or personal guarantees on the Company itself or on the Company’s property, rights or assets; giving loans or guarantees to third parties, waiving debts, giving subventions
- (8)

ARTICLE 18 DEAD-LOCK

If the Board of Directors is unable to arrive at a unanimous decision in respect of a Reserved Matter, the Board meeting at which such Reserved Matter is being discussed shall be adjourned and reconvened within [] days for further discussion and resolution among the Directors. If a decision on a Reserved Matter is not resolved after [] consecutive Board meetings, either due to failure to achieve a quorum or due to a continuous failure to arrive at a unanimous decision, then the Company shall be considered as being in a “deadlock”.

ARTICLE 19 HOLDING OF BOARD MEETINGS

Meetings of the Board of Directors shall be held on the premises of the Company, or at such other place as determined by the Chairman, and shall be conducted in English and Chinese. Meetings of the Board may also be held by conference calls or by videoconferences, as set forth in the Articles of Association, upon proposal by the Chairman. Board meetings shall be presided over by the Chairman or, in the absence of the Chairman, by the Vice-Chairman.

ARTICLE 20 CONVOCAION OF THE BOARD

Meetings of the Board of Directors shall be called to decide on major issues. Ordinary meetings shall be convened by the Chairman. Interim meetings may be called at any time, when reasonably necessary, by the Chairman acting on his own initiative or upon the request of any two directors acting jointly. If the Chairman fails to convene a meeting when so requested, the Vice Chairman or any two Directors acting jointly may validly convene an extraordinary board meeting.



ARTICLE 21 NOTICE OF THE BOARD MEETINGS

21.1 Notice of a meeting shall be sent to each Director and to the Parties by means of e-mail or facsimile, subsequently confirmed by private courier (return receipt requested), at least [] days before the date of the meeting. This notice period may be waived in case of emergency by written consent of all the Directors and shall in any case not apply to Board meetings to be reconvened in accordance with Articles 15 (Quorum and Proxy) and 18 (Dead lock).

21.2 A notice of a meeting shall (i) be written in English and Chinese language, (ii) specify the place, date and time of the meeting, (iii)

ARTICLE 22 BOARD MINUTES

22.1 The Board of Directors shall appoint a secretary. Any person may be entitled to be appointed secretary of the Board.

22.2 The secretary of the Board of Directors shall prepare minutes (in English and Chinese) of such meeting, including attachments and exhibits thereto, and provide copies thereof to each Director and Party. The minutes shall contain the names of those present and represented and the decisions and resolutions adopted, and shall be signed by all Directors present or represented. The original minutes shall be kept on file with the Company.

ARTICLE 23 WRITTEN BOARD RESOLUTIONS-VIDEOCONFERENCE

A resolution in writing signed by the number of Directors (or their proxies) required for the passing of a vote on such matter shall be valid and effective as if passed at a duly convened meeting of the Board of Directors.

Decisions may also be taken by telephone or videoconference, provided that all decisions made during a meeting held by telephone or videoconference shall be confirmed by resolutions in writing signed by all Directors present (or represented by

proxy) at such telephone or videoconference within thirty (30) days from the holding of such telephone or videoconference.

ARTICLE 24 REIMBURSEMENT OF BOARD MEMBERS' EXPENSES

No Director shall be entitled to receive for his functions as Director any remuneration, allowance and other fees from the Company, provided however that duly justified and reasonable travel expenses, accommodation and other costs and expenses directly incurred by a Director (or his representative holding a proxy) in attending a meeting of the Board shall be borne by the Company.

ARTICLE 25 POWER AND AUTHORITY

The Chairman of the Board shall be the legal representative of the Company.

The Vice-Chairman shall represent the Company in case and for the duration the Chairman is unable to exercise his responsibilities for any reason.

The Board of the Directors may delegate authority to the General Manager within the scope and limits approved by the Board of Directors.

CHAPTER V COMPANY MANAGEMENT STRUCTURE

ARTICLE 26 SENIOR MANAGERS

The managers listed below (the "Senior Managers") shall be appointed and dismissed by the Board of Directors and shall be in charge of the management of the matters relevant to their respective departments and detailed below:

- the General Manager, proposed by Party [] and appointed by the Board of Directors;



- a [], proposed by Party [] and appointed by the Board of Directors.

ARTICLE 27 GENERAL MANAGER

The General Manager shall be in charge of.... He shall carry out the decisions of the Board of Directors and organize and conduct the daily management of the Company within the range of powers delegated by the Board.

The General Manager shall report his/her work to the Board of Directors.

CHAPTER VI SUPERVISORS

ARTICLE 28 APPOINTMENT OF THE SUPERVISORS

The Company shall have one supervisor (the “Supervisor”) appointed by Party [].

The Directors and the Senior Managers shall not concurrently serve as Supervisor.

The Supervisor shall be appointed for a term of [] years and may serve consecutive terms if continuously re-appointed by its appointing Party. A Supervisor may only be removed or replaced (in case of vacancy) by the Party that appointed him.

ARTICLE 29 POWERS OF THE SUPERVISOR

The Supervisor shall exercise the functions and powers ascribed to him by the “Company Law of the People’s Republic of China” and the relevant laws and regulations.

The Supervisor may attend the meeting of the Board of Directors as non-voting attendee and may bring enquiry and suggestion on the matters decided by the Board of Directors.

The Supervisor may, where they find the business situation of the Company abnormal, conduct investigation, and, if necessary, may ... at the expenses of the Company.

The Supervisor cannot be entitled to receive for his office as Supervisor any remuneration, allowance and other fees from the Company, except reasonable travel expenses, accommodation and his costs and expenses directly incurred in the frame of his office.

CHAPTER VII LABOUR MANAGEMENT

ARTICLE 30 LABOR POLICIES

In accordance with the "Labor Law of the People's Republic of China", the "Labor Contract Law of the People's Republic of China" and the relevant laws and regulations, the recruitment, dismissal and resignation, wages, labor insurance, in-kind benefits, bonuses, penalties and other matters concerning the staff and workers of the Company shall be set out in the labor contracts to be executed between the Company and its employees individually and in the employee handbook.

The labor contracts of all staff and employees likely to receive confidential information and/or particular training from the Company or any Party shall include confidentiality undertakings regarding the confidential information received.

ARTICLE 31 EMPLOYEES

The Company shall be free to recruit and dismiss any of its staff and workers and other personnel, according to applicable laws. Recruitment shall be based on the principles of individual qualifications and efficiency. The recruitment procedure may include tests organized by the Company and trial periods shall be provided for in labor contracts. The wages, benefits, rewards, and all other related matters will be decided by the General Manager, subject to the powers of the Board of Directors.



The Company shall only recruit Chinese employees who have formally terminated their work relationship with their previous employers. Accordingly, the Company shall not be liable for any wages, bonuses, other benefits and social contributions and charges still due by former employers.

ARTICLE 32 LABOR UNION

The employees of the Company shall have the right to establish a labor union in accordance with the "Labor Union Law of the People's Republic of China", which shall represent the rights and interests of the employees and exercise its rights in accordance with such applicable laws. The Company shall allocate funds for labor union activities as required by applicable laws. The labor union shall use such funds in accordance with the "Rules for the Management of Trade Union Funds".

CHAPTER VIII FINANCE & ACCOUNTING

ARTICLE 33 ACCOUNTING RULES

The Company shall establish its own financial and accounting system according to relevant laws and regulations of the PRC which shall be filed at local financial and taxation administrations.

The Company's fiscal year begins on [] and ends on [].

The Company shall use the Renminbi as its accounting unit. The conversion of foreign currencies into Renminbi for accounting purposes shall be calculated according to the average exchange rates published by the People's Bank of China for the relevant currency on the date of the relevant transaction.

All financial statements and reports shall be prepared both in Chinese and English

language. In addition to the financial statements and reports prepared in PRC GAAP, as required by applicable laws, [] shall prepare summaries, using the [International Financial Reporting Standards (IFRS)], of all material reports and financial information.

ARTICLE 34 AUDIT

The annual audit of the financial statements and records of the Company shall be conducted by an accounting firm duly registered in the PRC as a certified public accountant and selected by an unanimous decision of the Board.

ARTICLE 35 FINANCIAL REPORTS

Within [] months of the end of each fiscal year, [] shall organize the preparation of the previous year's balance sheet, profit and loss statement and profit distribution plan and submit all these documents to a meeting of the Board of Directors for review and approval.

CHAPTER IX PROFIT DISTRIBUTION

ARTICLE 36 RESERVE FUNDS

The Company shall from its after-tax net profits of each year, allocate []% of the after-tax net profits as its legal reserved funds. Such allocation ceases to be mandatory, once the legal reserve reaches [] % of the Company's registered capital.

Additional reserves may be set aside and the annual proportion of allocations shall be discussed and decided by the Board of Directors according to the situation of the Company and applicable laws.



ARTICLE 37 PROFIT DISTRIBUTION

The Company shall not distribute profits unless the losses of the previous fiscal years have been made up.

Once taxes are paid and allocations are made to the mandatory reserve funds, the Board of Directors shall declare the net profit for the year which, unless otherwise decided by the Board of Directors in accordance with the Articles of Association (taking into consideration the financing needs of the Company as they appear in its Annual Budget), can be distributed to the Parties within [] months after the end of the previous fiscal year according to the proportion of Equity Interest held by each Party in the registered capital of the Company.

CHAPTER X TAXES – FOREIGN EXCHANGE – STATISTICS & INSURANCE

ARTICLE 38 TAXES

The Company shall pay all categories of taxes in accordance with The Enterprise Income Tax Law of the People's Republic of China and its implementing regulations, and preferential treatments applicable to the Company. With the assistance of Party [], the Company shall apply to the relevant tax authorities to secure any and all applicable preferential tax treatment that is or may become available.

Employees of the Company shall pay individual income tax according to the Individual Income Tax Law of the People's Republic of China.

ARTICLE 39 FOREIGN EXCHANGE

All matters concerning foreign exchange shall be handled in accordance with the Rules for Foreign Exchange Control of the PRC, and other relevant regulations published by the State Administration of Foreign Exchange of the PRC.

ARTICLE 40 INSURANCE

All insurance policies of the Company of all kinds shall be subscribed with an insurance company duly licensed to carry on business in China.

The types of insurance, insured values, duration of insurance etc., shall be decided by the Board of Directors in accordance with applicable laws.

CHAPTER XI DURATION – DISSOLUTION & LIQUIDATION

ARTICLE 41 DURATION

The duration of the Company shall be [] years from the date of issuance of the business license of the Company.

Upon unanimous decision of the Parties, an application for extension of the Company's duration may be submitted to the approval and registration Authorities no later than [] months before the Company's term.

ARTICLE 42 DISSOLUTION

The Company can be dissolved in accordance with the “Law of the People's Republic



of China on Sino-Foreign Equity Joint Venture”, its implementing regulations and the Articles of Association.

ARTICLE 43 LIQUIDATION

The dissolution and liquidation of the Company shall be conducted in accordance with applicable laws. In the event that the Company is to be dissolved and liquidated, the Board of Directors shall, by resolutions taken by a unanimous vote of the Directors, define the procedures, principles of liquidation, nominate the members of the liquidation committee and report to the relevant Authorities.

CHAPTER XII MISCELLANEOUS

ARTICLE 44 LANGUAGE

These Articles of Association are executed in Chinese and English.
Chinese and English shall be the working languages of the Company.

ARTICLE 45 SETTLEMENT OF DISPUTES

Any dispute arising from, out of or in connection with the Articles of Association shall be resolved by arbitration under the Rules of Arbitration of the South China International Economic and Trade Arbitration Commission (SCIA) in effect (the “SCIA Rules”) at the time of applying arbitration by [] arbitrator(s) appointed in accordance with the said SCIA Rules. The arbitration shall be conducted in English language.

ARTICLE 46 EFFECTIVE DATE AND AMENDMENTS

These Articles of Association shall become effective upon the registration by

competent authorities of People's Republic China. Any amendments to these Articles of Association may be made only by a written agreement in English and in Chinese signed by both Parties and must be approved by the Board of Directors and registered by authorities before they become effective.

[SIGNATURES ON NEXT PAGE]

In Witness Whereof, each of the Parties hereto has caused these Articles of Association to be executed by its legal representative on _____ at _____.

Party A

Party B

Party C

(Signature and seal)

(Signature and seal)

(Signature and seal)

Name:

Name:

Name:



THE PARTIES NAMED IN SCHEDULE 1

AND

XXXXXX LIMITED

SHAREHOLDERS AGREEMENT

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THIS AGREEMENT is dated

August 201X

PARTIES:

- (1) THE PARTIES NAMED IN SCHEDULE 1 (the “Shareholders”); and
- (2) XXXXXX LIMITED, a limited liability company registered in Ireland number XXXXX , having its registered office at [insert registered office address] (the “Company”).

BACKGROUND:

A. The Shareholders have formed a Company to carry on a joint venture for the sale of certain lighting products to be marketed under the brand “XXXXXX.

B. The shareholders of the Company and have agreed to enter into this Agreement for the purpose of regulating the future conduct of the business of the Company and of regulating their relationship as the holders of the entire issued share capital of the Company.

TERMS:

The parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1. Definitions:

In this Agreement the following expressions shall have the following meanings:

“Agreement” means this Agreement, including all its Schedules and Annexes.

“Articles” means the Articles of Association of the Company.

“Board” means the Board of Directors of the Company, from time to time as constituted in accordance with the provisions of Clause 11.3.

“Business” means the business of the sale and distribution of lighting products branded “XXXXXX” carried on by the Company in the territory of the European Economic

Area.

“Business Days” means Monday to Friday (inclusive) excluding public and bank holidays and days on which banks close for business in Ireland.

“Employment Agreements” means the employment agreements between the Company and certain of the Shareholder being _____ and _____.

“financial year” means the period in respect of which any profit and loss account of the Company laid before the members in general meeting is made up.

“Interest” means in relation to a Shareholder, that Shareholder’s entire shareholding in the Company plus his holding of and all other securities which are or may be convertible into shares, including options, warrants and convertible debt, from time to time.

“Majority Shareholders” means XXX, a limited liability company incorporated under the law of the People’s Republic of China

“Market Value” means the amount certified by the auditors of the Company as being the fair market value per Share at the date on which a transfer notice of Shares under the Articles is received by the Company.

“Minority Shareholders” means _____ of [address].

“Pre-Tax Profits” means the before tax profits of the Company for a financial year, as shown in the audited profit and loss account of the Company for the relevant financial year.

“Sale” means the completion of any transaction whereby any person or group of persons acting in concert together purchase a majority of the Shares then in issue in the capital of the Company or purchases the whole or a substantial part of the Business and assets of the Company

“Shareholding” means in relation to a Shareholder, that Shareholder’s entire holding of Shares in the Company.

“Shares” means Ordinary shares of €1 each in the capital of the Company.

1.2. Interpretation:

1.2.1 The section headings and captions to the clauses in this Agreement are



inserted for convenience of reference only and shall not be considered a part of or affect the construction or interpretation of this Agreement.

1.2.2 References to Schedules are references to the Schedules attached to and included as part of this Agreement.

2. SHAREHOLDERS COVENANTS

2.1 Enforcement of Agreements:

2.1.1 Each of the Shareholders covenants with each other not to exercise their voting or other rights (whether as director or shareholder or otherwise) in relation to the Company in such a manner as would or might cause the Company or any of the Shareholders in any way to be in breach of any of the provisions of this Agreement.

2.1.2 The Company covenants and undertakes with each of the Shareholders that it will at all times fully enforce all of the provisions of this Agreement and all related agreements including, without limitation, the Articles, and shall not release or modify the obligations of any of the parties to this Agreement.

3. TRANSFER OF SHARES

Each of the Shareholders covenants and agrees with the other Shareholders that he shall not sell, transfer, or otherwise dispose of any right or interest (whether legal, equitable or otherwise) in or create any Encumbrance over any of his / her Interest, except (a) with the prior consent in writing of the Shareholders; or (b) an outright transfer:

3.1 to one or more of the other Shareholders;

3.2 to his estate by operation of law; or

3.3 in accordance with Clauses 5, 7, 8, 9 and 10.

4. LOANS AND INVESTMENT

4.1. Mr. _____ provided the Loan to _____, acting as agent of XXXXXX Holding Europe Limited prior to its incorporation and during its operation for the purposes of working capital in the sum of _____ ("Loan A"). The Majority Shareholder and Mr. _____ provided working capital loans to the Company before signing this Agreement in the sum of _____ ("Loan B"). The total amount of Loan A and Loan B is RMB _____. The Company acknowledges that it, and it alone has the responsibility to repay Loan A and Loan B. The annual interest rate of such loans is ____%. The Shareholders and the Company acknowledge and agree that such Loans, including both the principle and the interest, shall be repaid by the Company and shall only be repaid from retained profits of the company in accordance with Article 12.

4.2. The Minority Share holder acknowledges that the Majority Shareholder invested RMB _____ in the Company in a lump sum to facilitate the expansion of the Company before signing this Agreement.

5. BUY-OUT RIGHT (MINORITY SHAREHOLDERS)

Each of the Minority Shareholders covenants with and undertakes to the other Shareholders that, in the event of a Minority Shareholder being a Good Leaver, the other Shareholders shall at anytime thereafter have the right to offer to purchase such Minority Shareholder's Interest on the following terms and conditions.

5.1. In the event of:

5.1.1 the death of a Minority Shareholder; or

5.1.2 a Minority Shareholder being seriously ill and prevented from carrying out his/her duties as an employee for six consecutive months and confirmed as being unable to perform his/her duties as an employee because of serious illness by a doctor nominated by the Board; or

5.1.3 a Minority Shareholder ceasing employment with the Company for personal



reasons related to the illness or death of an immediate relative or on such other compassionate grounds as the Board may determine; or

5.1.4 a Minority Shareholder ceasing employment with the Company by reason of the termination of such employment by the Company, other than on the ground of misconduct or performance;

5.1.5 a Minority Shareholder ceasing employment by reason of the termination of such employment by the Company on the ground of misconduct or performance, which dismissal is subsequently adjudged by a competent court or tribunal to be substantively unfair;

Such Minority Shareholder shall be a “Good Leaver”. In the event of any Minority Shareholder ceasing employment with the Company in any other circumstances, such Minority Shareholder shall be a “Bad Leaver”.

5.2. Where a Minority Shareholder is a Good Leaver, and the other Shareholders shall have the right to purchase his/her Interest by written notice to the Company and to the relevant Minority Shareholder requiring the sale of that Interest (“Leaver Purchase Notice”).

5.3. Upon receipt of a Leaver Purchase Notice, such Interest shall be valued in accordance with Clause 6 below.

5.4. In each case, the parties shall in either case proceed to completion of the sale and purchase of the Interest in accordance with Clause 10.

5.5. The price paid to a Good Leaver shall be 100% of the open market price decided by Clause 6 below.

5.6. where the Minority Shareholder leaves the Company due to the following reasons, he shall transfer the shares to Majority Shareholder for free: (a) Misappropriating funds of the Company; (b) Conducting commercial bribery such as accepting kickbacks (c) Depositing the Company's funds into an account in his own name or in any other individual's name; (d) Without the consent of the shareholder's meeting, borrow or lend in the name of the Company, set up guarantee over the properties of the Company and carry on business in relation to guarantee or use the

unpaid capital to issue bonds of the company, stock or other securities;(e) Without the consent of the shareholder's meeting, signing a contract or trading with this Company;(f) Without the consent of the shareholders' meeting, seeking business opportunities for himself or any other person by taking advantages of his authorities, or operating for himself or for any other person any like business of the company he works for;(g) Disclosing the Company's business secrets;(h) Committing serious dereliction of duty, practicing graft or abusing the authority, causing substantial damage to the Company;or(i) Other acts that are inconsistent with the obligation of fidelity to the Company.

6. INDEPENDENT VALUATION OF AN INTEREST

Where this Agreement provides for the independent valuation of a Shareholder's Interest, the following terms and conditions shall apply:

6.1. The relevant Shareholders shall jointly agree to the appointment of an independent valuer to conduct the valuation (the "Valuer"). Failing agreement, they shall refer the matter to the President for the time being of the Institute of Chartered Accountants in Ireland whose decision as to appointment of the Valuer shall be binding upon those Shareholders.

6.2. The Valuer shall value the Interest as follows:

6.2.1 on the basis of an open market price as between a willing selling and a willing buyer;

6.2.2 the Valuer shall not take account of any rights or restrictions attaching to any class of shares in the capital of the Company;

6.2.3 the amount assessed by the Valuer in respect of the Interest shall bear the same proportion to the aggregate fair value of all the shares in the capital of the Company as the nominal value of the shares comprised in such Interest shall bear to the aggregate nominal value of all of the shares in the capital of the Company, without applying any discount or premium by reason of the fact that such Interest constitutes a minority



/ majority shareholding in the Company;

6.3. The Valuer shall submit his / her valuation of the Interest to the relevant Shareholders within 20 Business Days of appointment and his / her valuation shall be binding upon them and the parties shall proceed to completion of the sale and purchase of the Interest in accordance with Clause10.

7. TAG ALONG

7.1. The holders of not less than 70% of the issued share capital of the Company for the time being may sell their Interests to a bona fide third party purchaser, subject to Clause7.2 but notwithstanding any other contrary provision of this Agreement.

7.2. Upon a Shareholder referred to in Clause 7.1 receiving any offer for the purchase of all or any part of his Interest and wishing to accept such offer then, then notwithstanding anything contained in the Articles, he shall procure (and it shall be an express term of any such agreement for the sale and purchase of the said Interest or any part of it), that each of the other Shareholders shall have the option, for a period of not less than 20 Business Days after receiving written notice of such offer, of selling to the purchaser all of his Interest at the same time and on conditions no less favourable, including as to the price, as the terms offered to the selling Shareholder.

8. DRAG ALONG

Where a bona fide third party offer (an “Offer”) or invitation (the “Invitation”) is made by any person (the “Purchaser”) to any of the holders of the issued share capital of the Company for the time being (the “Recipients”) to acquire all of the Shares.

8.1. The Recipients shall immediately notify the other Shareholders of such Offer or Invitation (but any decision as to the acceptability of the Offer or Invitation shall be a matter for the Recipients only).

8.2. If such Offer or Invitation is in terms acceptable to the holders of not less than 70% of the issued share capital of the Company for the time being they shall have the

option to require the other Shareholders to transfer all their Interests to the Purchaser, or as the Purchaser directs, at the same time and on conditions no less favourable, including as to the price, as the terms offered to those selling Shareholders, by giving notice in writing to that effect to such Shareholders.

9. OFFER ROUND

9.1. Notice of Intention.

Subject to Clause 5, if a Shareholder wishes to sell or otherwise transfer any part or the whole of his Interest (a “Selling Shareholder”), in any transaction, the Selling Shareholder shall deliver prior written notice of its wish to transfer (a “Notice of Intention”) to the Company and to the other Shareholders (the “Non-Selling Shareholders”) in the form set out in Schedule 3 specifying:

9.1.1 the name of the proposed transferee, and the number and class of Shares and/or other securities proposed to be transferred (the “Offered Shares”); and

9.1.2 the price at which such Selling Shareholder proposes to transfer the Offered Shares (the “Offer Price”) and other applicable terms and conditions.

9.2. Notice of Exercise.

Upon receipt of the Notice of Intention, the Non-Selling Shareholders shall have the right to purchase at the Offer Price the Offered Shares, exercisable by the delivery of notice to the Selling Shareholder (the “Notice of Exercise”) in the form set out in Schedule 4, with a copy to the Company, within 10 Business Days from the date of receipt of the Notice of Intention.

9.3. Purchase.

In the event that any of the Non-Selling Shareholders exercise their right to purchase, in aggregate, all of the Offered Shares, the Selling Shareholder shall be obliged to sell all of the Offered Shares to such Non-Selling Shareholders, in the numbers calculated in accordance with Clause 9.4 and on the same terms as those offered to the proposed transferee; and the parties shall proceed to completion of the sale and purchase of the Offered Shares in accordance with Clause 10.



9.4. Allocation.

For the purpose of determining to which Non-Selling Shareholders the Selling Shareholder is obliged to sell the Offered Shares under Clause 9.3:

9.4.1 where only one Notice of Exercise is served, all the Offered Shares shall be sold to the Non-Selling Shareholder serving it;

9.4.2 where more than one Notice of Exercise is served, and in aggregate they relate to exactly the number of Offered Shares, the Offered Shares shall be sold to the Non-Selling Shareholders serving them, in the numbers specified in the respective Notices of Exercise;

9.4.3 where more than one Notice of Exercise is served, and in aggregate they relate more than the number of Offered Shares, the Offered Shares shall be sold to the Non-Selling Shareholders in proportion to their respective Interests rounded to the nearest share (up to a maximum of the amount specified in that Non-Selling Shareholder's Notice of Exercise), with any excess being distributed in the same manner until all of the Offered Shares have been accounted for.

9.5. No Notice of Exercise.

If no such Notice of Exercise has been delivered by one or more of the Non-Selling Shareholders within such 10 Business Day period, or such Notice(s) of Exercise does not (or do not in aggregate) relate to at least all of the Offered Shares covered by the Notice of Intention, then the Selling Shareholder shall be entitled to transfer all of the Offered Shares to a third party within 30 Business Days after the delivery of such Notice of Intention, provided that the sale or transfer:

9.5.1 is on terms no more favourable to the third party than those presented to the Non-Selling Shareholders; and

9.5.2 is subject to the transferee agreeing with the Non-Selling Shareholders to be bound by the provisions of this Agreement as they affected the Selling Shareholder, by executing a deed of adherence in the form set out in Schedule 5.

9.6. Re-Application.

If the Selling Shareholder does not sell the Offered Shares to the proposed

transferee in accordance with Clause 9.5 and within the specified timeframe, the Offered Shares shall again be subject to the rights of the Non-Selling Shareholders set forth in this Clause 9.

9.7. Effect of this Clause.

The rights of the Non-Selling Shareholder in this Clause 9:

9.7.1 shall be in addition to the rights provided in Clause 7 (Tag-Along); but

9.7.2 shall not apply in circumstances where the rights provided in Clause 8 (Drag-Along) are validly invoked.

10. COMPLETION OF SALE AND PURCHASE OF AN INTEREST OR OFFERED SHARES

10.1. Where the parties (or any of them) have become bound to complete the sale and purchase of an Interest or of Offered Shares, the completion of the sale and purchase of that Interest shall take place at 4pm on the 20th Business Day after they have become so bound, at the registered office of the Company.

10.2. Upon such completion the selling Shareholder shall deliver to the purchasing Shareholder(s) duly completed and signed transfers in respect of his/its Interest or the Offered Shares accompanied by the relevant share certificates and such other deeds and documents as may be necessary to transfer to the purchasing Shareholder(s) the unencumbered legal and beneficial ownership of the Interest.

10.3. Upon such completion the parties shall procure that a meeting of the Board shall be held at which the transfers referred to above shall (subject to stamping) be approved and the purchasing Shareholder(s) shall make immediate payment to the selling Shareholder in cash of the price payable for the Interest, as calculated in accordance with this Agreement.

10.4. If a Shareholder fails to transfer his / its Interest or the Offered Shares where required to do so under this Agreement, the Board may appoint any director of the Company (other than that selling Shareholder) as attorney of the selling



Shareholder with full power to execute, complete and deliver, in the name and on behalf of the selling Shareholder transfers in respect of his / its Interest to the purchasing Shareholder(s) against payment of the price payable for it, whereupon the purchasing Shareholder(s) shall be deemed to have obtained a good discharge for such payment. On execution and delivery of the said transfers duly stamped, the purchasing Shareholder(s) shall be entitled to insist upon its name / their names being entered in the Register of Members of the Company as holder(s) by transfer of the Interest or the Offered Shares, as the case may be. The Board shall forthwith pay the consideration for the Interest or the Offered Shares, as the case may be, into a separate bank account in the name of the Company and shall hold such money on trust (but without interest) for the selling Shareholder until he or she shall deliver up the relevant share certificate for the Interest or the Offered Shares, as the case may be, so transferred.

11. COVENANTS CONCERNING THE COMPANY

11.1. Access, Financial Information and Records:

11.1.1 Each Shareholder shall be entitled at all reasonable times to free and full access to inspect examine and / or copy any books, files, records and/or other documents belonging to or maintained by or on behalf of the Company, to seek and to obtain explanations of any matter including access to the Company's bankers, auditors and financial advisers and to free and full access to the properties buildings and other assets of the Company provided always that all confidential information thereby obtained shall be preserved as confidential to the Company.

11.1.2 The Company shall furnish at its own cost to each of the Shareholders:

11.1.2.1 audited financial statements including a balance sheet and profit and loss account in respect of each financial year of the Company not later than the expiration of 120 Business Days after the end of the financial year to which the profit and loss account in question relates, together with the directors' and auditors'

reports thereon; and

11.1.2.2 within four weeks from the end of each month unaudited monthly management accounts for the Company consisting of a profit and loss account and balance sheet in relation to the Company in respect of the month then ended.

11.1.3 All accounts books ledgers financial and other material records of whatsoever kind of the Company shall be fully, properly and accurately kept and completed and no material inaccuracies or discrepancies of any kind contained or reflected therein or in any of them and they shall give and reflect a true and fair view of the financial contractual and trading position of the Company and of its plant machinery, fixed and current assets and liabilities (actual and contingent) debtors and creditors stock in trade and work in progress.

11.2. Business and Management:

11.2.1 The Company shall carry on the Business in an efficient and businesslike manner and to its best commercial advantage.

11.2.2 The Company shall conduct its business in accordance with all applicable common law, laws, statutes, regulations, bye-laws, orders, decrees, directives, rulings, rules, regulations, judgments, permits, licences, approvals, authorisations, clearances or consents of or by any government, local government, executive, administrative, revenue, judicial or regulatory agency or authority in Ireland or elsewhere in the world.

11.2.3 The Business shall be controlled by the Board and the Company shall not enter into any contract arrangement or transaction whereby any of its business would be controlled otherwise than by the Board.

11.3. Board Composition and Meetings:

11.3.1 The Majority Shareholder shall, for so long as it holds a Shareholding, be entitled to appoint one person as director of the Company and to remove and / or replace any such person from time to time. The Minority Shareholders, between them, , for so long as they hold a Shareholding, be entitled to appoint one person as director of the Company and to remove and / or replace any such person from time to time.



11.3.2 The composition of the Board immediately following signing of this Agreement shall be as follows:

The quorum of directors required for the transaction of business at Board meetings shall be 2.

11.3.3 The Directors shall meet face to face at least once a year.

11.4. Consent Matters: Each of the Shareholders covenant with and undertake to the other parties that, for the duration of this Agreement:

11.4.1 the acts set out in Schedule 2 shall not be carried out without the unanimous consent of the Shareholders and they shall each use their respective rights and powers as a director, shareholder or otherwise to procure so far as he or she is able that no such act is carried out unless such consent has been given.

12. DIVIDEND POLICY

12.1. If, in any accounting period the Company has profits available for distribution, the Company (so far as it is legally able) and each of the Shareholders shall procure that those profits are applied in the following order of priority:

12.2. providing working capital to finance the continuing operations and internal growth of the Company;

12.3. transfers to reserves consistent with the normal commercial requirements of businesses similar to that carried on by the Company;

12.4. the payment of cash dividends of fifty per cent (50%) of the balance of such profits available for distribution; and

12.5. the repayment of the Loan more particularly described in Clause 4 hereof of the balance of such profits available for distribution.

13. INTELLECTUAL PROPERTY

13.1. The trademark and all other intellectual property rights in the name “XXXXXX” shall belong to the Company and the parties hereby agree to take all necessary steps to ensure that the Company is registered as such owner. The Company authorize the Majority Shareholder to use the aforesaid trademark and the intellectual property in producing and supplying the Products to the Company without any limits and without paying any fees. The Company shall guarantee that the use of the aforesaid trademark and the intellectual property will not interfere any rights and interests of the third party and if so, the Company shall undertake any and all liability thereafter.

14. MISCELLANEOUS PROVISIONS

14.1. Termination: The provisions of this Agreement shall cease to have effect on a Sale, except that the parties’ accrued rights and obligations shall not be affected. When a Shareholder ceases to be an employee of the Company and/or no longer holds a Shareholding, the Shareholder shall cease to be party to this Agreement.

14.2. Notices: Any notice or other communication whether required or permitted to be given under this Agreement shall be given in writing and shall be deemed to have been duly given if delivered by hand to the addressee or sent by registered post to the addressee at the address set out for such party in this Agreement (or such other address as that party may from time to time designate in writing to the other parties in accordance with the provisions of this Clause) of by email. Any such notice shall be deemed to have been duly given if delivered, at the time of delivery, if sent by registered post, 7 days after posting, if sent by email, at the time of delivery.

14.3. Severability: If any provision in this Agreement is deemed to be, or becomes invalid, illegal, void or unenforceable under applicable laws, such provision will be deemed amended to conform to applicable laws so as to be valid and enforceable, or if it cannot be so amended without materially altering the intention



of the parties, it will be deleted, but the validity, legality and enforceability of the remaining provisions of this Agreement shall not be impaired or affected in any way.

14.4. Parties Bound: This Agreement shall be binding upon and run for the benefit of the parties, their successors and permitted assigns.

14.5. Conflict: In the event of any conflict between this Agreement and the Articles, this Agreement shall prevail.

14.6. Entire Agreement: This Agreement constitutes the entire agreement and understanding between the parties with respect to their subject matter, and except as expressly provided, supersede all prior representations, writings, negotiations or understandings with respect to that subject matter.

14.7. Further Assurance: Each party shall do and execute, or arrange for the doing and executing of, each necessary act, document and thing reasonably within its power to implement this Agreement.

14.8. Counterparts: This Agreement may be executed in any number of counterparts, each of which when so executed shall be deemed to be an original and all of which when taken together shall constitute this Agreement.

14.9. Waivers: A failure to exercise or delay in exercising a right or remedy provided by this Agreement or by law does not constitute a waiver of the right or remedy or a waiver of other rights or remedies. No single or partial exercise of a right or remedy provided by this Agreement or by law prevents further exercise of the right or remedy or the exercise of another right or remedy.

14.10. Variations: No variation of this Agreement shall be effective unless it is made in writing and signed by each of the parties.

14.11. Governing Law and Jurisdiction: This Agreement shall be governed by and construed in accordance with the laws of Ireland, and shall be subject to the exclusive jurisdiction of the Irish courts.

EXECUTED AS A DEED by the parties on the date shown.

SCHEDULE 1 SHAREHOLDERS

Name	Address	Number and Class of Shares
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SCHEDULE 2 ACTS REQUIRING SPECIAL CONSENT**– ACTS REQUIRING UNANIMOUS CONSENT**

[Note: The following are examples of acts that normally require unanimous, or special majority consent, and may be inserted in Part 1 or Part 2 as appropriate.]

1. make any decision that would adversely affect the position of the holders of the Shares;
2. carry on any business other than the Business or make any material change in the scope or nature of the Business;
3. create or issue or agree to create or issue any shares in the Company;
4. create or issue or agree to create or issue any loan capital (whether convertible or not) or give or agree to give any option in respect of loan capital in the Company;
5. vary the rights or obligations attaching to any share or loan capital or increase or reduce its share capital or consolidate or subdivide any shares in its capital;
6. purchase or redeem any of its own shares;
7. grant or agree to grant any option or warrant or other security or instrument in respect of which may result in the issue of shares in the Company;
8. alter the Articles or this Agreement;
9. change the corporate status of the Company;
10. enter into any transaction or arrangement resulting in a Sale;
11. incur or permit to subsist at any one time any borrowings save for the Working Capital Loan referred to in Clause 4 hereof ;
12. enter into any contract or transaction except in the ordinary and proper course of business on arms length and commercial terms;



13. transfer, sell, license or otherwise dispose of the whole or any material part of its business undertaking or assets (other than trading stock in the ordinary course of business) or grant any interest therein or, in each case, enter any agreement or arrangement to do so;
14. enter into any scheme or arrangement with creditors;
15. appoint or remove or vary the terms of appointment (including financial terms) of any chairman, director or other employee or appoint any person as an employee or consultant at an annual aggregate remuneration in excess of €_____;
16. other than in the ordinary course of business transfer, assign, licence or otherwise dispose of any of its intellectual property rights;
17. transfer, sell or otherwise dispose of any part of the Business;
18. except as otherwise specified in this Agreement, make any loan or provide any credit;
20. purchase or subscribe for or dispose of any shares, debentures, mortgages or securities (or any interest therein) in any company, trust or other body other than in connection with a reorganisation, amalgamation or reconstruction of the Company;
21. enter into any credit sale, hire purchase or leasing agreement if as a result the aggregate liability of the Company under all such agreements would exceed €_____;
22. create or permit to subsist any mortgage, encumbrance or charge whether floating or specific on the whole or part of its undertaking, property or assets or give any guarantee or indemnity;
23. factor or assign any book debts;
24. enter into any partnership, joint venture or profit sharing agreement with any persons;
25. open, take an interest in or carry on business on any land or at any premises;
26. do or permit to be done any act or thing whereby the Company may be wound up (whether voluntarily or compulsorily);
27. establish any retirement, death or disability benefits or arrangements for directors or employees of the Company;

28. give any guarantee, indemnity or security in respect of the obligations of any other person other than of the Company; or
29. pay any dividend or make any distribution to the members of the Company other than in accordance with the Dividend Policy set out at Clause. 12 hereof.

[Name]

Majority Shareholder

Shareholders Agreement (Long Form)

SCHEDULE 5 FORM OF BID NOTICE

[Note: This should correspond to Clause 4 (buy-out right).]

To: [Other Majority Shareholders]

Bid Notice pursuant to Clause [4.1.3] of the Shareholders Agreement dated [insert date] between the Shareholders (as described in Schedule 1 of that Agreement) and [Company Name] Limited (the “Agreement”)

Terms used in this Notice shall have the meanings set out in the Agreement

I, _____, being a Majority Shareholder, hereby give notice that I am in receipt of your Counter-Offer Notice dated [insert].

I hereby give notice setting [date], being not less than 10 and not more than 20 Business Days from the date of this notice, as the date by which each Majority Shareholder shall submit a Final Bid in writing to the Company s solicitors, [insert name and address]. Please note that, under Clause [4.1.5] of the Agreement, you have until 5 p.m. on the Bid Date to submit a Final Bid.

If you fail to submit a valid Final Bid by such time, any Final Bid validly submitted shall be deemed effective and binding on you.

Dated:



[Name]

Majority Shareholder

Shareholders Agreement (Long Form)

SCHEDULE 3 FORM OF NOTICE OF INTENTION

[Note: This should correspond to Clause 9 (offer round).]

To: The Company Secretary, [Company Name] Limited

Copy: [Other Shareholders]

Notice of Intention pursuant to Clause [9.1] of the Shareholders Agreement dated [insert date] between the Shareholders (as described in Schedule 1 of that Agreement) and [Company Name] Limited (the “Agreement”)

Terms used in this Notice shall have the meanings set out in the Agreement

I, _____, being a Shareholder, hereby give notice that I intend to sell or otherwise transfer [certain of][all of] my Shares in the Company.

The particulars of the proposed sale or transfer are:

Name of proposed transferee:

Number and class of Shares:

Proposed price:

Other applicable terms and conditions:

Please note that, under Clause [9.2] of the Agreement, you have 10 Business Days from receipt of this notice to serve a Notice of Exercise, in accordance with the terms of the Agreement.

If you fail to respond to this notice within such timeframe, the Shares referred to above may be sold in accordance with the terms of the Agreement.

Dated:

[Name]

Selling Shareholder

SCHEDULE 4 FORM OF NOTICE OF EXERCISE

[Note: This should correspond to Clause 9 (offer round).]

To: [Selling Shareholder]

Copy: The Company Secretary, [Company Name] Limited

Notice of Exercise pursuant to Clause [9.2] of the Shareholders Agreement dated [insert date] between the Shareholders (as described in Schedule 1 of that Agreement) and [Company Name] Limited (the “Agreement”)

Terms used in this Notice shall have the meanings set out in the Agreement

I, _____, being a Shareholder, hereby give notice that I am in receipt of your Notice of Intention dated [insert].

[I hereby give notice to purchase all of the Offered Shares, on the terms set out in the Notice of Exercise, in accordance with Clause [9] of the Agreement.] [OR, where there are more than two shareholders, the following alternative is possible:] [I hereby give notice to purchase of the Offered Shares, or such lesser number as I may be entitled to purchase pursuant to the provisions of Clause [9.4] of the Agreement (allocation) on the same terms and conditions, pro rata, as specified in the Notice of Intention.]

This Notice of Exercise is unconditional and I covenant and agree that I have the financial ability to proceed to completion of the sale and purchase of the Shares as specified in this Notice of Exercise, in accordance with the terms of the Agreement.

Dated:

[Name]

Shareholder

SCHEDULE 5 FORM OF DEED OF ADHERENCE

Deed of Adherence pursuant to Clause [9.5.2] of the Shareholders Agreement dated



[insert date] between the Shareholders (as described in Schedule 1 of that Agreement) and [Company Name] Limited (the “Agreement”)

BY THIS DEED OF ADHERENCE

[I, [insert name] of [insert address]] OR, FOR A COMPANY [We, [insert company name], registered in Ireland no. [insert registered number], having our registered office at [insert address]]

intending to become a shareholder of [Company Name] Limited (the “Company”) in respect of [insert number and class of shares] in the capital of the Company (the “Shares”) hereby agree[s] with the Company and each of its shareholders to comply with and to be bound by all of the provisions of the Agreement, as defined above, (a copy of which has been delivered to [me/us] and which [I/we have initialed] and attached to this Deed for identification) in all respects as if [I/we] [was/were] a party to such Agreement and named in it as a party of the same description as the proposing transferor of the Shares, namely [insert name].

EXECUTED AS A DEED on [insert date]

[insert execution blocks as appropriate]

[Signature Page to Shareholders Agreement]

PRESENT when the Common Seal of

XXXX was affixed hereto:

Director

Director / Secretary

SIGNED, SEALED AND DELIVERED by

XXXXX

[SHAREHOLDER]

in the presence of:

SIGNED, SEALED AND DELIVERED by

XXXX

[SHAREHOLDER]

in the presence of:



Sample Legal Due Diligence Request List

This checklist is a sample in connection with a corporate acquisition transaction.

This checklist is intended as a sample, and when presented in an actual transaction, it must be tailored to that particular transaction and to the particular company.

In an actual transaction, the Company would typically be requested to respond to the due diligence checklist presented, and to provide an indication of which documents exist and will be produced by the Company. The Company would also be requested to indicate in its response if any of the requested documents do not exist or if a particular request does not pertain to the Company or its business.

1. Corporate Documents

- 1.1 Corporate bylaws;
- 1.2 Organizational chart;
- 1.3 Share option agreements and plans;
- 1.4 Shareholder and voting agreements;
- 1.5 Warranties;
- 1.6 Recapitalization or restructuring documents;
- 1.7 Minutes from all board, shareholder, and/or executive committee meetings since charter;
- 1.8 Agreements related to any sales or purchases of businesses.

2. Share Capital and Shareholders

- 2.1 Details of shareholders and share capital (whether issued or otherwise) of the Company.
- 2.2 Materials filed by the Company with the registrar of companies or other similar

authority as competent under Applicable Laws relating to issuance of shares

2.3 Shareholder agreements and other Contracts among the shareholders

2.4 Agreements creating or entered into in respect of any Encumbrance, or any other condition imposing any restrictions on, the share capital of the Company

2.5 Contracts known to the Company regarding outstanding proxies, voting trusts, or any other assignment of rights attaching to the shares held by the shareholders

3. Customers and Suppliers

3.1 Copies of all outstanding agreements with customers and suppliers, including any service, support or maintenance agreements, involving annual revenues or expenses in excess of _____ [amount pertinent to the particular transaction would be filled in].

3.2 List of the Company's top _____ customers for the last two fiscal years (including addresses and telephone numbers, if possible), and a breakdown by revenue per customer.

3.3 List of the Company's top _____ suppliers (including addresses and telephone numbers, if possible), and, if available, a breakdown by purchases per supplier and indicating any sole-source supplier or limited source supplier.

3.4 Any form contract or license used with suppliers or customers, including form license agreement, distribution agreement, reseller agreement and support/maintenance agreement.

3.5 List of distributors and resellers, including addresses and sales data for the last _____ fiscal years.

3.6 Description of any significant customer relationship terminated within the last _____ years.

3.7 A breakdown by geographic region of the Company's revenues for the last _____ fiscal years.



4. Material Contracts

- 4.1 Any material sales, agency, distribution or marketing contracts to which the Company is a party.
- 4.2 Any contract purporting to limit the Company's business activities or ability to compete in any market.
- 4.3 Any agreement restricting the Company's payment of dividends.
- 4.4 Any material joint venture, participation, partnership or cooperative agreements to which the Company is a party.
- 4.5 All material documents relating to any major acquisition, disposition, reorganization or other extraordinary corporate event of material significance to the Company.
- 4.6 Any agreements with any officer, director or holder of ____% of the outstanding shares of stock of any class, including any loan agreements whether or not currently outstanding.
- 4.7 Any other contracts which, in the Company's view, are material to its business.

5. Corporate Financings

- 5.1 All agreements relating to current or future debt (including reimbursement) obligations for borrowed money, including agreements to acquire any such debt obligation of others or for a leasing transaction of a type required to be capitalized in accordance with generally accepted accounting principles.
- 5.2 All agreements with respect to obligations or liabilities as guarantor, surety, co-signer, endorser, co-maker, indemnitor or otherwise in respect of the obligation of any other person.
- 5.3 All agreements by which the Company is subject to any obligation to provide funds to or to make investments in any other person (in the form of a loan, capital contribution or otherwise).

- 5.4** All material correspondence with and from lenders in the past three years.
- 5.5** All documents purporting to create liens, mortgages, security interests, pledges, charges or other encumbrances on real or personal property in favor or against the assets of the Company.
- 5.6** List of any person or entity whose consent to the proposed offering will be required and copies of relevant documents.

6. Material Assets

- 6.1** Documents of title for the Company's material assets.
- 6.2** List of all offices and facilities.
- 6.3** Schedule of all deeds and title reports and policies for all real property owned or occupied by the Company.
- 6.4** A schedule of all leases of real property and all leases of any material amount of personal property to which the Company is a party, as lessor, sublessor or sublessee, including rental payment amounts, expiration dates, renewal options and other material terms.
- 6.5** Copies of the leases described in item 6.4 above.
- 6.6** Any appraisals of the Company's real property obtained within the past _____ years.
- 6.7** All title insurance policies for material properties owned or leased by the Company.
- 6.8** All material equipment purchase agreements.

7. Intellectual Property

- 7.1** List and copies of all patents and applications pending, held or being prosecuted by the Company, with descriptive titles, numbers and jurisdiction, and copies of all correspondence to or from examining authorities or other parties regarding such patents and patent applications.



7.2 List and copies of all copyright registrations and applications pending, held or being prosecuted by the Company, with descriptive titles, numbers and jurisdiction, and a list of all copyrightable materials (including software and documentation) material to the Company's business, as to which there is no copyright registration or application therefor pending.

7.3 List and copies of all trademarks, registered or unregistered, used in connection with the business of the Company, whether or not such trademarks are owned by or licensed to the Company, with a description of products or services associated therewith, and numbers, jurisdiction and status of any registration applications pending, if any, and copies of all state and federal registration and recordation documents and certifications pertaining to each (including associated affidavits).

7.4 List of all categories of technology (whether or not patented or patentable) that are material to the business of the Company, together with a brief description of how each such technology was developed or acquired.

7.5 Copies of all agreements pursuant to which the Company has assigned or licensed any technology or intellectual property rights to, or obtained any technology or intellectual property rights from third parties.

7.6 Copies of all agreements pursuant to which the Company's products are manufactured or assembled by, or pursuant to which the Company acquires products or components for products from, third parties.

7.7 Copies of all research and development agreements to which the Company is a part.

7.8 Copies of all escrow agreements relating to the Company's technology or intellectual property.

7.9 Copies of all other agreements relating to technology or intellectual property that are material to the business of the Company.

7.10 All documents, correspondence, memoranda, notes, and other papers relating to the Company's written policies on intellectual property.

7.11 Copies of all security agreements pursuant to which a lender or creditor has

taken a security interest in specific intellectual property assets or “general intangibles.”

7.12 All documents, correspondence, pleadings, memoranda, notes, and other papers relating to any pending or threatened intellectual property litigation or claim against the Company, or any other assertion, suggestion, or inquiry by a third party that the Company is infringing its intellectual property rights.

7.13 Flow charts, technical specifications, and other design documents relating to any Company technology or product that is the subject of any pending or threatened litigation, claim, assertion, suggestion or inquiry of the type described in item 6.12 above.

7.14 Materials referred to during the process of developing any Company technology or product that is the subject of any pending or threatened litigation, claim, assertion, suggestion or inquiry of the type described in item 6.12 above.

7.15 Notes or design meetings relating to any Company technology or product that is the subject of any pending or threatened litigation, claim, assertion, suggestion or inquiry of the type described in item 6.12 above.

7.16 All documents, correspondence, memoranda, notes, and other papers relating to any development by the Company that involves the derivation or use of specifications or technical information derived from the products of third parties.

7.17 All documents, correspondence, memoranda, notes, and other papers analyzing or assessing the validity or scope of any Company copyright, patent, or trademark.

7.18 Documents relating to any claims of infringement of intellectual property rights of others.

7.19 List of proprietary processes controlled by the Company and other trade secrets.

8. Insurance

8.1 A schedule of all policies of insurance or self-insurance arrangements, including professional liability, officers’ and directors’ liability and key-man life insurance, with coverage limits and other significant terms.



8.2 A schedule of insurance claims experience over the last three years.

9. Employees

9.1 All material employment agreements, consulting agreements, non-competition agreements and salesperson commission agreements.

9.2 Any material agreements regarding severance pay or other benefits to employees of the Company.

9.3 Schedule of all compensation paid during the previous _____ fiscal year(s) to officers, directors and key employees showing separately salary, bonuses and non-cash compensation (e.g., use of cars, property).

9.4 List of all current employees of the Company or its subsidiaries with an aggregate annual compensation in excess of _____, including brief job description and current rate of compensation for each such employee.

9.5 Schedule of names of all employees by category (e.g., sales, administration, part-time/full-time).

9.6 A management organization chart.

9.7 Any labor or collective bargaining agreements.

9.8 Details of material grievances, terminations, union activities, etc.

9.9 Any indemnification agreements with any employees or directors.

10. Compliance and Regulatory Matters

10.1 List of all material designations and governmental licenses, authorizations, consents and approvals that the Company has obtained in connection with the operation of its business, together with copies of such permits.

10.2 Correspondence and notices relating to contracts with any governmental entity (by the Company directly or indirectly or through any prime contractor, subcontractor or vendor) to the extent related to:

(a) any alleged violation or omission;

- (b) any negative determinations of responsibility issued against the Company with respect to any bid, quotation or proposal submitted by the Company;
- (c) any disallowance or questioning by the federal government of material costs incurred by the Company and any assessment of penalties or damages of any kind against the Company arising out of any material irregularities, misstatements or omissions relating to any of the Company's contracts, bids, quotations or proposals, past or present;
- (d) any audit; and
- (e) any denial of security clearances and permits necessary for the execution of the Company's obligations under any contract, past or present.

10.3 Reports filed and significant correspondence with any state or federal regulatory agencies during the past _____ years, as such reports and correspondence relate to the Company's operating procedures (as opposed to reports and correspondence which relate solely to the operations of the Company's clients). In connection with this request, all material in the files of the Company regarding possible environmental pollution, including correspondence with all governmental agencies and internal and consultant reports regarding same.

11. Litigation

79. Description of, and all material documents relating to, all present or threatened litigation, administrative proceedings, governmental investigations or inquiries, arbitration or claims affecting the Company. The description should include the name of the proceeding, the other parties, the relief demanded and the current status.

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*** SHARE PURCHASE AGREEMENT

THIS *** SHARE PURCHASE AGREEMENT (the “Agreement”) is made as of ***, by and among ***, an exempted company duly incorporated under the laws of the Cayman Islands (the “Company”), the other Group Companies (as defined below), *** (as defined below) and *** (as defined below) (***, and *** together, the “Initial Investors” and each individually, an “Initial Investor”), each of the Founders and the *** (as defined below) (collectively with the other parties hereto, the “Parties” and each individually, a “Party”).

RECITALS

- A. The Group Companies are currently engaged in the business of providing payment services and certain related activities in China (the “Business”).
- B. The Company has agreed to allot and issue and each of the Investors has agreed to subscribe for and purchase such number of Sale Shares, as set out opposite their respective names in Schedule A2 hereto, from the Company, subject to the terms and conditions of this Agreement. That certain share purchase agreement between the Parties in respect of the issuance of the *** Shares by the Company (the “*** Share Purchase Agreement”) will be entered into at the same time as this Agreement pursuant to which the Investors will subscribe for and purchase *** Shares from the Company on the terms and conditions set out therein.
- C. As an inducement to the Investors to enter into this Agreement, the Company and the other Group Companies have agreed to make certain representations and warranties

and provide certain covenants and agreements to the Investors in connection with the acquisition of the Sale Shares.

D. The Investors, the Company and the other Group Companies desire to enter into this Agreement on the terms and conditions hereof.

In consideration of the foregoing Recitals and the mutual promises hereinafter set forth, the sufficiency and adequacy of which consideration the Parties hereby acknowledge, the Parties, intending to be legally bound, agree as follows:

1. Definitions.

For purposes of this Agreement, the following terms shall have the following meanings: “Act” means the United States Securities Act of 1933, as amended, or any similar successor federal statute and the rules and regulations thereunder, all as the same shall be in effect from time to time.

“Additional Investors” has the meaning set forth in Section 2.6.

“Affiliate” means, with respect to a Person, any other Person that, directly or indirectly, Controls, is Controlled by or is under common Control with such Person, and any shareholder, member or partner of such Person.

“Agreement” has the meaning set forth in the preamble.

“***” means *** SP V Limited, a company incorporated under the laws of the British Virgin Islands with its registered office at _____, British Virgin Islands and its Affiliates that acquire any Shares for so long as they hold the Shares.

“Ancillary Agreements” means the Restated Memorandum and Articles, the Third Amended and Restated Right of First Refusal and Co-Sale Agreement, the Fourth Amended and Restated Investors’ Rights Agreement, the Third Amended and Restated Voting Agreement, the Share Repurchase and Exchange Agreement and the Management Warrant.

“Articles” means the Company’s Third Amended and Restated Memorandum and Articles of Association.



“AAA” means _____ Company, Inc., a corporation duly incorporated under the laws of the State of New York, and its Affiliates that acquire any Shares for so long as they hold the Shares.

“***Director” means any Director appointed to the Board of Directors by AAA.

“Board of Directors” means the board of Directors of the Company.

“Books and Records” has the meaning set forth in Section 3.25.

“Business” has the meaning set forth in the Recitals.

“Business Days” means a day other than a Saturday, Sunday or public holiday in Cayman Islands, Hong Kong, and PRC when banks are open for business.

“Centre” has the meaning set forth in Section 10.5(b).

“Circular 37” has the meaning set forth in Section 3.31.

“Closing” means, as applicable, a Closing in connection with the Initial Investor Investment and/or a Subsequent Closing.

“Closing Date” has the meaning set forth in Section 2.3.

“Code” has the meaning set forth in Section 3.23.

“Company” has the meaning set forth in the preamble.

“Company Consolidated Financial Statements” has the meaning set forth in Section 3.21(a).

“Company’s Account” means the bank account established by the Company with *** with the following wire instruction details: *** with the following wire instruction details:

Beneficiary Name: ***

Beneficiary Account Number: ***

Swift Code: ***

“Conditions” means the conditions set forth in Sections 5 and 6.

“Contract” or “contract” means a written or oral contract, agreement, indenture, note, bond, loan, instrument, lease, mortgage, franchise, license, commitment, purchase order, purchasing arrangement and other legally binding arrangement.

“Control”, “Controls”, “Controlled” (or any correlative term) means the possession, directly or indirectly, of the power to direct or exercise a controlling influence over the management and policies of a Person, whether through the ownership of voting securities, by contract, by representation on the board of directors of such Person or otherwise. Without limiting the generality of the foregoing, for purpose of this definition, ownership of 50% or more of any class of the voting securities of a Person (including a limited partnership interest, which shall be considered to be a class of voting securities if it affords the limited partner any authority to participate in appointing or removing general partners) or the right to nominate or appoint to, or otherwise control the election of a majority of the directors on a Person’s board of directors shall be deemed Control of such Person. A Person shall also be deemed to Control another Person if it is a general partner, managing member or trustee of such Person.

“Control Documents” means the Loan Agreement (借款协议) signed in *** by and between ***and ***; the Equity Pledge Agreement (股权质押协议) signed in *** by and among ***, ***, *** and ***; the Power of Attorney (授权委托书) signed in *** by *** and ***; the Purchase Option Agreement (购买权协议) signed in *** by and among ***, ***, *** and ***; the Exclusive Consultancy and Services Agreement (独家咨询与服务协议) dated *** by and between ***and ***; the Loan Agreement (借款协议) dated *** by and among ***, *** and ***; the Equity Pledge Agreement (股权质押协议) dated *** by and among ***, ***, *** and ***; the Power of Attorney (授权委托书) dated *** by *** and ***; the Purchase Option Agreement (购买权协议) dated *** by and among ***, ***, *** and ***; the Exclusive Consultancy and Services Agreement (独家咨询与服务协议) dated *** by and between *** and ***; the Loan Agreement (借款协议) signed in 2012 by and among ***, *** and ***; the Equity Pledge Agreement (股权质押协议) signed in 2012 by and among ***, ***, *** and ***; the Power of Attorney (授权委托书) by *** and ***; the Purchase Option Agreement (购买权协议) signed in 2012 by and among ***, ***, *** and ***; and the Exclusive Consultancy and Services Agreement (独家咨询与服务协议) signed in



2012 by and between *** and ***.

“Conversion Shares” means the Ordinary Shares of the Company reserved or to be reserved for issuance in the event of the conversion of any Preference Shares, Non-Voting Ordinary Shares and Non-Voting Preference Shares.

“Covenants” means the covenants set forth in Section 7.

“Deliverables” has the meaning set forth in Section 2.3(b).

“Directors” means the directors, from time to time, of the Company.

“Domestic Entities” means ***, ***, ***, ***, ***, ***, ***, **, each a limited liability company organized and existing under the Laws of the PRC, and their respective, subsidiaries, affiliates and branch offices established under the laws of the PRC from time to time.

“Encumbrance” means any and all liens, charges, security interests, options, claims, assessments, mortgages, pledges, proxies, voting trusts or agreements, licenses, obligations, understandings or arrangements or other restrictions on title or transfer of any nature whatsoever, except as set forth in this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement, and restrictions on resale of securities under applicable securities laws.

“ESOP” shall refer to the Company’s *** Global Share Plan and *** Share Incentive Plan.

“ESOP Shares” has the meaning set forth in Section 3.2(b)(v).

“***” means ***, a limited partnership incorporated under the laws of the PRC, and its Affiliates that acquire any Shares for so long as they hold the Shares.

“Financial Accounts and Statements” has the meaning set forth in Section 3.21(a).

“Financial Accounts and Statement Date” has the meaning set forth in Section 3.21(b).

“First Closing” means the earliest Closing to occur in connection with the Initial Investor Investment.

“Founders” means ***, a Chinese citizen whose citizenship identification card number has been provided previously to the Investors and ***, a Chinese citizen whose citizenship identification card number has been provided previously to the Investors.

“****” means the following holding companies owned by the Founders: ***, a company incorporated under the laws of British Virgin Islands, ***, a company incorporated under the laws of British Virgin Islands, ***, a company incorporated under the laws of British Virgin Islands, ***, a company incorporated under the laws of British Virgin Islands, and ***, a company incorporated under the laws of British Virgin Islands.

“Founder Related Parties” means the Founders and any of their respective immediate family members (connected with such natural Person by blood, adoption or affinity), nominees and any entities under the Control of any of the foregoing and any trust for any of the foregoing's benefit and the ***.

“Governmental Authorizations” has the meaning set forth in Section 3.4(e).

“Government Official” has the meaning set forth in Section 3.29.

“Governmental or Regulatory Authority” means any nation or government or any province or state or any other political subdivision thereof, or any entity, authority or body exercising executive, legislative, judicial, regulatory or administrative functions of or pertaining to government, including, without limitation, any government authority, agency, department, board, commission or instrumentality or any political subdivision thereof, any court, tribunal or arbitrator, and any self-regulatory organization.

“Group Company” means the Company and any Person (other than a natural Person): (i) that is directly or indirectly Controlled by the Company; or (ii) whose assets, or portions thereof, are consolidated with the net earnings of the Company and are recorded on the books of the Company for financial reporting purposes in accordance with ***, from time to time, which at the date of this Agreement includes, without limitation, the Domestic Entities, ***, a company incorporated under the laws of British Virgin Islands, ***, a company incorporated under the laws of British Virgin Islands, ***, a company incorporated under the laws of Cayman Islands, ***, a company incorporated under the laws of British Virgin Islands, ***, a company incorporated under the laws of Hong Kong, ***, a company incorporated under the laws of the State of Delaware, *** a company incorporated under the laws of England and Wales, and *** a company



incorporated under the laws of Hong Kong.

“****” means *** ***, a company incorporated under the laws of the PRC.

“****” means ***.

“****” means ***, a company incorporated under the laws of the PRC.

“Hong Kong” means Hong Kong Special Administrative Region of the PRC.

“Indemnification Agreement” has the meaning set forth in Section 5.13.

“Indemnifiable Loss” has the meaning set forth in Section 8.1.

“Indemnified Party” has the meaning set forth in Section 8.1.

“Indemnity” or the “Indemnities” has the meaning set for the in Section 8.2.

“Initial Investor” has the meaning set forth in the preamble.

“Initial Investor Investment” means the purchase (whether simultaneously in one closing or at different times in multiple closings as contemplated in Section 2.3) by the Initial Investors of the Sale Shares as contemplated by this Agreement and the *** Share Purchase Agreement.

“Intellectual Property” means any and all (i) patents, all patent rights and all applications therefor and all reissues, reexaminations, continuations, continuations-in-part, divisions, substitutions, and term extensions thereof, (ii) inventions (whether patentable or not), discoveries, improvements, concepts, innovations and industrial models, (iii) registered and unregistered copyrights, copyright registrations and applications, author's rights and works of authorship (including, without limitation, artwork of any kind and software of all types in whatever medium, inclusive of computer programs, source code, object code and executable code, and related documentation), (iv) URLs, web sites, web pages and any part thereof, (v) technical information, know-how, databases, trade secrets, drawings, designs, design protocols, specifications for parts and devices, quality assurance and control procedures, design tools, manuals, research data concerning historic and current research and development efforts, including, without limitation, the results of successful and unsuccessful designs, databases and proprietary data, (vi) proprietary processes, technology, engineering, formulae, algorithms and operational procedures, (vii) trade names, trade dress,



“Longstop Date” means 6.00pm (Hong Kong time) on *** or such later time and date as may be agreed in writing by ***, *** and the Company.

“Majority *** Shareholders” means the holders of more than 50% of the total number of the then outstanding *** Shares, voting as a single class.

“Management Warrant” means a warrant issued by the Company to the management team represented by Mr. *** in the form and substance attached hereto as Exhibit K, which entitles the grantees thereto to purchase up to *** Ordinary Shares of the Company under the terms and conditions therein.

“Material Adverse Event” means any change, event or effect that (a) in the case of the Company or its subsidiaries (including, without limitation, the Domestic Entities), is or would reasonably be expected to be materially adverse to the business, operations, assets, liabilities, condition (financial or otherwise) or results of operations of the Company and its subsidiaries (including, without limitation, the Domestic Entities) taken as a whole, or (b) in the case of a Party (including, without limitation, the Company and the Domestic Entities), is or would materially adversely affect such a Party's ability to perform its obligations under this Agreement, any Ancillary Agreement, the *** Share Purchase Agreement or in connection with the transactions contemplated hereunder.

“Material Contract” means (i) any Contract which creates revenue for any Group Company in an amount in excess of US\$*** (or the equivalent amount in another currency) per year or creates a liability on one of the Group Companies in excess of US\$*** (or the equivalent amount in another currency) per year, (ii) any Contract of the type described in Section 3.13(a), (iii) the Control Documents, (iv) any strategic alliance, joint development or joint marketing Contract in an amount in excess of US\$*** (or the equivalent amount in another currency), (v) any Contract in an amount in excess of US\$*** (or the equivalent amount in another currency) that contains, constitutes or provides for any exclusive marketing or distribution or other exclusive rights applicable to any Group Company or to which any Group Company is subject, (vi) any Contract which is not terminable by a Group Company upon thirty (30) days

or less notice by such Group Company without penalty or obligation to make any payment based on such termination in excess of US\$*** (or the equivalent amount in another currency) in the aggregate, (vii) any Contract which provides for the sale of products or services to any Governmental Authority, (viii) any Contract which contains any covenant or other provision (A) limiting (or purporting to limit) in any material respect the right of any Group Company (x) to engage in any line of business, (y) to develop, manufacture, market or distribute products or services or (z) to compete with any Person or in any area or territory, excluding any Contract between any Group Company and any distribution or marketing agent of such Group Company, or (B) granting any exclusive distribution rights with respect to a product or service of the Company or its Subsidiaries, (ix) any material lease agreement, (x) any Contract that contains, constitutes or provides for any material license of any Intellectual Property or other proprietary right to or from a Group Company (other than (A) the license of a Group Company's software and products in object code form in the ordinary course of business pursuant to standard end-user agreements the form of which has been provided to counsel for the Investors or (B) the license to a Group Company of standard, generally commercially available, "off-the-shelf" third party products that are not and will not to any extent be part of, or influence development of, or require payment with respect to, any product, service or intellectual property offering of a Group Company), (xi) any Contract that contains or provides for indemnification in an amount in excess of US\$*** (or the equivalent amount in another currency) by a Group Company with respect to infringements of proprietary rights, (xii) any Contract with any Founder, ***, Founder Related Parties, Related Party or Key Employee, (xiii) any Contract for indebtedness of, including, without limitation, any guarantee or security given in respect of any indebtedness by, a Group Company in an amount in excess of US\$ *** (or the equivalent amount in another currency), (xiv) any Contract or commitment for capital expenditure that requires payment by the Group Companies in excess of US\$*** (or the equivalent amount in another currency), and (xv) any Contracts or policies for insurance of any kind or nature held by a Group Company



of which the annual premium payment exceeds US\$*** (or the equivalent amount in another currency).

“Non-Voting Ordinary Share(s)” means a non-voting, redeemable ordinary share of par value US\$*** each in the share capital of the Company, issued or designated as a “Non-Voting Ordinary Share” with the rights, privileges and authorities provided for in the Restated Memorandum and Articles.

“Non-Voting Preference Share(s)” means a non-voting preference share of par value US\$*** each in the share capital of the Company, issued or designated as a “Non-Voting Preference Share” with the rights, privileges and authorities provided for in the Restated Memorandum and Articles and which are divided into three separate series (Non-Voting *** Shares, Non-Voting *** Shares and Non-Voting *** Shares).

“Non-Voting *** Share(s)” means a non-voting *** share of par value US\$*** each, issued or designated as a “Non-Voting *** Share”, with the rights, privileges and authorities provided for in the Restated Memorandum and Articles.

“Non-Voting *** Share(s)” means a non-voting *** share of par value US\$*** each, issued or designated as a “Non-Voting *** Share”, with the rights, privileges and authorities provided for in the Restated Memorandum and Articles.

“Non-Voting *** Share(s)” means a non-voting *** share of par value US\$*** each, issued or designated as a “Non-Voting *** Share”, with the rights, privileges and authorities provided for in the Restated Memorandum and Articles.

“Officer” means, (i) as to the Company, a chief executive, managing director, president, general manager, vice president, chief operating officer, chief technology officer, chief marketing officer, chief human resources officer, secretary, treasurer or principal financial officer, comptroller or principal accounting officer of the Company, any person routinely performing corresponding functions or executive or managerial functions with respect to the Company and the legal representative of each Subsidiary of the Company, and (ii) as to a Domestic Entity, the legal representative of such Domestic Entity.

“Operating Agreement” means the Amended and Restated Operating Agreement by and

among the, the Company, ***, ***, ***, ***, ***, the *** dated ***.

“Order” means any injunction, judgment, decree, order, ruling, assessment or writ of any Governmental or Regulatory Authority.

“Ordinary Shares” means the ordinary shares, par value US\$*** per share, of the Company.

“Party” and “Parties” have the respective meanings set forth in the preamble.

“Payment Service License” means the license a non-financial institution should obtain in accordance with the Measures for the Administration of Payment Services of Non-Financial Institutions promulgated by PBOC on *** and effective on *** and other related laws and regulations of the PRC to become a payment institution and provide payment services.

“PBOC” means People’s Bank of China.

“Person” means any individual, sole proprietorship, partnership, limited partnership, limited liability company, firm, joint venture, estate, trust, unincorporated organization, association, corporation, institution, public benefit corporation, entity or Governmental or Regulatory Authority or other enterprise or entity of any kind or nature.

“PRC” means the People’s Republic of China, but solely for the purposes of this Agreement, excluding the Hong Kong Special Administrative Region, Macau Special Administrative Region and the island of Taiwan.

“PRC GAAP” means generally accepted accounting principles in the PRC, consistently applied.

“Preference Shares” means together the *** Shares, the *** Shares, the *** Shares and the *** Shares, each at a par value US\$*** per share, of the Company.

“Purchase Price” has the meaning set forth in Section 2.2.

“Reimbursement Agreement” means the agreement between the Company, the Selling Shareholders and the Initial Investors in substantially the same form attached hereto as Exhibit M.

“Related Party” means each member or shareholder or equity interest holder or ultimate beneficiary of any Group Company (other than, in relation to a Group Company, any



other Group Company), each Affiliate of any Group Company (other than, in relation to a Group Company, any other Group Company), and each member of the immediate family (by blood, adoption or affinity) of each of the foregoing that is an individual.

“Restated Memorandum and Articles” means the Fourth Amended and Restated Memorandum of Association and Articles of Association of the Company in substantially the form attached hereto as Exhibit A.

“Right of First Refusal and Co-Sale Agreement” has the meaning set forth in Section 3.2(d).

“Sale Shares” means the Shares of *** Shares to be issued and sold hereunder as provided in Section 2.1.

“Schedule of Exceptions” has the meaning set forth in Schedule B.

“SEC” means the Securities and Exchange Commission of the United States of America.

“Securities” has the meaning set forth in Section 4.2.

“Selling Shareholders” means the selling shareholders under the Share Repurchase and Exchange Agreements.

“*** Shares” means the *** shares, par value US\$*** per share, of the Company, with, as of the date hereof, the rights, preferences and privileges as set forth in the Articles and, as of the First Closing, the rights, preferences and privileges as set forth in the Restated Memorandum and Articles.

“*** Shares” means the *** shares, par value US\$*** per share, of the Company, with, as of the date hereof, the rights, preferences and privileges as set forth in the Articles and, as of the First Closing, the rights, preferences and privileges as set forth in the Restated Memorandum and Articles.

“*** Shares” means the *** shares, par value US\$*** per share, of the Company, with, as of the date hereof, the rights, preferences and privileges as set forth in the Articles and, as of the First Closing, the rights, preferences and privileges as set forth in the Restated Memorandum and Articles.

“*** Shares” means collectively the *** Shares and *** Shares.

“*** Shares” means preference shares in the share capital of the Company which are designated as *** shares each with a par value of US\$*** per share and each having the rights, preferences and privileges as set forth in the Restated Memorandum and Articles.

“*** Shares” means those preference shares in the share capital of the Company which are designated as *** shares each with a par value of US\$*** per share and each having the rights, preferences and privileges as set forth in the Restated Memorandum and Articles.

“*** Share Purchase Agreement” has the meaning as set forth in the Recitals.

“Share Repurchase and Exchange Agreement” means the agreement between the Company and the Selling Shareholders for the repurchase of Ordinary Shares and/or *** Shares, *** Shares and *** Shares by the Company from such Selling Shareholders and pursuant to which *** will exchange certain *** Shares, *** Shares, *** Shares and Ordinary Shares that it holds in the Company for certain Non-Voting *** Shares, Non-Voting *** Shares and Non-Voting *** Shares and certain Non-Voting Ordinary Shares of the Company by way of a repurchase of the relevant existing shares held by *** and issue of new non-voting shares of the Company as consideration.

“Share” and “Shares” means any one or more of the following, as applicable, an Ordinary Share, a Non-Voting Ordinary Share, a Preference Share or a Non-Voting Preference Share or shares in the Company.

“Standalone Financial Statements” has the meaning set forth in Section 3.21(a).

“Subsidiary” means, as to any Person, any Person (A) of which such first Person directly or indirectly owns securities or other equity interests representing more than fifty percent (50%) of the aggregate voting power, (B) of which such first Person possesses the right to elect more than fifty percent (50%) of the directors or Persons holding similar positions, (C) which such first Person otherwise Controls or (D) the financial position and results of operation of which such first Person would be required to consolidate if preparing financial statements under ***.

“Subsequent Closing” has the meaning set forth in Section 2.6.



“Tax” means (i) any form of tax in any part of the world including, without limitation, all forms of income tax, profits tax, interest tax, stamp duty, estate duty, value added tax, value appreciation tax, withholding tax, property tax, capital gains tax and all levies, duties, charges, fees, social security contributions, deductions and withholdings whatsoever charged or imposed by any statutory, governmental, state, federal, provincial, local or municipal authority whatsoever and wheresoever, (ii) any interest, penalty, surcharge or fine in connection with clause (i), and (iii) any form of transferee liability imposed in connected with any item described in clauses (i) and (ii).

“***” means generally accepted accounting principles in the United States.

“*** Share Incentive Plan” means the employee stock option plan that the Company adopted in *** to set forth the terms and conditions for the grant and exercise of the stock options which entitle the holders thereof to purchase up to *** Ordinary Shares.

“*** Share Incentive Plan” means the employee stock option plan that the Company adopted in *** to set forth the terms and conditions for the grant and exercise of the stock options which entitle the holders thereof to purchase up to *** Ordinary Shares.

“Voting Agreement” means the Third Amended and Restated Voting Agreement in the form attached hereto as Exhibit D.

“Warrant Shares” has the meaning set forth in Section 3.2(b)(vi).

“Warrantors” means the Company, the other Group Companies, the Founders and the ***.

“Warrantors’ Knowledge” means to the combined, aggregated knowledge of the Warrantors and, by way of clarification, if any Warrantor has actual knowledge with respect to any particular information, then all of the Warrantors shall be deemed to have actual knowledge of such information for purposes of Section 3 of this Agreement.

“WFOE Lease” has the meaning set forth in Section 3.33(b).

2. Issue and Subscription.

2.1 Sale Shares.

On the terms and subject to the conditions of this Agreement, the Company agrees to allot and issue to the Investors and each Investor agrees, severally but not jointly, to subscribe for and purchase such number of Sale Shares as set out opposite its name in Schedule A2 hereto for its respective portion of the Purchase Price (as defined below) as set out opposite its name in Schedule A2, with full title guarantee, free from all Encumbrances against full payment therefor by the Investors upon the allotment and issue of such Sale Shares.

2.2 Purchase Price.

The purchase price for the Sale Shares to be purchased by each Investor shall be the aggregate total of the consideration set out opposite such Investor's name in Schedule A2 of this Agreement (the "Purchase Price") which shall be equivalent to a per Sale Share purchase price of US\$***. Each Investor shall pay or cause to be paid the applicable Purchase Price in cash as provided in Section 2.3 and Section 2.5 of this Agreement.

2.3 Closing and Deliverables.

(a) Any Closing in connection with the Initial Investor Investment shall take place remotely through the exchange of documents, the applicable Purchase Price and signatures, within five (5) Business Days after each of the Conditions (other than those Conditions to be satisfied at Closing) has been satisfied or waived by the Party or Parties entitled to waive such Condition, or at such other time and place as the Initial Investor(s) participating in such Closing and the Company may agree upon in writing. The Parties have agreed to use their reasonable best efforts to cause the Closing with respect to Sale Shares to be purchased by *** to occur no later than ***, *** with the remainder of the Initial Investor Investment to occur no later than ***. From the date of this Agreement until the completion of the Initial Investor Investment applicable to it, the Initial Investors shall use their respective reasonable best efforts to transfer, on an



ongoing basis, sufficient US dollar funds to the Company's Account in order to satisfy its obligations under this Agreement to pay the Purchase Price for the Sale Shares to be purchased by it. If, however, *** is unable to complete the Initial Investor Investment as to all of the Sale Shares to be purchased by it by *** due to a foreign exchange control or related fund remittance bank procedure required for the transfer of funds outside of the PRC, (i) *** shall proceed with a Closing by *** with respect to such portion of the Sale Shares as it is able to purchase on such date based on the US dollar funds then available to *** outside the PRC to pay the Purchase Price therefor and (ii) *** shall purchase the remaining Sale Shares to be purchased by it but not purchased by it pursuant to subsection (i) above as soon as possible on or before the Longstop Date, based on the US dollar funds then available to *** to pay the Purchase Price. Subject to Section 2.6 hereof, following the date of this Agreement, the Company and any Additional Investors that shall have executed a Joinder may engage in Subsequent Closings, which, following the execution of a Joinder, shall take place remotely through the exchange of documents and signatures and the payment of the applicable Purchase Price, within five (5) Business Days after each of the Conditions (other than those Conditions to be satisfied at Closing) has been satisfied or waived by the Party or Parties entitled to waive such Condition, or at such other time and place as the Parties to the Subsequent Closing may agree upon in writing. The respective date of any Closing with respect to the Initial Investor Investment or any Subsequent Closing is referred to as a "Closing Date".

(b) At each Closing, the Company shall deliver or cause to be delivered to each applicable Investor the following deliverables (the "Deliverables"):

- (i) new share certificates duly issued by the Company and signed by its director representing such Investor's respective ownership of the Sale Shares (the "Investor's Share Certificates");
- (ii) a true copy of the updated register of members of the Company certified by a Director or the registered office of the Company to record the respective Investors as the legal holders of their respective portion of the Sale Shares;

- (iii) the signed written resignations, in agreed form, of the ***Directors, resigning from their respective offices with the Company;
- (iv) signed copies of (1) the shareholders resolutions and (2) board resolutions of the Company, in agreed form to: (a) adopt or approve execution of the Ancillary Agreements, the *** Share Purchase Agreement and this Agreement, (b) authorize the allotment and issue of the Sale Shares, and (c) accept the resignation of the ***Directors, with effect from the First Closing; and
- (v) the following items pursuant to Section 5 hereof: (1) the Compliance Certificate specified in Section 5.3, (2) the opinion of the Company's PRC Counsel specified in Section 5.7, (3) the opinion of the Company's Cayman Islands Counsel specified in Section 5.8, and (4) the Financial Accounts and Statements and Standalone Financial Statements specified in Section 5.17.
- (c) Exhibit O sets forth illustrative timelines and steps in connection with Closings contemplated hereunder. Exhibit O (as may be amended and supplemented by the written consent of, with respect to each Closing set forth in Exhibit O, all parties participating in such Closing) represents the parties' agreement as to the required mechanics and steps for each Closing; however, any particular dates or times set forth therein will not create additional liability for any party unless failure to meet any specified deadline would otherwise breach a provision of this Agreement.

2.4 Obligation of Investors.

The obligation of each Investor under this Agreement shall be to subscribe for and purchase (subject to the terms and conditions stated herein) all (but not less than all) of the Sale Shares allocated to them as set out in Schedule A2 hereof (or in any Joinder hereto).

2.5 Purchase Price Payment Procedures.

- (a) With respect to the Closing by ***, (1) the aggregate Purchase Price to be paid by it shall be paid by wire transfer of immediately available U.S. dollars to the Company's Account at 9:00 AM Hong Kong time three Business Days prior to the Closing Date;



and (2) the Company shall hold such funds after its receipt of the funds until the Closing, at which time the Company shall transfer the relevant funds to the applicable Selling Shareholder as specified in the Share Repurchase and Exchange Agreement.

(b) With respect to a Closing by ***, (1) the relevant Purchase Price to be paid by it shall be paid to the Company's Account at 9:00 A.M. Hong Kong time on the applicable Closing Date; and (2) the Company shall immediately after its receipt of the funds shall transfer the relevant funds to the Selling Shareholders as specified in the Share Repurchase and Exchange Agreement.

(c) With respect to a Subsequent Closing, (1) the relevant Purchase Price to be paid by the Additional Investors and/or Initial Investors shall be transferred to the Company's Account in U.S. dollars no later than 3 Business Day prior to the applicable Closing Date; and (2) the Company shall transfer the relevant funds to the Selling Shareholders as specified in the Share Repurchase and Exchange Agreement at 9:00 A.M. Hong Kong time on the relevant Closing Date.

(d) It is understood that in no case shall a Closing be completed, or any signature pages or documents held in escrow in connection with such Closing be released, until the applicable funds are received by the applicable recipients under this Agreement and the Share Repurchase and Exchange Agreement.

2.6 Subsequent Closing.

(a) Subject to the terms and conditions of this Agreement, the Company may sell newly issued *** Shares to one or more purchasers who execute a Joinder to this Agreement (the "Additional Investors") at a Closing (each a "Subsequent Closing"), provided that, unless otherwise approved in writing by the Board of Directors and the Initial Investors, (i) any Subsequent Closing must occur no later than ***; (ii) the total investment amount of such Subsequent Closings shall be at least US\$*** million and the total investment amount of all Closings under this Agreement and the *** Share Purchase Agreement and in any Joinder hereto or thereto shall not exceed US\$*** million in the aggregate (iii) each Additional Investor shall become a party to, and be bound by, the Ancillary Agreements by executing and delivering to the Company

a Joinder and a counterpart signature page to each such Ancillary Agreements; (iv) as far as each Additional Investor is concerned, the ratio between the total number of *** Shares and *** Shares sold to and purchased by such Additional Investor at each Subsequent Closing shall mirror the ratio for each Initial Investor in the Closing with respect to the Initial Investor Investment; and (v) each Initial Investor shall have the right of first participation in each Subsequent Closing; provided that in the event the aggregate investment commitment from such Initial Investors and any Additional Investors exceeds the investment limits set forth in subsection (ii) above, the Company shall allot the then available unsubscribed investment among such Initial Investors and the Additional Investors on a pro rata basis based on their respective investment commitments in each Subsequent Closing; provided further that so long as the Initial Investor Investment shall have been completed within the time periods set forth in Section 2.3(a), the Initial Investors' respective investment amounts as set forth in Schedule A2, shall not be subject to reduction.

3. Representations and Warranties of the Warrantors.

Except as set forth in a Schedule of Exceptions attached hereto as Schedule B (as it may be updated after the date hereof but only with respect to subsequent events, the "Schedule of Exceptions"), each of the Warrantors hereby jointly and severally represents and warrants to each of the Investors on the date of this Agreement (or, the date of the applicable Joinder, as applicable) and on the applicable Closing Date as set forth below. Each exception (or disclosure) set forth in the Schedule of Exceptions is identified by reference to the specific section or subsection of this Agreement and relates only to such section or subsection and does not qualify and shall not be construed as qualifying any other representation or warranty, provided however, that if the relevance of that reference as an exception to (or a disclosure for purposes of) other representations and warranties of the Warrantors is reasonably apparent from the face of such exception (or disclosure) then such exception (or disclosure) shall also be



deemed to modify such other representations and warranties of the Warrantors to which such relevance is reasonably apparent. The exceptions (and disclosures) set forth on the Schedule of Exceptions shall be deemed to be representations and warranties as if made hereunder.

3.1 Organization, Good Standing and Qualification.

The Company is duly organized, validly existing and in good standing under the Laws of the Cayman Islands and each of the other Group Companies is duly organized, validly existing and in good standing with its business license and articles of association, as applicable, in full force and effect under, and in material compliance with, the Laws of the jurisdiction in which it is organized and in each jurisdiction in which it operates. Each Group Company has all requisite corporate power and authority to own, lease and operate its properties and to carry on the Business as now conducted and as contemplated for the purposes of the Business and is duly qualified to transact business and is in good standing in each jurisdiction in which it conducts business.

3.2 Capitalization and Voting Rights.

Immediately prior to First Closing and the adoption of the Restated Memorandum and Articles, the authorized capital of the Company will consist of:

(a) Preference Shares.

*** preference shares, par value US\$***, of which:

- (i) *** shares have been designated as *** Shares, all of which are outstanding and have been duly and validly authorized and issued and are fully paid and non-assessable and were issued in accordance with all applicable Laws;
- (ii) *** shares have been designated as *** Shares, all of which are outstanding and have been duly and validly authorized and issued and are fully paid and non-assessable and were issued in accordance with all applicable Laws;
- (iii) *** shares have been designated as *** Shares, all of which are outstanding and have been duly and validly authorized and issued and are fully paid and non-assessable and were issued in accordance with all applicable Laws; and

(iv) The rights, privileges and preferences of the Preference Shares are as stated in the Restated Memorandum and Articles.

(b) Ordinary Shares.

*** ordinary shares, par value US\$*** per share, of which *** shares are outstanding and have been duly and validly authorized, designated as Ordinary Shares and issued and are fully paid and non assessable and were issued in accordance with all applicable Laws. Of the authorized but unissued Ordinary Shares:

- (i) *** Ordinary Shares are reserved for issuance upon conversion of the *** Shares;
 - (ii) *** Ordinary Shares are reserved for issuance upon conversion of the *** Shares;
 - (iii) *** Ordinary Shares are reserved for issuance upon conversion of the *** Shares;
- and
- (iv) *** shares are reserved for issuance upon exercise of the stock options issued under the ESOP, as amended from time to time (the “ESOP Shares”).

(c) The Schedule of Exceptions completely and accurately lists all those who are the registered holders of Ordinary Shares and Preference Shares and the respective numbers of the shares held thereby as of the date hereof. The Schedule of Exceptions completely and accurately lists all those who are beneficial owners of Ordinary Shares and Preference Shares with respect to which the Founders are the registered holders as of the date hereof. The Schedule of Exceptions completely and accurately lists those Persons who have been notified in writing to the Warrantors as the beneficial owners of Ordinary Shares and Preference Shares if different from the registered holders as of the date hereof. The capitalization tables of the Company on a fully diluted and as-converted basis immediately prior to and following the First Closing are set forth in the Schedule of Exceptions.

(d) Except for (A) the conversion privileges of the *** Shares, the *** Shares, the *** Shares and the *** Shares and the limited conversion privileges of the Non-Voting Preference Shares and Non-Voting Ordinary Shares, (B) the rights provided in Section 2.4(d) of that certain Fourth Amended and Restated Investors’ Rights Agreement in the form attached hereto as Exhibit B (the “Investors’ Rights Agreement”), (C) the



rights provided in that certain Third Amended and Restated Right of First Refusal and Co-Sale Agreement in the form attached hereto as Exhibit C (the “Right of First Refusal and Co-Sale Agreement”), and (D) currently outstanding options to purchase *** Ordinary Shares granted to employees and other service providers pursuant to the Company's *** Share Incentive Plan and the *** Ordinary Shares issuable upon exercise of options to be granted under the *** Share Incentive Plan as approved by the shareholders of the Company and warrant to purchase *** Ordinary Shares granted to management team pursuant to the Management Warrant, there are no outstanding options, warrants, rights (including, without limitation, conversion, exchange or preemptive rights) or securities convertible, exchangeable or exercisable for or agreements for the issuance by or purchase or acquisition from the Company of, any shares of its share capital or any options, warrants or rights to purchase any shares of its share capital or any such securities of the Company. Other than the Ancillary Agreements and the *** Share Purchase Agreement, the Company is not a party or subject to any agreement or understanding, and, to the Warrantors’ Knowledge, there is no agreement or understanding between any Persons and/or entities, which affects or relates to the voting or giving of written consents with respect to any security or by a director of the Company. As of the date hereof, the Company has sufficient authorized share capital for issuance of *** Ordinary Shares upon exercise of options pursuant to the ESOP and the Management Warrant.

(e) The Schedule of Exceptions sets forth a complete list as of the date hereof of the aggregate number of Shares of the Company owned by all the Key Employees. Except as set out in the Schedule of Exceptions, no share plan, share purchase, share option or other agreement or understanding between the Company and any holder of any securities or rights exercisable or convertible for securities provides for acceleration or other changes in the vesting provisions or other terms of such agreement or understanding as the result of the occurrence of any event.

(f) Immediately prior to the issuance of shares in the First Closing and reflecting the adoption of the Restated Memorandum and Articles, the authorized capital of the

Company will be as specified in the Restated Memorandum and Articles.

3.3 Subsidiaries.

Except as disclosed in the Schedule of Exceptions, none of the Company or the other Group Companies owns or Controls, directly or indirectly, any interest in any other corporation, association, or other business entity as of the date hereof. As of the date hereof, neither the Company nor any other Group Company is a participant in any joint venture, partnership, or similar arrangement. All of the outstanding shares or other voting securities of each of the Group Companies (other than the Company itself) is owned by the Company, directly or indirectly, free and clear of any Encumbrance and free of any other limitation or restriction (including any restriction on the right to vote, sell or otherwise dispose of such shares or other voting securities).

3.4 Group Companies.

(a) The registered capital (or issued capital, as the case may be) of each of the Group Companies is fully paid as required and one hundred percent (100%) duly vested in the respective shareholders of such entity in accordance with applicable Laws, rules and regulations of the jurisdiction in which it is organized and is held by the Persons as set forth in Schedule of Exceptions. Other than the transactions contemplated in this Agreement, the *** Share Purchase Agreement, any Joinder executed pursuant to either of the foregoing, the Ancillary Agreements or as otherwise disclosed in the Schedule of Exceptions, there are no outstanding rights or commitments made by any Group Company to issue, purchase or sell, or, to the Warrantors' Knowledge, by any Group Company's other investors, joint venture partners or owners to purchase or sell, any equity interest in any Group Company.

(b) Except as contemplated under this Agreement, the Control Documents, the Ancillary Agreements, the *** Share Purchase Agreement and other agreements and documents otherwise required in connection with implementing the transactions contemplated hereby or thereby, there are no: (a) resolutions pending to increase the share capital or registered capital of any Group Company or cause the liquidation, winding up, or dissolution of any Group Company, nor has any distress, execution



or other process been levied against any Group Company, (b) dividends which have accrued or been declared but are unpaid by any Group Company, (c) obligations, contingent or otherwise, of any Group Company to repurchase, redeem, or otherwise acquire any share capital, or (d) outstanding or authorized equity appreciation, phantom equity, equity plans or similar rights with respect to any Group Company. All dividends (if any) or distributions (if any) declared, made or paid by each Group Company, and all repurchases and redemptions of share capital of each Group Company (if any), have been declared, made, paid, repurchased or redeemed, as applicable, in accordance with its constitutional documents and all applicable Laws.

(c) Except as provided in the Schedule of Exceptions, none of the Group Companies maintains any office or branch.

(d) The constitutional documents relating to each of the Group Companies are valid and have been duly approved or issued (as applicable) by the appropriate Governmental or Regulatory Authorities and are valid and in full force and effect.

(e) All consents, approvals, Orders, authorizations or registrations, licenses, permits, qualifications, designations, declarations or filings with any Governmental or Regulatory Authority (the “Governmental Authorizations”) required under Law for the due and proper establishment of each of the Group Companies have been duly obtained from the appropriate Governmental or Regulatory Authorities and are in full force and effect.

(f) All material filings and registrations with, or Governmental Authorizations from, Governmental or Regulatory Authorities required in respect of each of the Group Companies and its operations as currently operated or as contemplated for the purposes of the Business, including but not limited to the registrations with the Ministry of Commerce, the Ministry of Information Industry, the State Administration of Industry and Commerce, the State Administration for Foreign Exchange, the PBOC, tax bureau, customs authorities, product registration authorities, health regulatory authorities and the local counterpart of each of the aforementioned Governmental or Regulatory Authorities, as applicable, have been duly completed in accordance with the relevant

rules and regulations.

(g) None of the Group Companies has received any letter or written notice, or to the Warrantors' Knowledge, any other notice, from any relevant authority notifying it of the revocation or violation of any Governmental Authorization issued to it for non-compliance or the need for compliance or remedial actions in respect of the activities carried out directly or indirectly by any of the Group Companies or of any investigation or inquiry with respect to any of the foregoing.

(h) Each of the Group Companies has been conducting its business activities within the permitted scope of business or is otherwise operating its businesses in full compliance with all relevant Laws, including, without limitation, holding and complying with all material Governmental Authorizations.

(i) No Group Company has any reason to believe that any Governmental Authorization necessary for the conduct of any part of its business which is subject to periodic renewal will not be granted or renewed by the relevant Governmental or Regulatory Authorities.

(j) With regard to employment and labor matters, each of the Group Companies has complied in all material respects with all applicable Laws, including, without limitation, laws and regulations pertaining to employment relationships, welfare funds, housing funds, social benefits, social security, medical benefits, insurance, retirement benefits and pensions. The provision for contributions to social security, housing funds and social insurance of each Group Company as shown in the Financial Accounts and Statements is adequate for such contributions (including, without limitation, all penalties and interest accruing) due or accrued as of the date thereof (including, without limitation, any penalties relating to any non-payment of such contributions), and since ***, *** the Group Companies have continued to make adequate provision (including, without limitation, all penalties and interest accruing) for such contributions in compliance with Law.

3.5 Authorization.

Each Warrantor has all requisite power and authority to execute and deliver this



Agreement, the Ancillary Agreements and the *** Share Purchase Agreement to which it is a party and to carry out and perform its obligations thereunder. All actions on the part of each Warrantor, its officers, directors and shareholders necessary for the authorization, execution and delivery of this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement to which such Warrantor is a party, the performance of all obligations of each Warrantor hereunder and thereunder, and the authorization and reservation for issuance by the Company of the Conversion Shares has been taken, and this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement to which any Warrantors is party constitute (or will, on execution and delivery thereof by such Warrantor, constitute) valid and legally binding obligations of such Warrantor, enforceable in accordance with their respective terms, except (i) as limited by applicable bankruptcy, insolvency, reorganization, moratorium, and other Laws of general application affecting enforcement of creditors' rights generally, (ii) as limited by Laws relating to the availability of specific performance, injunctive relief, other equitable remedies and statutory limitation of time within which proceedings may be brought, and (iii) to the extent the indemnification provisions contained in the Investors' Rights Agreement may be limited by applicable securities Laws.

3.6 Valid Issuance of Sale Shares.

The Sale Shares have been duly and validly authorized and will, upon issuance, have been duly and validly issued and upon payment of the Purchase Price, will be fully paid and non-assessable, and are not subject to any restrictions exercisable by the Company other than restrictions on transfer under this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement and under applicable securities Laws. The Conversion Shares have been duly authorized and reserved for issuance and, upon issuance and delivery in accordance with the terms of the Restated Memorandum and Articles and payment of the conversion price, if any, will be duly and validly issued, fully paid, and nonassessable and will be free of restrictions on transfer exercisable by the Company other than restrictions on transfer under this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement and under applicable securities

Laws.

3.7 Consents.

Except as disclosed in the Schedule of Exceptions, no consent, approval, Order, or authorization of, or registration, qualification, designation, declaration, or filing with any Governmental or Regulatory Authority or other third party by any Group Company or any Founder will be required in connection with the execution, delivery and performance of this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement and the consummation of the transactions contemplated hereby or thereby. Each such consent, approval, Order, authorization, registration, qualification, designation, declaration, or filing has been obtained and remains in full force and effect.

3.8 Offering.

Subject in part to the truth and accuracy of the Investors' representations set forth in Sections 4.2, 4.3 and 4.4 of this Agreement, the issuance of the Conversion Shares as contemplated by the Restated Memorandum and Articles will be exempt from the registration requirements of all applicable securities Laws, including without limitation the Act, and neither the Company nor any authorized agent acting on its behalf will take any action hereafter that would cause the loss of such exemption.

3.9 Litigation.

There is no action, suit, proceeding or investigation pending or, to the Warrantors' Knowledge, currently threatened against any Group Company that questions the validity of this Agreement or any Ancillary Agreement, or the right of any Group Company to enter into such agreements, or to consummate the transactions contemplated hereby or thereby, or that might result, either individually or in the aggregate in a Material Adverse Event, nor, to the Warrantors' Knowledge, is there any basis for the foregoing. The foregoing includes, without limitation, actions, suits, proceedings or investigations pending or to the Warrantors' Knowledge, threatened (or any basis therefor known to any of the Warrantors) involving the prior employment of any Group Company's employees, their use in connection with such Group Company's business of any information or techniques allegedly proprietary to any of their former employers, or



their obligations under any agreements with prior employers. No Group Company is a party to, or subject to, the provisions of any order, writ, injunction, judgment or decree of any court or Governmental or Regulatory Authority or instrumentality. There is no action, suit, proceeding or investigation by any Group Company currently pending or that any Group Company intends to initiate.

3.10 Proprietary Information Agreements.

Each present employee and officer of each Group Company who is involved in the development of any software or other Intellectual Property has executed a proprietary information and inventions agreement, and each current consultant to each Group Company has executed a consulting agreement in substantially the forms provided to counsel for the Investors. To the Warrantors' Knowledge, no such employees, officers or consultants are in violation thereof or have any contractual or other obligation that would preclude or render void or voidable any such agreement or otherwise conflict with the obligations of such employee, officer or consultant to any Group Company.

3.11 Intellectual Property and Information Technology.

(a) Each Group Company has sufficient title and ownership of or written licenses to all Intellectual Property used in the Business as now conducted and as contemplated for the purposes of the Business without any violation or infringement of, or other conflict with, the rights of others. All Intellectual Property used in the Business as now conducted and as contemplated to be conducted for the purposes of the Business which was developed or invented by any current or former employee or consultant of a Group Company is solely owned legally and beneficially by a Group Company. The Schedule of Exceptions contains a complete list of patents and pending patent applications, registrations and applications for trademarks, copyright registrations and domain names and Intellectual Property that are not registered but that are material to the Company's Business or which are exclusively licensed to any Group Company. There are no outstanding options, licenses, agreements, claims, Encumbrances or shared ownership of interests of any kind relating to any Intellectual Property that is to any extent owned by or exclusively licensed to any Group Company, nor is any Group

Company bound by or a party to any options, licenses or agreements of any kind with respect to Intellectual Property, except, in either case, for standard end-user, object code, shrinkwrap or clickwrap, internal-use software license and support/maintenance agreements. No material compensation is payable to any current or former employee or consultant of any Group Company in connection with the issuance or use of any Intellectual Property based on inventions by such Person, and all compensation due, under applicable Law or pursuant to any agreement, to any current or former employee, officer or consultant of any Group Company has been paid with respect to any inventions by any of the foregoing. No Group Company has received any written communications, or to the Warrantors' Knowledge, other communications, alleging that any Group Company has violated, infringed or misappropriated or, by conducting its business as proposed, would violate, infringe or misappropriate any of the Intellectual Property of any other Person or entity, or that any Intellectual Property owned by any Group Company is invalid, unenforceable or (with respect to any such Intellectual Property that is the subject of a registration or pending application) that such Intellectual Property is ineligible for registration, and to the Warrantors' Knowledge there is no potential basis for such an allegation or specific reason to believe that such an allegation may be forthcoming. To the Warrantors' Knowledge, no Person is violating, infringing or misappropriating any Intellectual Property owned by any Group Company, and none of the Group Companies have asserted or threatened that a Person is currently violating, infringing, or misappropriating any such Intellectual Property. To the Warrantors' Knowledge, no employee of any Group Company is obligated under any contract (including, without limitation, licenses, covenants or commitments of any nature) or other agreement, or subject to any judgment, decree or order of any court or administrative agency, that would interfere with the use of his or her best efforts to promote the interests of the Group Companies or that would conflict with the Business as presently conducted or as contemplated for the purposes of the Business. Neither the execution nor delivery of this Agreement, the Ancillary Agreements or the *** Share Purchase Agreement, nor the carrying on of the Business by the employees and



officers of the Group Companies, nor the conduct of the Business as contemplated for the purposes of the Business, will, to the Warrantors' Knowledge, conflict with or result in a breach of the terms, conditions or provisions of, or constitute a default under, any contract, covenant or instrument under which any of such employees or officers is now obligated. To the Warrantors' Knowledge, it is not and it is not contemplated for the purposes of the Business to be necessary to utilize any inventions of any of the employees, officers or consultants (or people they currently intend to hire) made prior to or outside the scope of their employment by or relationship with any Group Company.

(b) During the five (5) years prior to the date hereof, (i) there have been no material security breaches in the Group Companies' information technology systems, and (ii) there have been no disruptions in any of the Group Companies' information technology systems that materially adversely affected the Group Companies' business or operations. The Group Companies have at all times complied in all material respects with all applicable Laws, as well as their own rules, policies, and procedures, relating to privacy, data protection, and the collection and use of personal information collected, used, or held for use by the Group Companies. No claims have been asserted or threatened against the Group Companies in writing, or to the Warrantors' Knowledge, any other manner, alleging a violation of any Person's privacy or personal information or data rights and the consummation of the transactions contemplated by this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement (other than the Operating Agreement, as to which no representation is made pursuant to this sentence) will not cause a breach by a Group Company or otherwise cause any violation by a Group Company of any Law or rule, policy or procedure related to privacy, data protection, or the collection and use of personal information collected, used, or held for use by or on behalf of the Group Companies in the conduct of their business. The Group Companies take reasonable measures to ensure that such information is protected against unauthorized access, use, modification, or other misuse.

3.12 Compliance with Other Instruments.

(a) No Group Company is in violation or default of any provision of its memorandum of association and articles of association or other constitutional or governance documents, or of any instrument, judgment, order, writ, decree or contract to which it is a party or by which it is bound, or in material violation or default of any provision of any Law, rule or regulation applicable to such Group Company. The execution, delivery and performance of this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement, and the consummation of the transactions contemplated hereby and thereby will not result in any such violation or default or be in conflict with or constitute, with or without the passage of time and giving of notice, a default under any of the charter documents of a Group Company or under any provision, instrument, judgment, order, writ, decree or contract or any Law applicable to any Group Company or the assets of any Group Company or an event that results in the creation of any Encumbrance upon any assets of any Group Company or the suspension, revocation, impairment, forfeiture, or nonrenewal of any material permit, license, authorization, or approval applicable to each Group Company, its business or operations or any of its assets or properties.

(b) No Group Company and no director, officer, agent, employee or any other Person while in the course of acting for or on behalf of any Group Company, has directly or indirectly (i) made any contribution, gift, bribe, rebate, payoff, influence payment, kickback, or other payment to any Person, regardless of form, whether in money, property, or services (w) to obtain favorable treatment in securing business, (x) to pay for favorable treatment for business secured, (y) to obtain special concessions or for special concessions already obtained, for or in respect of such Group Company, or (z) in violation of any Law, or (ii) established or maintained any fund or asset that has not been recorded in the Books and Records of such Group Company.

3.13 Agreements; Action.

(a) Except for agreements explicitly contemplated hereby and by the Ancillary Agreements and the *** Share Purchase Agreement, there are no agreements, understandings or proposed transactions between any Group Company and any of its



officers, directors, general managers, or legal representatives, or any Affiliate of any Group Company.

(b) Except as set forth in the Schedule of Exceptions, there are no Material Contracts.

(c) There are no proposed transactions, judgments, orders, writs or decrees to which a Group Company is a party or by which it is bound that may involve (i) obligations (contingent or otherwise) of, or payments to a Group Company in excess of, US\$*** (or the equivalent amount in another currency), (ii) any material license of any patent, copyright, trade secret or other proprietary right to or from a Group Company (other than (A) the license of a Group Company's software and products in object code form in the ordinary course of business pursuant to standard end-user agreements the form of which has been provided to counsel for the Investors or (B) the license to a Group Company of standard, generally commercially available, "off-the-shelf" third party products that are not and will not to any extent be part of, or influence the development of, or require payment with respect to, any product, service or intellectual property offering of a Group Company), (iii) provisions materially restricting or affecting the development, manufacture or distribution of a Group Company's products or services, or (iv) indemnification by a Group Company with respect to infringements of proprietary rights.

(d) Except as set forth in the Financial Accounts and Statements, no Group Company has (i) declared or paid any dividends or authorized or made any distribution upon or with respect to any class or series of its share capital, (ii) incurred any indebtedness for money borrowed individually in excess of US\$*** (or the equivalent amount in another currency) or, in the case of indebtedness individually less than US\$*** (or the equivalent amount in another currency), in excess of US\$*** (or the equivalent amount in another currency) in the aggregate, (iii) made any loans or advances to any Person (other than another Group Company), other than ordinary advances for travel expenses, or (iv) sold, exchanged or otherwise disposed of any of its assets or rights, other than in the ordinary course of business.

(e) For the purposes of subsections (c) and (d) above, all indebtedness, liabilities,

agreements, understandings, instruments, contracts and proposed transactions involving the same Person or entity (including, without limitation, Persons or entities the Company has reason to believe are affiliated therewith) shall be aggregated for the purpose of meeting the individual minimum dollar amounts of such subsections.

(f) No Group Company has engaged in the past three (3) months in any discussion (i) with any representative of any corporation or corporations regarding the consolidation or merger of any Group Company with or into any such corporation or corporations, (ii) with any corporation, partnership, association or other business entity or any individual regarding the sale, conveyance or disposition of all or substantially all of the assets of any Group Company or a transaction or series of related transactions in which more than fifty percent (50%) of the voting power of any Group Company is disposed of, or (iii) regarding any other form of acquisition, liquidation, dissolution or winding up of any Group Company.

3.14 Related Party Transactions.

(a) No Founder Related Party is indebted to any Group Company, nor is any Group Company indebted (or committed to make loans or extend or guarantee credit) to any Founder Related Party. No Founder Related Party has any direct or indirect ownership interest in any firm or corporation which is an Affiliate of any Group Company or with which any Group Company has a business relationship, or any firm or corporation that directly or indirectly competes with any of the Group Companies, except that Founder Related Parties may own shares in publicly traded companies that may compete or have a business relationship with any Group Company. No Founder Related Party (other than the Founder Related Parties) is directly or indirectly interested in any Material Contract with any Group Company.

(b) No Related Party is indebted to any Group Company, nor is any Group Company indebted (or committed to make loans or extend or guarantee credit) to any of them. No Related Party (other than the Founders) has any direct or indirect ownership interest in any firm or corporation which is an Affiliate of any Group Company or with which any Group Company has a business relationship, or any firm or corporation that directly or



indirectly competes with any of the Group Companies, except that employees, officers, or directors of any Group Company and members of such Related Party's immediate families may own shares in publicly traded companies that may compete or have a business relationship with any Group Company. No Related Party (other than the Founder Related Parties) is directly or indirectly interested in any Material Contract with any Group Company.

3.15 Permits.

Each Group Company has all franchises, permits, licenses, and any similar authority necessary for the conduct of the Business as now being conducted by it, the lack of which could materially and adversely affect the business, properties, prospects or financial condition of any Group Company, and the Warrantors believe they can obtain without undue burden or expense, any similar authority for the conduct of the Business as contemplated for the purposes of the Business. No Group Company is in default in any material respect under any of such franchises, permits, licenses, or other similar authority.

3.16 Environmental and Safety Laws.

Each of the Group Companies is in compliance in all material respects with all applicable Law and regulations relating to the environment or occupational health and safety, and to the Warrantors' Knowledge, no material expenditures are or will be required in order to comply with any such existing Law or regulation.

3.17 Manufacturing, Marketing and Development Rights.

None of the Group Companies has granted rights to manufacture, produce, assemble, license, market, or sell its products and/or services to any other Person and is not bound by any agreement that affects any Group Company's exclusive right to develop, manufacture, assemble, distribute, market or sell its products and/or services.

3.18 Registration Rights.

Except as provided in that certain Third Amended and Restated Investors' Rights Agreement, dated ***, between the Company and certain shareholders thereof (and

as it will be amended upon completion of the First Closing), no Group Company has granted or agreed to grant any registration rights, including, without limitation, piggyback rights, to any Person or entity.

3.19 Corporate Documents.

Except as contemplated by this Agreement, the memorandum of association and articles of association or other constitutional or governance documents of each Group Company are in the form provided to counsel for the Investors.

3.20 Title to Property and Assets .

Each Group Company has good and marketable title to, or, in the case of leased or licensed assets and properties, marketable leasehold or license interests in, all of its real properties and tangible assets and properties, used or held for use in its business, free and clear of all Encumbrances, except for such Encumbrances that arise in the ordinary course of business and do not materially impair such Group Company's ownership or use of such property or assets. With respect to the property and assets it leases, each Group Company is in compliance in all material respects with such leases, and no Group Company has breached any such leases in such a manner as would give rise to a termination right under any such leases. Each Group Company holds a valid leasehold interest with respect to the property and assets it leases free of any Encumbrances. The properties and assets owned or leased by the Group Companies constitute all of the properties and assets required for Group Companies to conduct the Business as currently conducted and as contemplated for the purposes of the Business.

3.21 Financial Accounts and Statements.

(a) The Company has delivered to the Investors: (i) its audited consolidated financial statements (balance sheet, income statements, cash flow statements and statements of shareholders equity, including notes thereto)), at ***, *** and *** and for the fiscal years then ended prepared in accordance with accounting policies applicable to the preparation of income statements and balance sheets under *** (the "Company Consolidated Financial Statements") save that share-based payments and deferred income tax have not been accounted for (the "Financial Accounts and Statements"),



(ii) audited financial statements prepared on a standalone basis for each of ***, ***, ***, ***, ***, and ***(“***”), at *** and for the fiscal year then ended (collectively, the “Standalone Financial Statements”), in each case prepared in accordance with PRC GAAP and (iii) its unaudited consolidated income statements and balance sheets under *** for the period ***- ***. The Standalone Financial Statements fairly present the financial condition and operating results on a standalone basis of ***, *** ***, *** and ***, as the case may be. The Financial Accounts and Statements and the Standalone Financial Statements are in accordance with the Books and Records of the Group Companies.

(b) Except as set forth in the Financial Accounts and Statements, no Group Company has any material liabilities, contingent or otherwise, other than (i) liabilities incurred in the ordinary course of business subsequent to *** (the “Financial Accounts and Statement Date”), none of which relates to a breach of contract, breach of warranty, tort, infringement or violation of Law or is materially adverse to a Group Company's financial condition or results of operations, and (ii) liabilities under contracts and commitments incurred in the ordinary course of business prior to the Financial Accounts and Statement Date and not required to be reflected in the Financial Accounts and Statements which are not material to the financial condition or operating results of such Group Company. Except as disclosed in the Financial Accounts and Statements, no Group Company is a guarantor or indemnitor of any indebtedness of any other Person, firm or corporation other than another Group Company.

3.22 Changes.

Since the Financial Accounts and Statement Date there has not been:

- (a) any change in the assets, liabilities, financial condition or operating results of any Group Company from that reflected in the Financial Accounts and Statements, except changes in the ordinary course of business that have not been, in the aggregate, materially adverse;
- (b) any damage, destruction or loss, whether or not covered by insurance, materially and adversely affecting the assets, properties, financial condition, operating results,

prospects or business of any Group Company taken as a whole (as such business is presently conducted and as contemplated for the purposes of the Business);

(c) any waiver by any Group Company of a material valuable right or of a material debt owed to it;

(d) any satisfaction or discharge of any Encumbrance or payment of any obligation by any Group Company, except in the ordinary course of business and that is not materially adverse to the assets, properties, financial condition, operating results or business of any Group Company (as such business is presently conducted and as contemplated for the purposes of the Business);

(e) any termination or material change or amendment to a Material Contract or arrangement by which any Group Company or any of its assets or properties is bound or subject;

(f) any Material Contract entered into by any Group Company;

(g) any material change in any compensation arrangement or agreement with any officer, director, general manager, legal representative or shareholder of any Group Company;

(h) any sale, assignment, transfer or license of any patents, trademarks, copyrights, trade secrets or other intangible assets;

(i) any resignation or termination of employment of any key officer of any Group Company or Key Employee; and each Group Company, does not know of the impending resignation or termination of employment of any such officer or Key Employee;

(j) receipt of notice that there has been a loss of, or cancellation of any order by, any major customer of any Group Company;

(k) any mortgage, pledge, transfer of a security interest in, or lien, created by any Group Company, with respect to any of its material properties or assets, except liens for taxes not yet due or payable and liens that arise in the ordinary course of business and do not materially impair any Group Company's ownership or use of such property or assets;

(l) any loans or guarantees made by any Group Company to or for the benefit of



its employees, officers, directors, general managers or legal representatives, or any members of their immediate families, other than travel advances and other advances made in the ordinary course of its business;

(m) any declaration, setting aside or payment or other distribution in respect of any Group Company's share capital, or any direct or indirect redemption, purchase or other acquisition of any of such shares by any Group Company;

(n) to the Warrantors' Knowledge, any other event or condition of any character that might materially and adversely affect the assets, properties, financial condition, operating results or business of any Group Company (as such business is presently conducted and as contemplated for the purposes of the Business);

(o) any changes in the ability of the Company to consolidate the Group Companies under *** in its consolidated financial statements, including, without limitation, the status of certain Domestic Entities as variable interest entities; or

(p) any agreement or commitment by any Group Company to do any of the things described in this Section 3.22.

3.23 Tax Returns, Payments and Elections.

Each Group Company has filed all tax returns and reports (including, without limitation, information returns and reports) as required by Law. These returns and reports are true and correct in all material respects. Each Group Company has paid all taxes and other assessments due, except those contested by it in good faith that are listed in the Schedule of Exceptions. The provision for taxes of each Group Company as shown in the Financial Accounts and Statements is adequate for taxes due or accrued as of the date thereof. No Group Company that is a United States entity has elected pursuant to the United States Internal Revenue Code of ***, as amended (the "Code"), to be treated as an S corporation pursuant to Section 1362(a) of the Code, nor has it made any other elections pursuant to the Code (other than elections that relate solely to methods of accounting, depreciation or amortization) that would have a material effect on such Group Company, its financial condition, its business as presently conducted or proposed to be conducted or any of its properties or material assets. No Group Company has had

any tax deficiency proposed or assessed against it and no Group Company has executed any waiver of any statute of limitations on the assessment or collection of any tax or governmental charge. None of the Group Companies' tax returns have been audited by governmental authorities. Since the Financial Accounts and Statement Date, none of the Group Companies have incurred any taxes, assessments or governmental charges other than in the ordinary course of business and each Group Company has made adequate provisions in its books of account for all taxes, assessments and governmental charges with respect to its business, properties and operations for such period. Each Group Company has withheld or collected from each payment made to each of its employees, the amount of all taxes (including, but not limited to, income taxes) required to be withheld or collected therefrom, and has paid the same to the proper tax receiving officers or authorized depositories. No Group Company has any potential tax costs, penalties and surcharges on corporate income tax adjustments (including, but not limited to, the improper corporate income tax incentives enjoyed and/or non-deductible of disposal loss on equity transfer transactions). No Group Company has any potential business tax, value added tax, or corporate income tax exposures arising from financing or loan arrangements between Related Parties. No Group Company has any potential tax risk for the Tax on immovable properties owned by any Group Company.

3.24 Insurance.

The Schedule of Exceptions lists each insurance policy of each Group Company. Each Group Company has in full force and effect fire and casualty insurance policies, with extended coverage, sufficient in amount (subject to reasonable deductibles) to allow it to replace any of its assets or properties that might be damaged or destroyed. Each Group Company has in full force and effect product liability and errors and omissions insurance in amounts customary for companies carrying on the same type of business as the Business.

3.25 Minute Books.

The material files, documents, instruments, papers, books and records relating to the business, operations, conditions (financial or other), results of operations, and assets



and properties of each Group Company (the “Books and Records”), each as supplied to the Investors, are true, correct, complete and current in all material respects and have been maintained in accordance with sound business practices, including, without limitation, the maintenance of an adequate system of internal controls. A copy of the true and correct register of members of each Group Company, that is required by Law to maintain a register of members, as is currently in effect and as will be in effect immediately prior to the First Closing, is disclosed on the Schedule of Exceptions.

3.26 Labor Agreements and Actions; Employee Compensation.

(a) No Group Company is liable for any payment to any trust or other fund or to any Governmental or Regulatory Authority with respect to unemployment compensation benefits, workers compensation, social security, dismissal indemnity, gratuity pay, provident fund, retirement benefits, pensions or other benefits or obligations for employees. There are no claims pending against any Group Company under any workers’ compensation plan or policy, or for unemployment compensation benefits or for short term or long term disability or for retirement benefits or pensions. No person currently or previously employed by any Group Company or subcontracted by one of them has been involved in an accident in the course of such employment or subcontracting that would have given rise to any claim against any Group Company nor has any person been exposed to occupational health hazards during their employment or engagement by any Group Company. No claims (settled or unsettled) for injury or occupational health hazards have been brought or threatened against any Group Company by any person previously or currently employed or engaged by any Group Company.

(b) No material liability has been incurred by any Group Company: (i) for breach of any employment Contract or consultancy Contract to which any Group Company is a party; or (ii) under Law or otherwise in respect of employment-related breaches including, without limitation, severance, dismissal indemnity, gratuity pay, provident fund, unemployment compensation, retirement benefits or pensions, golden parachute, bonus or otherwise arising from the termination of any employment Contracts and

consultancy Contracts.

(c) No Group Company is bound by or subject to any written or oral, express or implied, contract, commitment or arrangement with any labor union, and no labor union has requested or, to the Warrantors' Knowledge, has sought to represent any of the employees, representatives or agents of any Group Company. There is no strike or other labor dispute involving any Group Company pending, or to the Warrantors' Knowledge, threatened. To the Warrantors' Knowledge there is no labor organization activity involving any employees of any Group Company.

(d) The Schedule of Exceptions lists each Key Employee of the Group Companies, together with each such Key Employee's title or position and the aggregate annual compensation of all Key Employees. To the Warrantors' Knowledge, no officer or Key Employee of any Group Company, or any group of Key Employees, intends to terminate their employment with any Group Company nor does any Group Company have a present intention to terminate the employment of any Key Employee. Each Group Company has complied in all material respects with all applicable equal employment opportunity and other Laws related to employment. No Group Company is a party to or bound by any currently effective deferred compensation agreement, bonus plan, incentive plan, profit sharing plan, retirement agreement, or other employee compensation agreement.

3.27 Real Property Holding Company.

The Company is not currently, and has not been during the prior five (5) years, a United States real property holding corporation within the meaning of Section 897 of the Code.

3.28 CFC or PFIC.

No Group Company is, nor will be immediately after the applicable Closing, a "Controlled Foreign Corporation" as defined in the Code with respect to the Sale Shares held by the Investors. No Group Company was a "passive foreign investment company" within the meaning of Section 1297(a) of the Code for the tax year ending *** or as of the applicable Closing, assuming the Company's most recent tax year was for the twelve (12) months ended on the applicable Closing Date. For the avoidance



of doubt, cash proceeds from the sale of the Sale Shares shall not be included in the determination of whether the Company was a “passive foreign investment company” within the meaning of Section 1297(a) of the Code on the applicable Closing Date.

3.29 Foreign Corrupt Practices Act.

No Group Company nor any of the officers, employees, directors, general managers, representatives or agents thereof, has offered, promised, authorized, or made, directly or indirectly, payments or other inducements to any Government Official (as defined below) in order to assist any Group Company to obtain or retain business for or with, or directing business to, any person, in any case in violation of applicable PRC laws, other laws, or of the U.S. Foreign Corrupt Practices Act. For the purposes of this Section 3.29, “Government Official” means an employee of a governmental or regulatory authority, a member of a political party, a political candidate, an officer of a public international organization, or an officer or employee of a PRC state-owned enterprise.

3.30 Corporation for U.S. Tax Purposes.

The Company is a corporation for United States federal income tax purposes and will refrain from making any available election to be treated as a partnership for such purposes.

3.31 SAFE Registration.

Each of the shareholders or the ultimate beneficiaries, as the case may be, of each Founder submitted the application for the registration required by Circular 37 (the “Circular 37”) issued by the PRC State Administration of Foreign Exchange implemented and effective on ***, titled “Circular on Relevant Issues concerning Foreign Exchange Administration for Domestic Residents to Engage in Financing and Investment and Return Investment via Offshore Special Purpose Vehicles (《国家外汇管理局关于境内居民通过特殊目的公司境外投融资及返程投资外汇管理有关问题的通知》(汇发(***2014)37号))”, or any successor rule or regulation under PRC law, in relation to (a) their acquisition of shares of the Company, (b) their contribution of assets of or equity interests in a domestic enterprise to the Company or overseas financing after the contribution, (c) any change of their shareholding or

other material capital change in the Company and (d) any other situation required to be registered by Circular 37, and completed such registration, in each case to the extent that such shareholders or ultimate beneficiaries are “domestic residents” pursuant to the Circular 37.

3.32 Disclosure.

The Warrantors have provided each of the Investors with all the information that the Investors have requested in writing for deciding whether to subscribe for the Sale Shares, including, without limitation, copies of all Material Contracts. None of the representations, warranties and other statements contained in this Agreement, the Ancillary Agreements or the *** Share Purchase Agreement or any Exhibit or Schedule hereto and made by or on behalf of any Warrantor (i) contains any untrue statement of any material fact or (ii) omits to state any material fact necessary in order to make the statements contained herein or therein not misleading. Each of the representations and warranties of the Warrantors shall be construed as a separate representation and warranty (except as expressly provided to the contrary) and shall not be limited or restricted by reference to or inference from the terms of any other representation and warranty of the Warrantors or any other term of this Agreement.

3.33 Sufficiency of the WFOE's Assets.

The Schedule of Exceptions completely and accurately sets forth the name and employer (and any other professional affiliation) of the legal representative and each member of the board of directors of ***, ***, and ***.

(a) The Schedule of Exceptions sets forth a complete and accurate description of the assets of ***, ***, and ***, including cash balances and intercompany receivables.

(b) ***, ***, and *** maintain registered office at the address set forth in the Schedule of Exceptions. The Company has delivered a true and complete copy of the leases for such registered office to the Investors prior to the date hereof (the “WFOE Lease”).

3.34 Control Documents.

(a) Each Group Company has the legal right, power and authority (corporate and other) to enter into and perform its or his obligations under each Control Document to which



it or he is a party and has taken all necessary action (corporate and other) to authorize the execution, delivery and performance of, and has authorized, executed and delivered, each Control Document to which it or he is a party.

(b) Each Control Document constitutes a valid and legally binding obligation of the parties named therein enforceable in accordance with its terms, except (i) as limited by applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws of general application relating to or affecting the enforcement of creditors' rights generally, (ii) as limited by laws relating to the availability of specific performance, injunctive relief, or other equitable remedies.

(c) The execution and delivery by each party named in each Control Document, and the performance by such party of its obligations thereunder and the consummation by it of the transactions contemplated therein shall not (i) result in any violation of, be in conflict with, or constitute a default under, with or without the passage of time or the giving of notice, any provision of its constitutional documents as in effect at the date hereof, any applicable Law, or any Material Contract to which a Group Company is a party or by which a Group Company is bound, (ii) accelerate, or constitute an event entitling any Person to accelerate, the maturity of any indebtedness or other liability of any Group Company or to increase the rate of interest presently in effect with respect to any indebtedness of any Group Company, or (iii) result in the creation of any lien, claim, charge or encumbrance upon any of the properties or assets of any Group Company.

(d) All consents required in connection with the Control Documents have been made or unconditionally obtained in writing, and no such Consent has been withdrawn or be subject to any condition precedent which has not been fulfilled or performed.

(e) The pledge of the equity interest of the Domestic Entities pursuant to the Control Documents has been duly filed with the competent administration of industry and commerce. Each Control Agreement is in full force and effect and no party to any Control Agreement is in breach or default in the performance or observance of any of the terms or provisions of such Control Agreement. None of the parties to any

Control Agreement has sent or received any communication regarding termination of or intention not to renew any Control Agreement, and no such termination or non-renewal has been threatened by any of the parties thereto.

3.35 Closing Certificate.

The statements contained in the certificates required to be delivered pursuant to Section 5 shall be true and accurate on and as of applicable Closing.

4. Representations and Warranties of the Investors.

Each Investor hereby represents and warrants (severally and not jointly) to the Company on the date of this Agreement and on the applicable Closing Date as set forth below.

4.1 Authorization.

The execution and delivery of this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement to which it is a party and the consummation of the transactions contemplated hereby and thereby have been duly and validly approved by all necessary action on the part of the Investor, and no other proceedings on the part of the Investor are necessary to approve the execution, delivery and performance of this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement to which it is a party or to consummate the transactions contemplated hereby and thereby. The Investor has full power and authority to enter into this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement to which it is a party, and each such agreement constitutes (or will upon execution and delivery by the Investor) its valid and legally binding obligation, enforceable in accordance with its terms except (i) as limited by applicable bankruptcy, insolvency, reorganization, moratorium, and other laws of general application affecting enforcement of creditors' rights generally, (ii) as limited by laws relating to the availability of specific performance, injunctive relief, or other equitable remedies, and (iii) to the extent the indemnification provisions contained in the Investors' Rights Agreement may be limited by applicable federal or



state securities laws.

4.2 Purchase Entirely for Own Account.

This Agreement is made with the Investor in reliance upon the Investor's representation to the Company, which by the Investor's execution of this Agreement the Investor hereby confirms, that the Sale Shares to be received by the Investor (the "Securities") will be acquired for investment for the Investor's own account, not as a nominee or agent, and not with a view to the distribution of any part thereof, and that the Investor has no present intention of selling, granting any participation in, or otherwise distributing the same. By executing this Agreement, the Investor further represents that the Investor does not have any contract, undertaking, agreement or arrangement with any Person to sell, transfer or grant participations to such Person or to any third Person, with respect to any of the Securities.

4.3 Accredited Investor.

The Investor is an "accredited investor" within the meaning of SEC Rule 501 of Regulation D, as presently in effect.

The following statements in Sections 4.4 and 4.5 are acknowledgements of the Investors and do not constitute representations or warranties for the purpose of this Agreement:

4.4 Restricted Securities.

The Investor understands that the Securities will be characterized as "restricted securities" under the federal securities laws inasmuch as they are being acquired from the Company in a transaction not involving a public offering and that under such laws and applicable regulations such Securities may be resold without registration under the Act, only in certain limited circumstances. In this connection, the Investor acknowledges that it is familiar with Rule 144 of the Securities Act of 1933, as amended, as presently in effect, and understands the resale limitations imposed thereby and by the Act.

4.5 Legends.

It is understood that the certificates evidencing the Securities shall bear the following

legend:

“These securities have not been registered under the Securities Act of 1933, as amended. They may not be sold, offered for sale, pledged or hypothecated in the absence of a registration statement in effect with respect to the securities under such Act or an opinion of counsel satisfactory to the Company that such registration is not required or unless sold pursuant to Rule 144 of such Act”.

4.6 Non Reliance by the Investor.

No Investor has entered into this Agreement in reliance on any statement or representation of any person (whether a party to this Agreement or not) other than as expressly stated in this Agreement, and each Investor acknowledges that no person (whether a party to this Agreement or not) has made or makes any express or implied representations or warranties, other than as expressly stated in this Agreement. Each Investor represents to the Warrantors that, as of the date hereof, it has no actual knowledge of any breach of any representation or warranty of the Warrantors.

5. Conditions Qualifying the Investors’ Obligations to Closing.

The obligations of the Investors under Section 2.1 of this Agreement are subject to the fulfillment on or before the applicable Closing of each of the following conditions:

5.1 Representations and Warranties of the Warrantors.

(a) The representations and warranties of the Warrantors contained in Section 3 shall be true on the date of this Agreement and as of the applicable Closing Date except (i) that those representations and warranties that address matters only as of a particular date shall be true and correct as of such particular date, and (ii) where the failure of such representations and warranties in the aggregate to be so true and correct does not constitute a Material Adverse Event (disregarding for purposes of this clause (ii) any qualification in the text of the relevant representation and warranty as to materiality or Material Adverse Event).

5.2 Performance by the Warrantors.



The Warrantors shall have performed and complied in all material respects with all their respective agreements, obligations and conditions contained in this Agreement that are required to be performed or complied with by them on or before the applicable Closing.

5.3 Compliance Certificate of the Warrantors.

The Chief Executive Officer or, in the case of a Warrantor that does not have a Chief Executive Officer, the Legal Representative of each Warrantor shall have delivered to each Investor at the applicable Closing on behalf of the Warrantors a certificate stating that the conditions specified in Sections 5.1, 5.2, 5.15, 5.19, and 5.21 have been fulfilled and also attaching thereto (a) the certified Restated Memorandum and Articles as will be adopted upon completion of the First Closing, (b) copies of all resolutions approved by the shareholders and board of directors of the Company and each Group Company related to the transactions contemplated by this Agreement, the Ancillary Agreements and the *** Share Purchase Agreement, and (c) a good standing certificate with respect to the Company.

5.4 Proceedings and Documents.

All corporate and other proceedings in connection with the transactions contemplated at the applicable Closing and all documents incident thereto to be conducted for the benefit of or delivered to the Investors shall be reasonably satisfactory in form and substance to the Investors, and it shall have received all such counterpart originals and certified or other copies of such documents as it may reasonably request.

5.5 [Reserved].

5.6 Board of Directors.

A resolution of the Company shall have been passed so that effective immediately following, but conditional upon, the ***' first Closing, the Board of Directors shall consist of ***, ***, ***, and *** and that immediately following, but conditional upon, ***'s first Closing, the Board of Directors shall be supplemented to include ***.

5.7 Opinion of the Company's PRC Counsel.

The Investors shall have received from *** Law Offices, the PRC counsel for the Company, an opinion, dated on the applicable Closing Date, substantively in the form

attached hereto as Exhibit E.

5.8 Opinion of the Company's Cayman Islands Counsel.

The Investors shall have received from ***, the Cayman Islands counsel for the Company, an opinion, dated on the applicable Closing Date, substantively in the form attached hereto as Exhibit F.

5.9 Consummation on the Closing of the Sale of * Shares.**

Each Closing is conditioned upon, and shall occur concurrently with, the consummation of the corresponding closing of *** Shares as specified in the *** Share Purchase Agreement.

5.10 Third Amended and Restated Voting Agreement.

Each of the parties to the Third Amended and Restated Voting Agreement shall have executed and delivered the Third Amended and Restated Voting Agreement in the form attached as Exhibit D (which shall become effective upon completion of the First Closing); provided that the failure of *** to execute the Third Amended and Restated Voting Agreement on or prior to the First Closing with *** shall not prevent or delay the First Closing and, in such a case, *** shall execute such Third Amended and Restated Voting Agreement by joinder upon ***'s first Closing.

5.11 Fourth Amended and Restated Investors' Rights Agreement.

Each of the parties to the Fourth Amended and Restated Investor's Rights Agreement shall have executed and delivered the Fourth Amended and Restated Investors' Rights Agreement in the form attached as Exhibit B(which shall become effective upon completion of the First Closing); provided that the failure of *** to execute the Fourth Amended and Restated Investor's Rights Agreement on or prior to the First Closing with *** shall not prevent or delay the First Closing and, in such a case, *** shall execute such Fourth Amended and Restated Investor's Rights Agreement by joinder upon ***'s first Closing.

5.12 Third Amended and Restated Right of First Refusal and Co-Sale Agreement.

Each of the parties to the Third Amended and Restated Right of First Refusal and Co-Sale Agreement, shall have executed and delivered the Third Amended and Restated



Right of First Refusal and Co-Sale Agreement in the form attached as Exhibit C(which shall become effective upon completion of the First Closing); provided that the failure of *** to execute the Third Amended and Restated Right of First Refusal and Co-Sale Agreement on or prior to the First Closing with *** shall not prevent or delay the First Closing and, in such a case, *** shall execute such Third Amended and Restated Right of First Refusal and Co-Sale Agreement by joinder upon ***'s first Closing.

5.13 Indemnification Agreements.

The Company shall have entered into an indemnification agreement in substantially the form attached hereto as Exhibit G (the “Indemnification Agreement”) with each director listed in Section 5.6.

5.14 Amended and Restated Memorandum and Articles.

The Restated Memorandum and Articles shall be adopted in substantially the form attached hereto as Exhibit A.

5.15 No Injunction, Order, etc.

There shall be no injunction, order or decree of any nature of any court or government authority of competent jurisdiction that is in effect that permanently restrains or prohibits the consummation of the transactions contemplated by this Agreement or by the Ancillary Agreements or the *** Share Purchase Agreement.

5.16 Termination of Operating Agreement; AAA's Share Conversion.

The Operating Agreement shall have been terminated substantially in the manner previously disclosed to the Investors.

5.17 Financial Statements.

The Company shall have provided to each Investors the Financial Accounts and Statements and Standalone Financial Statements.

5.18 [Reserved].

5.19 Material Adverse Event.

No Material Adverse Event (other than in relation to the Investors under part (b) of the definition of Material Adverse Event) shall have occurred, and no event shall have occurred or arisen, and no circumstance shall exist, that would reasonably be expected

to result in a Material Adverse Event (other than in relation to the Investors under part (b) of the definition of Material Adverse Event).

5.20 Deliverables.

The Investors shall have received the Deliverables set forth in Section 2.3(b)(i) to (iv).

5.21 Covenants.

Each Group Company shall have complied with the Covenants set out in Sections 7.1, 7.2 and 7.6 in all material respects.

5.22 Replacement of Share Certificates.

The Selling Shareholders shall have surrendered/placed in escrow with *** or *** at its Hong Kong office their share certificates and the Company shall have duly issued new share certificates representing each Selling Shareholder's respective ownership of the shares of the Company (as applicable) which shall have been delivered into escrow with *** or *** at its Hong Kong office.

5.23 Warrant.

The Company shall have entered into the Management Warrant in substantially the form attached hereto as Exhibit K.

5.24 Share Repurchase and Exchange Agreement.

The Company and Selling Shareholders shall have entered into the Share Repurchase and Exchange Agreement in substantially the form attached hereto as Exhibit N.

5.25 Reimbursement Agreement.

The Company, the Selling Shareholders and the Initial Investors shall have entered into the Reimbursement Agreement in substantially the form attached hereto as Exhibit M.

6. Conditions Qualifying the Company's Obligations to the Applicable Closing.

The obligations of the Company to the relevant Investors under this Agreement are subject to the fulfillment on or before the applicable Closing of each of the following conditions by each of the Investors.



6.1 Representations and Warranties.

The representations and warranties of each of the relevant Investors contained in Sections 4.1 to 4.3 shall be true on the date of this Agreement and as of the applicable Closing Date except (i) that those representations and warranties that address matters only as of a particular date shall be true and correct as of such particular date, and (ii) where the failure of such representations and warranties in the aggregate to be so true and correct does not constitute a Material Adverse Event (disregarding for purposes of this clause (ii) any qualification in the text of the relevant representation and warranty as to materiality or Material Adverse Event). For purposes of this Agreement, “relevant Investor” refers to the Investor(s) participating in any applicable Closing.

6.2 Performance by the Investors

Each relevant Investor shall have performed and complied in all material respects with all of its respective agreements, obligations and conditions contained in this Agreement that are required to be performed or complied with by it on or before the applicable Closing.

6.3 Payment of Purchase Price.

Each relevant Investor shall have delivered its Purchase Price with respect to such Closing in accordance with Sections 2.3 and 2.5.

6.4 Third Amended and Restated Voting Agreement.

The relevant Investors shall have executed and delivered the Third Amended and Restated Voting Agreement in the form attached as Exhibit D.

6.5 Fourth Amended and Restated Investors’ Rights Agreement.

The relevant Investors shall have executed and delivered the Fourth Amended and Restated Investors' Rights Agreement in the form attached as Exhibit B.

6.6 Third Amended and Restated Right of First Refusal and Co-Sale Agreement.

The relevant Investors shall have executed and delivered the Third Amended and Restated Right of First Refusal and Co-Sale Agreement in the form attached as Exhibit C which shall become effective upon completion of the First Closing.

6.7 No Injunction, Order, etc.

There shall be no injunction, order or decree of any nature of any court or government authority of competent jurisdiction that is in effect that permanently restrains or prohibits such investor's ability to consummate the transactions contemplated by this Agreement, the Ancillary Agreements or the *** Share Purchase Agreement.

6.8 Indemnification Agreements.

Each director listed in Section 5.6 shall have entered into an Indemnification Agreement in substantially the form attached hereto as Exhibit G.

7. Covenants.

7.1 Conduct of the Business of Group Companies.

During the Interim Period, each Group Company shall, and the Company shall procure that each Group Company shall, conduct its business in the ordinary course and in a prudent manner, in each case, consistent with past practice and use their reasonable best efforts to maintain the trade and trade connections of each Group Company, in each case, in all material respects.

7.2 Restricted Actions.

During the Interim Period, except to the extent expressly contemplated by this Agreement, the Ancillary Agreements or the *** Share Purchase Agreement, without the prior written consent of the Initial Investors, neither the Company nor any of the other Group Companies shall, and the Company and each of the Group Companies shall procure that its respective Subsidiaries shall not, take any of the following actions: (a) create, or issue, any share capital; provided, however, that this restriction shall not apply to: (i) the issuance of *** Shares to the Investors as contemplated in the *** Share Purchase Agreement; (ii) any securities convertible into shares of the Company which are outstanding on or before the date of this Agreement; or (iii) the creation and issuance of Non-Voting Preference Shares and Non-Voting Ordinary Shares pursuant to the Ancillary Agreements;



- (b) authorize dividends in respect of any Ordinary Shares or Preference Shares;
- (c) redeem, purchase or otherwise acquire (or pay into or set aside for a sinking fund for such purpose) any Preference Shares or Ordinary Shares provided, however, that this restriction shall not apply to the repurchase of Ordinary Shares and Preference Shares by the Company as contemplated in the Share Repurchase and Exchange Agreement;
- (d) permit a Liquidation Event (other than a Liquidation Event involving the voluntary winding-up or striking-off of the Company), as that term is defined in the Restated Memorandum and Articles;
- (e) cause any of its subsidiaries or controlled entities to consummate a Liquidation Event, as that term is defined in the Restated Memorandum and Articles, with respect to such Subsidiary or controlled entity;
- (f) dispose of any material assets used or required for the operation of the Business;
- (g) pass any resolution of its members except for the resolutions to adopt the Restated Memorandum and Articles, to re-classify and re-designate the authorized share capital of the Company to facilitate the allotment and issue of *** Shares, the exchange of shares of the Company pursuant to the Share Repurchase and Exchange Agreement, the repurchase of shares pursuant to the Share Repurchase and Exchange Agreement, to approve this Agreement and the Ancillary Agreements as contemplated in this Agreement and the *** Share Purchase Agreement;
- (h) enter into, modify or agree to terminate any Material Contract;
- (i) incur any capital expenditure on any individual item in excess of USD\$***;
- (j) borrow any sum in excess of the amounts borrowed in the ordinary course of the Business and available to it at the date of this Agreement;
- (k) make any loan or cancel, release or assign any indebtedness owed to it or any claims held by it;
- (l) declare or pay any dividend or make any other distribution of its assets;
- (m) terminate the employment or appointment of, or make any material alterations to the terms of employment or appointment (including benefits) of, any of its Key Employees, Directors or senior officers;

- (n) create any Encumbrance over any of its assets, properties or its undertaking material to the Company's business operations or shares;
- (o) give any financial or performance guarantee, or any similar security or indemnity;
- (p) commence, settle or agree to settle any legal proceedings relating to the Business, or otherwise concerning any Group Company;
- (q) make any material change to the accounting procedures, principles or policies by reference to which its accounts are drawn up;
- (r) permit any of its insurance policies to lapse or do anything which would reduce the amount or scope of cover or make any of its insurance policies void or voidable;
- (s) increase or decrease the maximum number of directors that may hold office or appoint any person as a director;
- (t) amend the Restated Memorandum and Articles; or
- (u) enter into any Contract to, merge or consolidate with, or acquire or invest in or otherwise participate in, the equity or equity-linked interests of any other Person.

7.3 Compliance with Law and Instruments.

Each Group Company shall, and the Company shall procure that each other Group Company shall, comply in all material respects (a) with all applicable Laws (including but not limited to Laws relating to the Payment Service License) and (b) with its memorandum of association, articles of association and business licenses, as applicable, or other constitutional or governance documents, in the case of each of (a) and (b) as may be amended from time to time. Each Group Company shall, and the Company shall procure that each other Group Company shall, promptly settle any contributions to social security and social insurance relating to such Group Company which are due or accrued and have been duly demanded by any relevant Governmental or Regulatory Authority, but are unpaid.

7.4 SAFE Registration.

As soon as practical after the First Closing, but in no event later than six (6) months after the Closing of the subscription and purchase of Sale Shares by the Initial Investor or at another time mutually agreed by the Company and the Initial Investors in writing,



each of the shareholders or the ultimate beneficiaries, as the case may be, of each Founder Holding Company who has not completed the registration required by Circular 37 shall complete such registration as soon as practicable following the First Closing, but in any event within six (6) months after First Closing.

7.5 Streamline of VIE Structure.

As soon as practical after the First Closing, but in no event later than six (6) months after the Closing of the subscription and purchase of Sale Shares by the Initial Investors or at another time mutually agreed by the Company and the Initial Investors in writing, the Company and the Group Companies shall provide a definitive plan to streamline its VIE structure to the reasonable satisfaction of the Initial Investors.

7.6 Notification of Changes.

(a) Prior to the applicable Closing, each Party shall promptly notify the other Parties of any breach of a representation or warranty of such Party contained herein; provided that (except to the extent set forth in (b) below) such notification shall not constitute a waiver of or be deemed to affect or vary any covenant or condition or qualify any representation or warranty hereunder. Without limitation to the foregoing, prior to the applicable Closing, each Investors shall, as promptly as reasonably practicable, notify the Company of: (i) any developments of which the Investor becomes aware relating to the regulatory status of, or regulatory restrictions or regulatory conditions imposed upon, the Investor and/or any of their Affiliates to the extent that such developments would prevent consummation of the applicable Closing; and (ii) any changes to the infringement of regulatory status of, or regulatory restrictions or regulatory conditions imposed upon, the Investor and/or any of its Affiliates of which the Investor becomes aware which would affect the ability of the Group Companies to make investments in Persons following the applicable Closing; provided, however, that the Investor shall not be obligated to make any such notification which would result in a violation of any Laws, regulations, directives, orders, pronouncements or other guidance of, or any agreement with any Governmental or Regulatory Authority, in any such case applicable to any Investor and/or any of their Affiliates.

7.7 Intellectual Property.

The Group Companies shall, as soon as practicable after applicable Closing: (1) complete the correction of registered names of the legal entities owning relevant Intellectual Property which are currently registered as the applicable Group Companies' former names, including, without limitation, *** domain names and *** software copyrights, i.e., *****; (2) complete the transfer of ownership of domain name “***” from a non Group Company to Group Company (3) pay any late annual fees and late fines to ensure the good standing of all Intellectual Property and rights to such Intellectual Property held in their names (including but not limited to copyrights of *** and ***); (4) enter into trademark license agreement with ***; (5) fix the name of the copyright *** (currently registered as “***” rather than “***”), and (6) use their best efforts to improve the Group Companies' management of their Intellectual Property rights, invest resources to enhance the protection of Intellectual Property, monitor and investigate any third party infringement of Intellectual Property and prevent the third party's malicious use of any Intellectual Property owned by any Group Company.

7.8 Name Change of Non-Group Company.

As soon as practical after the applicable Closing, but in no event later than three (3) months after the applicable Closing, the Company shall use its best efforts to cause each of *****, to, remove “***” from its current name and complete registration amendment at local government.

8. Indemnity.

8.1 General Indemnity.

Each Warrantor hereby severally and jointly indemnifies and holds harmless each Investor, and each Investor's Affiliates, directors, officers, agents and assigns (each an “Indemnified Party”) from and against all Indemnifiable Losses which may be suffered or incurred by any Indemnified Party in connection with, arising out of, or



resulting from (i) any breach or violation of, or inaccuracy or misrepresentation in, any representation or warranty made by any of the Warrantors in this Agreement; (ii) any tax costs, penalties, and surcharges paid by the Company or any Group Company on an actual adjustment to the Company's or any Group Company's corporate income tax (including but not limited to a revocation of corporate income tax incentives previously received and determined by the relevant authority to be improperly received and/or denial of a deduction related to disposal loss on equity transfer transactions), and (iii) any unpaid or underpaid taxes by the Company or any Group Company in connection with loan transactions between Related Parties, asset disposals or immovable properties owned by the Group Companies. For the purposes of this Agreement, an "Indemnifiable Loss" will constitute any actual, realized and quantifiable loss that directly results from the statements, actions or omissions described in this Agreement. Any losses, liabilities, damages, liens, penalties, costs and expenses, including reasonable advisor's fees and other reasonable expenses of investigation and defense of any of the foregoing, incurred by the Indemnified Party as a result of the liabilities of the Warrantors as set forth in this section shall be deemed as Indemnifiable Losses. If any Indemnified Party believes that it has a claim that may give rise to an obligation of any Warrantors pursuant to this Section 8, it shall give prompt written notice thereof to the Warrantors stating specifically the basis on which such claim is being made, the material facts related thereto, and the amount of the claim asserted, all to the reasonable satisfaction of the applicable Warrantor. Failure by an Indemnified Party to so notify the Warrantors shall not relieve any Warrantor of its obligations hereunder except to the extent such failure shall have actually prejudiced such Warrantor. Thereafter, the applicable Warrantor shall have twenty (20) days to remedy the situation, which period may be extended with the prior written consent of the relevant Investor acting on behalf of such Indemnified Party, not to be unreasonably withheld, conditioned or delayed provided that the applicable Warrantor is working diligently to correct the breach giving rise to the claim and a full correction is anticipated in the near future. The applicable Warrantor shall promptly, and in any event within thirty (30) calendar

days of receipt of notice thereof, reimburse the Indemnified Party on demand for all expenses reasonably incurred by them. “Indemnifiable Loss” shall not include any loss for any consequential, exemplary, punitive, special, incidental or indirect damages, nor for any lost profits or revenues or diminution in value.

8.2 Limitations of Indemnity.

Notwithstanding anything to the contrary in this Agreement, the indemnities provided by the Warrantors to the Indemnified Party hereunder (an “Indemnity” or the “Indemnities”) will be subject to each of the following:

- (a) With respect to the Warrantors, the recovery for all Indemnities by all Indemnified Parties whether under this Agreement or the *** Share Purchase Agreement (including those that become Indemnified Parties as a result of the execution of a Joinder to this Agreement or the *** Share Purchase Agreement) shall be limited to US\$***.
- (b) The Group Companies will have no liability of any kind to any of the Indemnified Parties other than under the Indemnities hereunder, except in the case of fraud, intentional misrepresentation and/or willful misconduct, and for which all Indemnified Parties shall be entitled to any actual losses or damages as found and determined by applicable courts or regulators.
- (c) Notwithstanding anything to the contrary set forth in this Agreement, the Indemnified Parties shall not be entitled to indemnification pursuant to this Section 8 until the aggregate amount of Indemnifiable Losses exceeds US\$***, at which time the full amount of all Indemnifiable Losses shall be recoverable from the Warrantors, subject to the other limitations of Indemnity set forth in this Section 8.2.
- (d) The Indemnity provided under this Section 8 shall be the exclusive remedy of the Indemnified Parties with respect to any matters indemnifiable hereunder (subject to the limitations of Indemnity set forth herein).



9. Term and Termination.

9.1 Termination.

Unless otherwise provided for in this Agreement, this Agreement shall be terminated:

(a) At any date prior to the applicable Closing Date upon the written consent of all of the Parties; or

(b) By the Investors (acting together) by way of written notice to the Company if:

(i) each Investor is not then in material breach of any provision of this Agreement and there has been a breach, inaccuracy in or failure to perform any representation, warranty, covenant or agreement made by the Warrantors or the Company pursuant to this Agreement that would give rise to the failure of any of the conditions specified in Section 5, and such breach, inaccuracy or failure has not been cured by the Company or the Warrantors (as applicable) within twenty (20) days of the receipt of written notice of such breach from the Investors; or (ii) any of the Conditions shall not have been, or if it becomes apparent that any of such Conditions shall not be, fulfilled by the Longstop Date, as set forth hereunder, unless such failure shall be due to the failure of Investors to perform or comply with any of the covenants, agreements or conditions prior to the applicable Closing; or

(c) By the Company by way of written notice to the Investors if: (i) the Company is not then in material breach of any provision of this Agreement and there has been a breach, inaccuracy in or failure to perform any representation or warranty contained in Sections 4.1 to 4.3 (inclusive), covenant or agreement made by an Investor pursuant to this Agreement that would give rise to the failure of any of the Conditions specified in Section 6, and such breach, inaccuracy or failure has not been cured by the relevant Investor within ten (10) days of Investor's receipt of written notice of such breach from the Company; or (ii) any of the Conditions set forth in Section 6 shall not have been, or if it becomes apparent that any of such conditions will not be, fulfilled by the Longstop Date, as set forth hereunder, unless such failure shall be due to the failure of the Company to perform or comply with any of the covenants, agreements or conditions

prior to the applicable Closing. For the avoidance of doubt, if one of the Investors shall be solely in breach of this Section 9.1(c) then the Agreement shall not terminate and shall continue for the benefit of the non-breaching Investors;

(d) by Investors (acting together) or the Company in the event that (i) there shall be any Law that makes consummation of the transactions contemplated by this Agreement illegal or otherwise prohibited, as concluded in writing by a reputable law firm acceptable to both the Company and the Investors, or (ii) any Governmental or Regulatory Authority shall have issued a governmental order restraining or enjoining the transactions contemplated by this Agreement, and such governmental order shall have become final and non-appealable.

(e) Notwithstanding the above, if the Closing of the subscription and purchase of Sale Shares by any Initial Investor has not occurred on or before the Longstop Date, then, unless otherwise agreed in writing by the Company, *** and ***, this Agreement shall terminate and be of no further force or effect and no Party shall have any obligation hereunder except with respect to any breach arising prior to termination.

9.2 Consequences of Termination.

(a) If this Agreement is terminated pursuant to Section 9.1, this Agreement shall become null and void and of no further force and effect, except that the Parties shall continue to be bound by the provisions of Section 3 (Representations and Warranties of the Warrantors), Section 8 (Indemnity), Section 9 (Term and Termination) and Section 10 (Miscellaneous). Nothing in this Section 9 shall be deemed to release any Party from any liability for any breach of this Agreement prior to the effective date of such termination.

(b) If this Agreement is terminated pursuant to its terms without a Closing with any Investor, any funds wired by such Investor or its Affiliate to the Company's Account shall be returned to such Investor within two (2) Business Days after such termination.



10. Miscellaneous.

10.1 Survival of Warranties.

The warranties, representations, indemnities and covenants of the Parties contained in or made pursuant to this Agreement or any certificate delivered pursuant to this Agreement by any Person shall survive the execution and delivery of this Agreement and the applicable Closing Date (but with respect to covenants, only to the extent performance following the applicable Closing Date is contemplated) and shall in no way be affected by any investigation of the subject matter thereof made by or on behalf of the Investors.

10.2 Liability; Limitations on Liability.

(a) Each Party acknowledges and agrees that (except in the case of fraud and without limiting or affecting the Parties' respective rights, obligations and liabilities under the applicable Ancillary Agreements and *** Share Purchase Agreement) each other Party's sole liability with respect to this Agreement shall be for breaches of the representations, warranties, indemnities and covenants by such Party (or in the case of a Warrantor, the representations, warranties, indemnities and the covenants of the Warrantors) set forth in this Agreement (or any certificate delivered pursuant to this Agreement). None of the respective officers, directors, partners, agents or employees of any Party shall be liable in connection with the sale and purchase of the Sale Shares hereunder.

(b) Except with respect to claims for fraud, the Investors' aggregate liability for all claims hereunder shall be limited to US\$*** (or the equivalent amount in another currency).

(c) Except with respect to claims for fraud, willful misconduct or gross negligence by the Investors relating to, arising out of or in connection with Section 3.1 to Section 3.6 (both inclusive), Sections 3.21(b) (which shall survive indefinitely or until the expiration of the statute of limitations) or claims against the Investors relating to, arising out of or in connection with Section 4.1, no Party shall be liable in respect of a claim with respect to the representations and warranties in Section 3 or Section

4 hereunder unless notice setting forth the nature of such claim in reasonable detail (including an estimate of the amount of such claim, which estimate shall not bind the claimant) has been served on such Party in the case of Sections 3.1 to 3.7 (inclusive) on or before the second anniversary of the First Closing and with respect to all other representations and warranties of the Warrantors in Section 3, on or before the expiry of the statute of limitations. With respect to relevant claims relating to, arising out of or in connection with Sections 3.21(b), none of the Warrantors shall be liable in respect of a claim under such Sections unless notice setting forth the nature of such claim in reasonable detail (including an estimate of the amount of such claim, which estimate shall not bind the claimant) has been served on such Party on or before the second anniversary of the First Closing.

(d) Any claim in respect of which notice shall have been given in accordance with Section 10.2(c) shall, if it has not been previously satisfied, settled or withdrawn, be deemed to have been irrevocably withdrawn and lapsed unless proceedings in respect of such claim have been issued and served on the counter-party to such claim not later than the expiry of the period of six (6) months from and including the date of such notice.

(e) No Party will be liable in respect of a claim hereunder to the extent that the loss that is the subject of the claim has already been fully recovered in respect of another claim.

10.3 Successors and Assigns.

Neither this Agreement nor any of the rights, interests or obligations hereunder shall be assigned by any of the Parties without the prior written consent of the other Parties. Except as otherwise provided herein, the terms and conditions of this Agreement shall inure to the benefit of and be binding upon the respective successors and assigns of the parties (including, without limitation, transferees of any Securities). Nothing in this Agreement, express or implied, is intended to confer upon any party other than the Parties hereto or their respective successors and assigns any rights, remedies, obligations, or liabilities under or by reason of this Agreement, except as expressly provided in this Agreement.



10.4 Governing Law.

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, United States of America without regard to principles of conflicts of law thereunder.

10.5 Dispute Resolution.

(a) Any dispute, controversy or claim arising out of or relating to this Agreement, or the interpretation, breach, termination or validity hereof, shall be resolved through consultation. Such consultation shall begin immediately after one Party has delivered to the other Party a written request for such consultation. If within thirty (30) days following the date on which such notice is given the dispute cannot be resolved, the dispute shall be submitted to arbitration upon the request of either Party with notice to the other.

(b) The arbitration shall be conducted in Hong Kong under the auspices of the Hong Kong International Arbitration Centre (the “Centre”) in Hong Kong. There shall be three arbitrators. Each constituency that has an interest in such arbitration (each Investor, and/or the Company) shall select one arbitrator within thirty (30) days after giving or receiving the notice for arbitration. Such arbitrators shall be freely selected, and the parties shall not be limited in their selection to any prescribed list. If only two of the three constituencies have an interest in such arbitration, the Centre shall select the third arbitrator, who shall be qualified to practice law in New York, United States of America. If either Party does not appoint an arbitrator who has consented to participate within thirty (30) days after selection of the first arbitrator, the relevant appointment shall be made by the Chairman of the Centre.

(c) The arbitration proceedings shall be conducted in English. The arbitration tribunal shall apply the Administered Arbitration Rules of the Centre in effect at the time of the arbitration. However, if such rules are in conflict with the provisions of this Section 10.5, including, without limitation, the provisions concerning the appointment of arbitrators, the provisions of this Section 10.5 shall prevail.

(d) The arbitrators shall decide any dispute submitted by the parties to the arbitration

strictly in accordance with the substantive law of New York, United States of America and shall not apply any other substantive law.

(e) Each Party hereto shall cooperate with the other in making full disclosure of and providing complete access to all information and documents requested by the other in connection with such arbitration proceedings, subject only to any confidentiality obligations binding on such Party.

(f) The award of the arbitration tribunal shall be final and binding upon the disputing Parties, and either Party may apply to a court of competent jurisdiction for enforcement of such award.

(g) Each Party shall be entitled to seek preliminary injunctive relief, if possible, from any court of competent jurisdiction pending the constitution of the arbitral tribunal.

10.6 Counterparts.

This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

10.7 Titles and Subtitles.

The titles and subtitles used in this Agreement are used for convenience only and are not to be considered in construing or interpreting this Agreement.

10.8 Notices.

All notices and other communications given or made pursuant hereto shall be in writing and shall be deemed effectively given: (i) upon personal delivery to the Party to be notified, (ii) when sent by confirmed electronic mail or facsimile if sent during normal business hours of the recipient; if not, then on the next business day, (iii) ten (10) days after having been sent by registered or certified mail, return receipt requested, postage prepaid, or (iv) three (3) days after deposit with an internationally recognized overnight courier, specifying next day delivery, with written verification of receipt. All communications shall be sent to the respective Parties at the addresses set forth on the signature pages attached hereto (or at such other addresses as shall be specified by notice given in accordance with this Section 10.8).



10.9 Confidentiality and Announcements.

(a) Each Party shall:

(i) not disclose information relating to the negotiation, existence or provisions of this Agreement or any Ancillary Agreement unless:

(1) it has first obtained the other Parties' written consent; or

(2) such disclosure is permitted under Section 10.9(b); and

(ii) ensure that none of its Affiliates discloses information relating to the negotiation, existence or provisions of this Agreement or any Ancillary Agreement unless it has first obtained the other Parties' written consent.

(b) Permitted disclosures.

Section 10.9(a) does not apply to a disclosure or use of information if:

(i) the disclosure or use is required by applicable Law, a court of competent jurisdiction or a competent judicial, governmental, supervisory or regulatory body;

(ii) the disclosure or use is required by a rule of a stock exchange or listing authority on which the shares or other securities of a Party, or any Affiliate of a Party, are listed or traded;

(iii) the disclosure is made to the directors, officers or senior employees of the disclosing Party (or any Affiliate thereof) for the purpose of ensuring compliance with the terms of this Agreement or any Ancillary Agreement;

(iv) the disclosure is to the shareholders of the Company for the purpose of facilitating the shareholders' participation in, or apprising the shareholder of developments in connection with, the transactions contemplated hereby;

(v) the disclosure or use is required for the purpose of legal proceedings arising out of this Agreement or any Ancillary Agreement or the disclosure is required to be made to a competent tax authority in connection with the tax affairs of the disclosing Party; or

(vi) the disclosure is made to a professional adviser of the disclosing person, in which case the disclosing person is responsible for ensuring that the professional adviser complies with the terms of Section 10.9(a) as if it were a party to this Agreement.

(c) Consultation required before a permitted disclosure.

A Party may only make a disclosure in the circumstances contemplated by Section 10.9(b)(ii) if, before making the disclosure, it has consulted with the Company and the Investors and given good faith consideration to such parties' requirements as to the timing, content and manner of making the disclosure to the extent it is permitted to do so by applicable Law or regulation and to the extent it is reasonably practicable to do so.

(d) Announcements.

Subject to Section 10.9(e), before and after the applicable Closing Date, a Party shall not:

(i) make or send; or

(ii) permit another person to make or send on its behalf, a public announcement or circular regarding the existence or the subject matter of this Agreement or any of the Ancillary Agreements and the *** Share Purchase Agreement, unless it has first obtained the permission of each of the other Parties. It is also understood that no such public announcement or circular, whether or not approved by the applicable Investors and the Company under (e)(i) below, shall mention or use the name "American Express" or any derivative thereof or any trademark of ***or its affiliates without AAA's express written consent, and the Parties agree that ***shall have the right to enforce this specific provision as a third-party beneficiary of this provision of the agreement.

(e) Section 10.9(d) does not apply to an announcement or circular which:

(i) is made on or after the applicable Closing Date and is in a form agreed by the applicable Investors and the Company;

(ii) is required by applicable Law, a court of competent jurisdiction or a competent judicial, governmental, supervisory or regulatory body; or is required by a rule of a stock exchange or listing authority on which the shares or other securities of a Party or any of its Affiliates are listed or traded.

(f) A Party that is required to make or send an announcement or circular in the circumstances contemplated by Section 10.9(e)(ii) shall, before making or sending



the announcement or circular, consult with the other Parties and give good faith consideration to the other Parties' requirements as to the timing, content and manner of making the announcement or circular to the extent it is permitted to do so by applicable Law or regulation and to the extent it is reasonably practicable to do so.

10.10 Finder's Fee.

Each Party represents that it neither is nor will be obligated for any finders' fee or commission in connection with this transaction.

10.11 Expenses.

The costs incurred by the Company, the Selling Shareholders and the Investors, respectively, in connection with the transactions contemplated by this Agreement, shall be reimbursed solely in accordance with the Reimbursement Agreement.

10.12 Amendments and Waivers.

Any term of this Agreement may be amended and the observance of any term of this Agreement may be waived (either generally or in a particular instance and either retroactively or prospectively), only with the written consent of all of the Investors and the Company; provided that an amendment to any term of this Agreement that is incorporated into the Ancillary Agreements or the Share Repurchase and Exchange Agreement or that addresses the rights of any Selling Shareholders in connection with the transactions contemplated hereby or in the Ancillary Agreements shall also require the consent of a majority of applicable Selling Shareholders (including AAA). Any amendment or waiver effected in accordance with this Section shall be binding upon each holder of any Securities purchased under this Agreement at the time outstanding (including securities into which such securities are convertible), each future holder of all such Securities. No waiver by any Party of any term or condition of this Agreement, in any one or more instances, shall be deemed to be or construed as a waiver of the same or any other term or condition of this Agreement on any future occasion. Any waiver by a Party of a condition to closing set forth in Section 5 or Section 6 of this Agreement shall not be deemed to be or construed to be a waiver of any breach of any representation or warranty or failure to perform any covenant or other agreement

contained herein by any Party.

10.13 Severability.

If one or more provisions of this Agreement are held to be unenforceable under applicable Law, such provision shall be excluded from this Agreement and the balance of the Agreement shall be interpreted as if such provision were so excluded and shall be enforceable in accordance with its terms.

10.14 Further Assurances.

Each Party hereby represents and agrees that it will cooperate with the other Parties and take all commercially reasonable action contemplated hereunder to consummate the applicable Closing and will execute such further instruments and agreements as may be commercially reasonable to evidence and effect the transactions contemplated herein.

10.15 Joint and Several Liability.

The Warrantors shall be jointly and severally liable in respect of the indemnities and for any breaches of the representations, warranties and covenants of the Warrantors under this Agreement.

10.16 Entire Agreement.

This Agreement and the documents referred to herein, including and only including the Ancillary Agreements and the *** Share Purchase Agreement, constitute the entire agreement among the Parties with respect to the subject matter hereof and no Party shall be liable or bound to any other Party in any manner by any warranties, representations, or covenants except as specifically set forth herein or therein. Any and all other written or oral agreements relating to the subject matter hereof existing between the parties hereto are expressly canceled.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

INVESTOR:

*** SPV LIMITED



By:

Name:

Title:

Address:

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

INVESTOR:

By:

Name:

Title:

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

COMPANY:

By:

Name: ***

Title: Chief Executive Officer

Address:

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

FOUNDER:

By: _____

FOUNDER HOLDING COMPANY:

By: _____

Name:

Title:

Address:

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

GROUP COMPANIES:

By: _____

Name:

Title:

Address:



SCHEDULE A1

SCHEDULE OF SELLING SHAREHOLDERS*

Name of Seller	Ordinary Shares	*** Shares	*** Shares	*** Shares	Total shares	Unit Purchase Price	Total Purchase Price
***	***	***	***	***	***	***	***
***	***	***	***	***	***	***	***
Total	***	***	***	***	***	***	***

*This table shows the maximum share repurchase capacity and the actual share repurchase number depends on the actual amount available for share repurchase from the Company.

SCHEDULE A2

SCHEDULE OF INVESTORS

Investors	Number of *** Shares to be Purchased	Number of *** Shares to be Purchased	Investment Amount for *** Shares	Investment Amount for *** Shares
***	***	***	***	***
***	***	***	***	***

EXHIBIT O

Closing Timeline and Steps

For purposes of this Exhibit O only, Closing means both the Closing of the investment by the Investors as contemplated by the *** Share Purchase Agreement and the Closing of the share repurchase and exchange as contemplated by the Share Repurchase and Exchange Agreement. The failure to take an action by the time or date provided in this Exhibit O shall not in itself constitute a breach of this Agreement, the *** Share Purchase Agreement (together with this Agreement, the “***”) or the Share Repurchase and Exchange or the failure of a condition to Closing, provided that the party required

to take such action used its reasonable best efforts to take such action on a timely basis and does take such action as promptly as practicable after the time or date provided herein.

I. *** Closing

1. Third Business Day prior to the Closing Date: *** to wire funds to the Company's Account as provided in Section 2.5(a) of the ***. *** then emails transaction party working group (distribution list to be agreed) that wire has been initiated and relevant reference numbers.

2. One Business Day prior to Closing Date: 8:00AM Hong Kong Time. Investors, Company and Selling Shareholders place all signature pages required in connection with the Closing in escrow with *** ***, except for the Repurchase Share Escrow Documents (as defined in the Share Repurchase and Exchange Agreement), which shall be delivered to *** (Hong Kong office) (the "Transfer Agent") pursuant to the Share Repurchase and Exchange Agreement. Instructions to *** and Transfer Agent to state that signature pages shall be released upon all recipients of funds having confirmed receipt of funds pursuant to step 3 below.

3. Closing Date: 9:00 A.M. Hong Kong Time:

a. All transaction parties (including Investors, Company, Selling Shareholders and their respective counsel) call to confirm conditions to Closing satisfied and to confirm that signature pages will be released upon confirmation by the applicable recipients that funds have been received.

b. The Company then initiates wire for Purchase Price as provided in Section 2.5(b) of the ***.

c. The Company then emails transaction party working group (distribution list to be agreed) that wire has been initiated.

d. The Company then emails transaction working group relevant wire reference numbers.

4. As soon as possible on Closing Date—Closing Date + 1 Business Day: Each funds transfer recipient under Section 2.5 of the *** emails transaction party working group



(including *** the Transfer Agent and the Company) to confirm receipt of funds.

5. As soon as possible after step 4 is complete: *** and Transfer Agent confirm all signature pages placed in escrow under (Step 2) above are released.

6. Immediately thereafter, Transfer Agent to update the register of members of the Company and circulate to the transaction party working group. Parties will deem Closing to be complete at this time.

II. *** Closing(s)

1. Two Business Days prior to Closing Date: 12:00 (noon) Hong Kong Time: *** to notify the Company regarding the amount of funds available for Closing. Company to circulate a table showing proceeds payable to each Selling Shareholder.

2. One Business Day prior to Closing Date: 12:00 (noon) Hong Kong Time: *** to have transferred all funds to Company's Account that will be included in the Closing.

3. Selling Shareholders to confirm agreement or provide comments. Parties to work together to agree on proceeds/payments table.

4. One Business Day prior to Closing Date: 8:00 A.M. Hong Kong Time. ***, Company and Selling Shareholders to place all signature pages required in connection with the Closing in escrow with *** and ***, except for the Repurchase Share Escrow Documents, which shall be delivered to the Transfer Agent pursuant to the Share Repurchase and Exchange Agreement. Instructions to ***, *** and Transfer Agent to state that signature pages shall be released upon all recipients of funds having confirmed receipt of funds pursuant to step 5 below

5. Closing Date: 9:00 A.M. Hong Kong Time:

a. All transaction parties to such Closing (including ***, Company, Selling Shareholders and their respective counsel) call to confirm conditions to Closing satisfied and to confirm that signature pages will be released upon confirmation by the applicable recipients that funds have been received.

b. The Company then initiates wire for Purchase Price as provided in Section 2.5(b) of the ***.

c. The Company then emails transaction party working group (distribution list to be

agreed) that wire has been initiated.

d. The Company then emails transaction working group relevant wire reference numbers.

6. As soon as possible on Closing Date—Closing Date + 1 Business Day: Each relevant Selling Shareholder emails transaction party working group (including ***, ***, the Transfer Agent, *** and the Company) to confirm receipt of funds.

7. As soon as possible after step 6 is complete: ***, *** and Transfer Agent confirm all signature pages placed in escrow under (step 4) above are released.

8. Immediately thereafter, Transfer Agent to update the register of members of the Company and circulate to the transaction party working group. Parties will deem Closing to be complete at this time.

III. Additional Investors

1. 3 Business Days prior to Closing Date: 12:00 (noon) Hong Kong Time. Additional Investor to have transferred applicable Purchase Price to Company's Account.

2. 3 Business Days prior to Closing Date: 12:00 (noon) Hong Kong Time. Company to circulate table showing repurchase based on the aggregate Purchase Price for the applicable Closing and proceeds payable to each Selling Shareholder.

3. 2 Business Days prior to Closing Date: 12:00 (noon). Selling Shareholders to confirm agreement or provide comments. Parties to work together to agree on proceeds/payments table.

4. 1 Business Day prior to Closing Date: 8:00 A.M. Hong Kong Time. Additional Investor, Company and Selling Shareholders place all signature pages required in connection with the Closing in escrow with ***, except for the Repurchase Share Escrow Documents (as defined in the Share Repurchase and Exchange Agreement), which shall be delivered to the Transfer Agent pursuant to the Share Repurchase and Exchange Agreement. Instructions to *** and Transfer Agent to state that signature pages shall be released upon all recipients of funds having confirmed receipt of funds pursuant to step 9 below

5. Closing Date: 9:00 A.M. Hong Kong Time:



- a. All transaction parties (including Additional Investors, Company and Selling Shareholders) call to confirm conditions to Closing satisfied and to confirm that signature pages will be released upon confirmation by the applicable recipients that funds have been received.
- b. The Company then initiates wires for Purchase Price as provided in Section 2.5(b) of the ***.
- c. The Company then emails transaction party working group (distribution list to be agreed) that wire(s) have been initiated.
- d. The Company then emails transaction working group with relevant wire reference numbers.
6. As soon as possible Closing Date—Closing Date + 1 Business Day: Each funds transfer recipient under Section 2.5 of the *** emails transaction party working group (including ***, the Transfer Agent and the Company) to confirm receipt of funds.
7. As soon as possible after step 6 is complete: *** and Transfer Agent confirm all signature pages placed in escrow under (1) above are released.
8. Immediately thereafter, Transfer Agent to update the register of members of the Company and circulate to the transaction party working group. Parties will deem Closing to be complete at this time.

EXHIBIT P

JOINDER TO *** SHARE PURCHASE AGREEMENT

This Joinder Agreement (this “Joinder Agreement”) is made as of the date written below by the undersigned (the “Joining Party”) in accordance with the *** Share Purchase Agreement dated [*], *** by and among ***, an exempted company duly incorporated under the laws of the Cayman Islands (the “Company”), and the Investors listed on Schedule A2 thereto (the “Agreement”), as the same may be amended from time to time. Capitalized terms used, but not defined, herein shall have the meaning ascribed to such terms in the Agreement.

The Joining Party hereby acknowledges, agrees and confirms that, by its execution

of this Joinder Agreement, the Joining Party (i) shall be deemed to be a party to the Agreement as of the date hereof and shall have all of the rights and obligations of an “Investor” thereunder as if it had executed the Agreement and (ii) has agreed to purchase [*] *** Shares from the Company at the total purchase price of US\$[*]. The Joining Party hereby ratifies, as of the date hereof, and agrees to be bound by, all of the terms, provisions and conditions contained in the Agreement.

IN WITNESS WHEREOF, the undersigned has executed this Joinder Agreement as of the date written below.

Date: _____, _____

(Print Investor Name)

By:

(Signature)

Name:

Title:

Address:

E-Mail:



ASSETS TRANSFER AGREEMENT

THIS ASSETS TRANSFER AGREEMENT

(this Agreement) is made on _____ in, _____ Province, the People's Republic of China (the PRC or China) among:

- (1) _____, a limited liability company incorporated under the law of the _____ with its registered address at _____;
- (2) _____, a limited liability company incorporated under the _____ law with its legal address at _____ (Purchaser);
- (3) _____, a limited liability company in the form of wholly foreign-owned enterprise incorporated under the _____ law with its registered address at _____;
- (4) _____, a limited liability company incorporated under the _____ law with its registered address at _____; and
- (5) _____, a limited liability company incorporated under the _____ law with its registered address at _____.

_____ hereafter collectively referred to as the Vendors, and each of them as a Vendor. The Vendors and the Purchaser are collectively referred to as the Parties, and either of them as a Party.

WHEREAS

A. Pursuant to a Letter of Intent for Transfer of Assets to a Wholly Foreign-Owned Enterprise in China, dated _____, _____ intends to establish the Purchaser as a limited liability company in the form of a wholly foreign-owned enterprise under the PRC law.

B. The Vendors and the Purchaser have agreed to enter into a legally binding

agreement for the transfer of the Assets (as defined in Article 1 below).

C. As the Purchaser has not been established on the date of this Agreement, ____ has entered into this Agreement to express its full and binding commitment in the context of this transaction and to ensure that all Parties perform their obligations before the Purchaser is formed. Upon its formation, Purchaser shall perform its obligations and exercise its rights in its own name under this Agreement.

NOW, THEREFORE, the Parties agree as follows:

1. THE SALE OF THE ASSETS

1.1 The Vendors agree to sell and the Purchaser agrees to purchase all of the title to, and the rights to use, the Assets (the Assets), which the Vendors currently jointly own and/or use, and/or are necessary for the benefit of the Purchaser's business operations, including without limitation to the following:

- (a) All dental unit manufacturing equipment, machinery, tools and supporting facilities, vehicles, office equipment, moulds and other fixed assets at the Operation Site or at other locations in China;
- (b) All intangible assets, including building leases of the Operation Site (including the right to use the land), trademarks (whether registered or currently pending for registration), technology licences, supplier lists, supply contracts, customer lists, sales and distribution contracts, sales office leases, warehouse contracts and logistics contracts and good will;
- (c) All raw materials, intermediate products, unfinished products, finished products; purchased goods or any other inventory; and
- (d) The Vendors shall use their best effort to ensure that all current employees of the Vendors will be transferred to the Purchaser and receive contracts with remuneration equal to their current level. Mr. _____, Mr. _____, and Mr. _____, (together the Vendor Senior Management) will receive new contracts.

1.2 The physical transfer of Assets shall be conducted on the Closing Date (as defined in Article 4.2 below) and according to the time and means to separately be consulted



and agreed by the Parties.

2. PURCHASE PRICE

The total Transfer Price for the Assets shall be _____ (the Transfer Price), which may be adjusted in such manner and by such amount as specified in Article 3 below.

3. ASSETS VERIFICATION

3.1 The items comprising the Assets, as listed in Appendix 1 hereto, have been checked and verified by the Purchaser against up-to-date lists of those items provided by the Vendors, showing the conditions of the Assets as at _____.

3.2 The Vendors and the Purchaser shall appoint their representative to jointly verify the conditions and completeness of the Assets on the Closing Date against the Assets lists in Appendix 1 hereto.

3.3 If any items of the Assets in Appendix 1 hereto have been found missing, damaged or out of order during the joint verification referred to in Article 3.2 above, the corresponding replacement value(s) of such items shall be deducted from the Transfer Price.

3.4 If there is any dispute between the Parties over the conditions or completeness of the Assets, the dispute shall be settled in accordance with the procedure under Article 10 below.

4. CONDITIONS PRECEDENT AND CLOSING DATE

4.1 The Purchaser's obligation to make payments to the Vendors under Article 5 below is subject to the following conditions precedent having been satisfied or waived to the reasonable satisfaction of the Purchaser or its advisers:

(i) the board of directors of ____ and the General Meeting of ____ and ____ have adopted written resolutions, approving this Agreement and transfer of the Assets;

- (ii) the Guangdong Provincial Commission for Foreign Trade and Economic Cooperation has issued an approval or verification document (as the case may be), approving this Agreement;
- (iii) the Vendors have submitted to the China Trademark Office applications for the assignment by the Vendors to the Purchaser of all trade marks that the Vendors have registered or that are pending for registration in China, and have obtained acceptance in writing by the China Trademark Office of the above applications; upon its formation, the Purchaser shall have the right to use the trademarks without any restriction;
- (iv) the Purchaser has obtained all such government approvals, verifications licences and registrations, including without limitation to medical devices registration, medical device manufacturer licence, fire safety inspection certificate and any other approvals, permits and licenses required for the Purchaser to own, operate and use the Assets and use of the plant buildings of the Operation Site;
- (v) The Purchaser has purchased from an insurance company for the Assets with adequate coverage to the satisfaction of the insurance broker of the Purchaser;
- (vi) the Purchaser has entered into an employment contract with a term of at least twelve (12) months from the Closing Date with each member of the Vendor Senior Management and such employees holding key position as may be required to properly operate the Assets and for its business operations;
- (vii) The Purchaser has entered into all such contracts with its suppliers, distributors, customers and any other relevant parties as may be necessary for its business operation;
- (viii) The Vendors have provided the Purchaser with all technical documentation, engineering drawings and certificates related to the Assets in sufficient details to the satisfaction of the Purchaser; and
- (ix) the joint verification of the Assets referred to in Article 3 above has been completed to the reasonable satisfaction of the Purchaser.
- (x) the Vendors have issued to the Purchaser proper invoices for payment of the Transfer Price – for fixed assets, the Vendors shall issue the ordinary invoice; for inventory, the Vendors shall issue VAT invoice or other formal invoices that are



consistent with their taxpayer status and PRC tax laws; and for the intangible assets, the Vendors (or the tax authority, as the case may be) shall issue the general invoice.

4.2 The Parties shall use their best effort to cooperate to ensure that the conditions precedent referred to in Article 4.1 above are satisfied or fulfilled as soon as possible after the Purchaser is formed. The date when all of the conditions precedent are satisfied shall be the Closing Date.

4.3 If any of the conditions precedent referred to in Article 4.1 above is not satisfied by _____ or any date mutually agreed by the Parties (the CP Expiry Date), except any delay caused by PRC government authorities in the process of forming the Purchaser, either the Vendors or the Purchaser shall have the right to terminated this Agreement by serving a written notice on the other party, unless all unsatisfied conditions precedent have been waived by the Purchaser by the CP Expiry Date. Upon giving such notice of termination, neither Party shall have any claim of any nature whatsoever hereunder against the other Party (except for any liabilities arising from a breach antecedent to the date on which the termination notice is served).

4.4 Notwithstanding Article 4.3 above, the Parties may agree to extend the CP Expiry Date on such date as may be reasonable in the circumstances if any of the conditions precedent referred to in Article 4.1 above is not satisfied or waived by the CP Expiry Date. Any such agreement for extension shall be in writing and signed by the Parties.

5. PAYMENT OF SALE PRICE

5.1 Subject to the provisions of Article 3 and 4 above, the Purchaser shall pay _____ of the Transfer Price to a bank account or accounts designated by the Vendors within ten (10) business days after the Closing Date.

5.2 The Purchaser shall pay the remaining _____ of the Transfer Price (the Second Instalment of the Transfer Price) to a bank account or accounts designated by the shareholders of the Vendors within ten (10) business days after the conditions of (i), (ii), (iii) and (iv) below have been fulfilled:

(i) the accumulated EBIT, which is operating profit before taxes and interest, of the

Purchaser has amounted to not less than ____ for the twelve (12) months, which shall be assessed and confirmed within thirty (30) business days after the expiration of the twelve (12) months; (in calculating EBIT, remuneration of anyone sent from ____ to the Purchaser will be excluded)

(ii) the shareholders of ____ have provided the Purchaser with documentary evidence to the satisfaction of the Purchaser or its counsel, showing that ____ have been liquidated and deregistered and that each of ____ has ceased to manufacture or import any type of dental equipment or related products;

____ has provided the Purchaser with documentary evidence to the satisfaction of the Purchaser or its counsel, showing that ____ ceased to manufacture or import any type of dental equipment or related products and has changed to a new name that has no connection whatsoever with the current business operations of ____ and the business operation of the Purchaser and will not explore any potential business opportunity related to dental equipment or related products initiated by any third party, but to forward the business opportunity to the Purchaser which shall have the sole discretion to decide whether to further explore the business opportunity;

(iii) all members of the Vendor Senior Management and other key employees referred to in Article 4.1 (vii) and Appendix 2 above have remained employed by the Purchaser for twelve (12) months in accordance with their employment contracts; and

(iv) if the Other Rights Registration Certificate or other documentation evidencing the Purchaser's legal interest in the Operation Site is directly or indirectly required by any third party in any circumstances which impacts on the Purchaser's legal status, operation, financial conditions or its general reputation at any time between signing of this Agreement and the fulfilment of the above (i) to (iii) conditions, the Vendors and the Purchaser shall jointly proceed to procure such certificate or documentation. The corresponding costs shall be borne by the Vendors and the Purchaser in equal shares;

5.3 If the Purchaser fails to make either of the full payments in accordance with Article 5.1 above from the due date, the Vendors shall have the right to charge a penalty interest at the benchmark rate as quoted by the People's Bank of China for six-month



Renminbi loans.

5.4 If either of the above payments remains unpaid for 15 business days after the due date, the Vendor shall have the right to terminate this Agreement upon notification to the Purchaser and shall have all other remedies and rights conferred upon it by PRC law.

5.5 The Vendors and the Purchaser shall be responsible for all banking charges imposed by their banks in relation to the payments of the Transfer Price under this Agreement.

6. OUTSTANDING LIABILITIES FOR THE ASSETS

6.1 The Assets under this Agreement shall be free from, and the vendors shall be responsible to settle or remove, any liabilities that remain outstanding up to the Closing Date in connection with, or any security interest or claims by a third party(ies) on, the Assets, including those that arise from transfer of title to, and the right to use, the Assets, the building and land leases and the employment of any employees of the Vendors and the Vendor Senior Management. These liabilities and obligations shall include without limitation:

- (i) all costs, charges, taxes and stamp duties that are payable by the Vendors in connection with the Assets;
- (ii) any liabilities for failure by the Vendors to comply with PRC laws and regulations on business license, urban and rural development planning, building construction, fire safety, environmental protection, occupational health and safety, labour management, foreign exchange, foreign debt registration, medical device manufacturing permits or licenses and social insurance;
- (iii) any liabilities for failure by the Vendors to adopt corporate actions that may be required under the constitutional documents of the Vendors to enter into any previous commercial transactions or equity transfers;
- (iv) any security interest created by the Vendors on the Assets; and

(v) any liabilities to the former and current shareholders of the Vendors.

7. REPRESENTATIONS AND WARRANTIES

7.1 Each of the Vendors hereby warrants, represents, and undertakes to the Purchaser that:

- (a) it has full legal right, power and authority to execute this Agreement, and to perform its obligations under this Agreement;
- (b) it has taken all appropriate and necessary corporate and legal actions to authorise the execution and delivery of this Agreement and to authorise the performance and observance of the terms and conditions of this Agreement, including any required authorisation from its shareholders;
- (c) it has all title and rights to the Assets and the Assets are free from any encumbrance, which shall mean any security interest or third party rights or interests of any kind, and any other type of preferential arrangements (including, without limitation, title transfer and retention arrangements) having a similar effect, and if there is any such encumbrance, it has been removed or discharged, and the Purchaser will have full right and interest to the Assets free from any encumbrance;
- (d) the Assets are in good operating condition, fit for their purpose and are currently in commercial operation or capable of being put into commercial operation, and will be capable of operating in accordance with their design or intended function, on the Closing Date;
- (e) there are no taxes, levies, charges or fees due or payable relating to the Assets (in case there is any, the Vendors shall remain liable therefore after the Closing Date);
- (f) the Assets are as of the date of this Agreement, and when transferred to the Purchaser shall be, in total compliance with all planning requirements, health and fire codes, environmental and occupational safety codes and all similar government regulations, and are not subject to any planning regulations, notices or decrees, or other restrictions which would prohibit the conduct of the planned operations of the



Purchaser;

(g) Each of the Vendors shall assist the Purchaser in obtaining all licences, permits, approvals and other authorisations as are necessary in order to enable the Purchaser to own, operate, and use the Assets as they are currently being used. All such licenses, permits, approvals, and authorisations are in full force and effect and will not be terminated or forfeited as a result of the transactions contemplated hereby. No violations have been recorded or alleged in respect of any such licences, approvals or authorisations, and no proceeding is pending or, to the knowledge of each of the Vendors, threatened or contemplated with respect to the revocation or limitation of the same;

(h) neither Vendors nor any affiliate of the Vendors has any material obligations or liabilities with respect to the Assets for which the Purchaser shall be liable;

(i) neither the Vendors nor any affiliate of the Vendors is engaged in or is a party to or, to the knowledge of the Vendors, is threatened with any suit, action, proceedings, investigation or legal, administrative, arbitration or other method of proceedings, investigation or settling disputes or disagreements or governmental investigation relating to the Assets; and

(j) all facts concerning the Assets which might be material for disclosure to an intending transferee of the Assets have been disclosed to the Purchaser, and all such information which has been given by, or on behalf of, the Vendors to the Purchaser before and during the negotiations leading to this Agreement is true, complete and accurate in all respects and not misleading in any respect; and

(k) without the prior written consent of the Purchaser, the Vendors will not take any actions, which may adversely affect the value or conditions of the Assets, or dispose of any of the Assets from the date of this Agreement to the Closing Date, except for its ordinary course of business operations.

Each of the above representations, warranties and undertakings shall be construed separately and independently and (save where expressly provided to the contrary) shall not be limited or restricted by reference to or inference from any other provisions of

this Agreement.

7.2 As from the date of execution of this Agreement, the Vendors:

- (i) shall not, and shall procure that the Vendor Senior Management or employees will not, do or allow any act or omission which would constitute a breach of any of the above warranties; and
- (ii) shall disclose to the Purchaser in writing immediately upon becoming aware of any matter (including any omission to act) which arises or becomes known to the Vendors to constitute a breach of any of the above warranties.

8. THE PURCHASER' S REMEDIES AND LIMITATION PERIOD

8.1 The Vendors shall be severally and jointly liable to the Purchaser for all obligations of the Vendors under this Agreement including but not limited to the representations, warranties and undertakings referred to in above Article 7.

8.2 If the Purchaser becomes aware that any of the Vendors is in breach of any of the representations, warranties or undertakings in Article 7 above, the Purchaser may at its option (but without prejudice to any other right or other remedy it may have) demand damages to be payable by any of the Vendors within ten (10) days of such a demand being served in writing by the Purchaser to the Vendor.

8.3 The Vendors shall indemnify and hold the Purchaser harmless in relation to any obligations or liabilities with respect to the Assets for which the Purchaser is not liable.

8.4 Notwithstanding the provisions of Article 8.1 above or any other provisions of this Agreement, the Purchaser shall not have the right to claim any damages from any of the Vendors upon the expiration of thirty-six (36) months after the Closing Date on the ground of a breach of any of the representations, warranties or undertakings or for any defects of the Assets under this Agreement.

9. BREACH OF THE AGREEMENT

9.1 Should any Party breach the terms of this Agreement, it shall rectify the breach, if



such breach is rectifiable, within thirty (30) business days after the non-defaulting Party notifies the Party in breach of the nature of the breach and demand the rectification. If the Party in breach fails to rectify the breach, it shall pay liquidated damages to the non-defaulting Party, which shall be the equivalent to the direct (not consequential) losses sustained by the non-breaching Party as a direct consequence of such breach, and shall continue to be bound to carry out the terms of this Agreement. If any of the Vendors or any member of the Vendor Senior Management is in breach of any of the terms of this Agreement, the Purchaser shall have the right to claim liquidated damages and deduct such amounts from the Second Instalment of the Transfer Price provided that such breaches occur in the twelve (12) months following the Closing Date.

10. GOVERNING LAW AND DISPUTE RESOLUTION

10.1 This Agreement shall be governed by, and shall be construed in accordance with the laws of the People's Republic of China.

10.2 The Parties shall strive to resolve firstly through friendly consultations any dispute, controversy or claim arising out of or in connection with this Agreement. In the event that no such resolution of any such dispute, controversy or claim has been reached within sixty (60) days of written notification of the dispute, controversy or claim by one of the parties to the other party, then all disputes, controversies or claims arising in connection with this Agreement shall be finally settled under the Arbitration Rules of the China International Economic and Trade Arbitration Commission (CIETAC) in affect at the time of applying the arbitration by three arbitrators appointed in accordance with the said Rules. The arbitration institute shall be the CIETAC. The place of arbitration shall be Beijing.

10.3 The language of the arbitration shall be English and Chinese.

10.4 The arbitral award shall be final and binding upon the parties and shall be enforced in accordance with its terms.

10.5 The arbitral award may be enforced by any party by application to any court

having jurisdiction. Any arbitration expense shall be paid by the party or parties as awarded or as fixed by the arbitral tribunal.

10.6 During the period when a dispute is being resolved, the Parties shall in all other respects continue their implementation of this agreement.

11. NON-COMPETE

11.1 The Vendors and the members of the Vendor Senior Management shall undertake to the Purchaser that they will not to compete with the Purchaser for five (5) years after the Closing Date, including undertakings not to:

- (a) carry on or be interested or engaged in any executive, technical, marketing, advisory or other capacity including having any financial interest in any business concern (of whatever kind and wherever located) which is in competition with the Purchaser;
- (b) knowingly assist any competitor of the Purchaser in carrying on or developing any business which would compete with the Purchaser;
- (c) on its own account or in conjunction with or on behalf of any other person in respect of the Purchaser's products, either seek to obtain orders from, or do business with, or encourage directly or indirectly another person to obtain orders from or do business with, any customer of the Purchaser; or
- (d) solicit for employment or employ any employees of the Purchaser.

11.2 If any of the Vendors and any member of the Vendor Senior Management is in breach of the non-compete undertakings referred to in Article 11.1 above, such breach shall constitute a breach of this Agreement and the Purchaser shall have the rights to claim liquidated damages under Article 9 above.

12. MISCELLANEOUS

12.1 This agreement may be executed in any number of counterparts in English and Chinese languages. In case of any discrepancy, the English version of this Agreement shall prevail.



12.2 This Agreement with its Appendix constitutes the entire agreement and understanding between the Parties in connection with the sale and transfer of the Assets, and shall supersede all previous agreements, letters of intent, memoranda of understanding, and correspondence between the Parties and their affiliates with respect to the subject matter of this Agreement.

12.3 If any provision of this Agreement is held to be invalid or unenforceable, then such provision shall (so far as it is invalid or unenforceable) be given no effect and shall be deemed not to be included in this Agreement but without invalidating any of the remaining provisions of this Agreement. If any provision of this Agreement is held to be invalid or unenforceable only with respect to one Party, then such provision shall (so far as it is invalid or unenforceable) be given no effect only with respect to the one Party but without invalidating the provision with respect to other Parties.

12.4 None of the Vendors may assign or transfer any or all of its rights and obligations under this Agreement to another person or entity without the prior written consent of the Purchaser, which shall not be unreasonably withheld. This Agreement shall be valid, binding upon and enforceable against any of the successors or assigns of an assigning Party.

12.5 This Agreement, after being executed by the Parties, shall be submitted to the Guangdong Provincial Commission for Foreign Trade and Economic Cooperation for approval before it becomes effective. Any amendments hereto shall be by agreement between the Parties in writing.

12.6 The transaction under this Asset Transfer Agreement will be subject to approval by _____'s financing banks.

IN WITNESS WHEREOF the Parties have caused this Agreement to be executed by their respective authorised representative with effect from the date specified on the first page of this agreement.

By: _____

Name: _____

Title: _____

By: _____

Name: _____

Title: _____

By: _____

Name: _____

Title: _____

By: _____

Name: _____

Title: _____

By: _____

Name: _____

Title: _____

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AGENCY AGREEMENT

This agreement (the “Agreement”), made as of [INSERT DATE, MONTH, YEAR] (the “Effective Date”) by and between [INSERT COMPANY NAME], a [INSERT ENTITY TYPE] established under the laws of [INSERT JURISDICTION] and with a place of business at [INSERT ADDRESS] (“[ABC]”) and [INSERT AGENT NAME], a [INSERT ENTITY TYPE] established under the laws of [INSERT JURISDICTION] and located at [INSERT AGENT ADDRESS] (“Agent”).

WITNESSETH:

WHEREAS, [ABC] manufacture Products (as defined below) which [ABC] would like to sell in the Territory (as defined below); and

WHEREAS, Agent has access to the markets in the Territory and is willing to sell, market and promote the Products in the Territory on [ABC]’s behalf, upon the terms and conditions set forth in this Agreement;

NOW, THEREFORE, the parties agree as follows:

1. DEFINITIONS.

The following terms shall have the following definitions:

1.1 Products shall mean the products listed in Schedule A of this Agreement, as amended from time to time in a writing signed by both Parties. Nothing herein shall give Agent any automatic right to sell, market and promote any new or additional products on behalf of [ABC] or its affiliates.

1.2 Target Customers shall mean specified customers listed in Schedule D of this

Agreement, as amended from time to time in a writing signed by both Parties.

1.3 Territory shall mean the province/state/country/region listed in Schedule C.

1.4 Trademarks shall mean all the trademarks, trade names and designs associated with the Products, whether registered or unregistered.

2. REPRESENTATIONS AND WARRANTIES OF THE PARTIES.

2.1 Representations and Warranties of [ABC].

2.1.1 [ABC] is a corporation duly organized, validly existing and in good standing under the laws of the state or jurisdiction in which it is incorporated.

2.1.2 The execution, delivery and performance of this Agreement does not conflict with any other agreement, contract, instrument or understanding, oral or written, to which [ABC] is a party, or by which it is bound, nor will it violate any law or regulation of any legislature, court, governmental body, administrative agency or other authority, having jurisdiction over [ABC].

2.2 Representations and Warranties of Agent.

2.2.1 Agent is a corporation duly organized, validly existing and in good standing under the laws of the state or jurisdiction in which it is incorporated.

2.2.2 The execution, delivery and performance of this Agreement does not conflict with any other agreement, contract, instrument or understanding, oral or written, to which Agent is a party, or by which it is bound, nor will it violate any law or regulation of any legislature, court, governmental body, administrative agency or other authority, having jurisdiction over Agent.

2.2.3 Agent has sufficient capital and assets to carry out all activities necessary to comply with this Agreement.

2.2.4 Agent has all necessary authorizations, approvals, permits, registrations, security clearances, and licenses necessary to sell, market and promote the Products in the Territory and to comply with all obligations under this Agreement.



3. SCOPE OF APPOINTMENT.

3.1 Appointment. [ABC] hereby appoints Agent as [ABC]'s non-exclusive agent to sell, market and promote the Products to Target Customers in the Territory on behalf of [ABC] upon the terms and conditions set forth in this Agreement.

3.2 Acceptance. Agent hereby accepts the appointment and agrees to use its best efforts to sell, market and promote the Products to Target Customers in the Territory. Agent agrees to comply with any and all obligations established in this Agreement.

3.3 Non-Exclusivity. [ABC] reserves the right to sell through other agents or representatives any Products in the Territory, including to Target Customers.

4. SALE OF PRODUCTS.

4.1 Terms of Sale. All sales of the Products made by Agent on behalf of [ABC] shall be made on such terms and conditions as set forth in Schedule B or as [ABC] may otherwise from time to time specify in writing to Agent, including, without limitation, terms and conditions relating to product warranties, and accordingly:

- 1) Agent agrees to not offer the Products on behalf of [ABC] upon any terms other than those notified by [ABC] to the Agent from time to time nor represent that [ABC] would be willing to vary such terms; and
- 2) Agent shall not make or give any promises, warranties, guarantees or representations concerning the Products other than those contained in such terms and conditions.

4.2 Prices.

1) Until adjusted, the initial prices for the Products will be as set forth in Schedule A. All Products sold by [ABC] through Agent shall be sold [EXW] Incoterms® 2010. Consequently, initial prices set by [ABC] assume that the customers will be responsible for paying, in addition to the gross invoiced prices, all costs related to transportation (including loading and unloading, transportation to/from ports and other facilities, any charges at ports), import customs clearance charges and import taxes.

2) [ABC] reserves the right to change its prices, terms and conditions at any time. However, [ABC] will inform Agent, in writing, not less than [thirty (30)] calendar days before putting any change of price for the Products into effect.

4.3 Orders.

1) Products ordered by customers or by Agent on behalf of customers shall be set forth in a written purchase order sent by customers to [ABC] no later than [thirty (30)] calendar days prior to the requested delivery date.

2) All orders for Products secured by Agent shall be subject to acceptance by [ABC]. Agent has no authority to accept any order, to conclude any transaction on behalf of [ABC] or otherwise to bind [ABC] unless specifically authorized to do so in writing by [ABC].

3) [ABC] reserves the right, in its sole discretion, to reject and to refuse to fill any order for Products. If [ABC] fails or refuses to accept a request or any portion of an order, it will not be obligated to make any payment to Agent as commission, reimbursement, indemnification or otherwise.

4.4 Delivery and Packaging.

Products shall be standard packed by [ABC]. Extra or special packaging, if required, shall be paid by the customer.

5. OBLIGATIONS OF AGENT

5.1 Sales Goals.

Agent shall use its best efforts to meet the sales goals set forth in Schedule E. Sales goals may at any time be amended by mutual written agreement of the parties. The parties shall regularly, at least twice per year, together review and develop the sales goals set forth in Schedule E which shall include general and customer-specific sales goals, promotional strategies, including mutually agreed yearly advertising and promotional budget breakdown, and other relevant actions.

5.2 Facilities. During the term of this Agreement Agent shall maintain a suitable



place of business and adequate facilities, including competent personnel, to enable performance of its obligations under this Agreement.

5.3 Reports and Inspection.

1) Agent shall submit periodic reports to keep [ABC] advised of sales of the Products, customer information, and current market and competitive conditions. Agent shall advise [ABC] promptly of any changes in applicable laws and regulations relating to the Products in the Territory.

2) [ABC] may inspect at any reasonable time all facilities of Agent in which Agent performs its obligations hereunder.

3) [ABC] and its auditors, and any representative nominated in writing by [ABC] for the purpose, may inspect or audit at any reasonable time any records of Agent which [ABC] deems reasonable and necessary to ascertain Agent's compliance with this Agreement.

5.4 Expenses. Except as provided elsewhere in this Agreement, or as [ABC] and Agent otherwise may from time to time expressly agree in writing, Agent shall bear the entire cost and expense of its performance of this Agreement, including, but not limited to, taxes, licenses, permits and approvals. In no event shall [ABC] be liable for any expenses or costs incurred by Agent unless [ABC] has specifically agreed in writing to pay such expenses or costs.

6. INTELLECTUAL PROPERTY.

6.1 Intellectual Property Rights.

6.1.1 Agent shall not, during the term of this Agreement or thereafter, own or have, nor shall Agent represent that it owns, the license of or any rights in or to the Trademarks or the trade names, distinctive packaging or designs of [ABC] or patents relating to any of the Products, whether or not such intellectual property rights are registered, and Agent shall not dispute the validity of any such intellectual property rights.

6.1.2 Use of [ABC] Trademarks in advertisements, letterheads or otherwise must be approved in advance by [ABC] in writing.

6.1.3 Agent agrees that upon termination or expiration of this Agreement, it will discontinue all use of [ABC]’s Trademarks and shall not thereafter, directly or indirectly, sell, market and promote any products bearing the Trademarks, or trademarks, names, packaging or designs similar to the Trademarks. Agent shall not use trademarks, trade names, packaging or designs confusingly similar to the Trademarks without express written consent of [ABC].

6.2 No License. No license, express or implied, is granted under this Agreement by [ABC] or other affiliates of [ABC] under any of their patents, know-how, Trademarks or other intellectual property.

6.3 Infringement. Agent shall report promptly to [ABC] any allegation of infringement of the Trademarks, or imitation of the Trademarks or the Products, of which Agent may learn, and shall assist [ABC] in protecting its rights in and to the Trademarks and the Products. Agent shall not initiate any protective action with respect to the Trademarks or the Products without [ABC]’s prior written authorization.

7. NON-DISCLOSURE OF CONFIDENTIAL INFORMATION.

7.1 “Confidential Information” shall mean information regarding the terms of this Agreement and [ABC]’s business, operations, employees or affairs, including, without limitation, confidential, proprietary or commercially sensitive information relating to its products, formulations, protocols, processes, designs, test methods, evaluation techniques, patents, trade secrets, scientific or technical data, regardless of the form in which it is maintained or provided (whether provided orally or in writing).

7.2 Agent shall keep [ABC]’s Confidential Information in strict confidence and not disclose such Confidential Information, in whole or in part, to any person other than those employees who need to know such Confidential Information for the purpose of the sale, marketing or promotion of the Products; provided that Agent shall inform



its employees in advance of the confidential nature of such information. Agent will undertake precautions to safeguard and protect the confidentiality of the Confidential Information that are at least as protective as the precautions undertaken by Agent with respect to its own confidential and competitively valuable business information.

7.3 Agent's obligations under Section 7.2 shall not apply to the extent, but only to the extent that any of the Confidential Information:

- a. was publicly available, published or in the public domain prior to the date of this Agreement or thereafter becomes publicly available without any violation of this Agreement on the part of Agent or any of its employees;
- b. was known by Agent or its employees prior to its disclosure to Agent or its employees by [ABC];
- c. becomes available to Agent or its employees from a person other than [ABC] or its employees which is not, to Agent (or its employees') knowledge or reasonable belief, subject to any legally binding or fiduciary obligation to keep such information confidential; or
- d. is independently developed by or on behalf of Agent, without reliance on Confidential Information received hereunder.

7.4 Agent obligations under this Section 7 shall survive after the termination of this Agreement. All Confidential Information in written form, and all written documents, presentations or other records into which Confidential Information is incorporated, shall at [ABC]'s request or upon termination or expiration of this Agreement for any reason, be returned to it or destroyed by Agent be returned to [ABC]. Notwithstanding the foregoing, Agent shall not be required to erase any computer records or files containing Confidential Information that have been created pursuant to its standard archiving or backup procedures, and if to the extent required by applicable law, rule or regulation, one (1) copy may be retained by counsel of the receiving party for the sole purpose of ensuring compliance with such law, rule or regulation.

8. TERM AND TERMINATION.

8.1 Term. This Agreement shall commence on the Effective Date and continue for a period of [one (1) year], and shall be renewed on an annual basis by [ABC] upon delivery of a renewal notice, unless earlier terminated in accordance with Section 8 of this Agreement.

8.2 Termination. Notwithstanding any other provisions of this Agreement and in addition to any other rights or remedies of [ABC] hereunder:

1) [ABC] may terminate this Agreement with immediate effect upon written notice to Agent upon the occurrence of any of the following events:

a. An attempted assignment, delegation or transfer, in whole or in part, of this Agreement by Agent without the written consent of [ABC]; or

b. The failure of Agent to meet set sales goals in any twelve month period or failure by [ABC] and Agent to agree on such sales goals; or

c. A material adverse change in the financial condition of Agent which in the sole discretion of [ABC] impairs Agent's ability to perform the terms of this Agreement; or

d. The direct or indirect change in key employee of, or ownership or control or corporate reorganization of, Agent[, including any change in de jure or de facto majority control or ownership over the business or affairs of Agent]; or

e. Agent engages in or is charged with unethical or illegal practices, thereby jeopardizing, in the opinion of [ABC], [ABC]'s good name and goodwill; or

f. The violation by Agent of the provisions of Sections 5.2 (Advertising & Promotion) 5.7 (Competition), 5.10 (Business Conduct), Section 6 (Intellectual Property) or 7 (Non-Disclosure of Confidential Information) hereof.

Agent shall notify [ABC] of all changes in ownership or control or corporate reorganization of Agent prior to the effective date thereof.

2) Either [ABC] or Agent may terminate this Agreement with immediate effect upon written notice to the other in the event of any of the following:



- a. An assignment by such other Party for the benefit of creditors;
- b. The admitted insolvency of such other Party;
- c. The institution of voluntary or involuntary proceedings by or against such other Party in bankruptcy, insolvency, moratorium or for a receivership, or for a winding-up or dissolution or reorganization of such other Party; or
- d. The taking of any action by such other Party under an act for relief from creditors.

3) Without limiting the provisions of Sections 8.2.a and 8.2.b above, either [ABC] or Agent may terminate this Agreement upon [thirty (30)] calendar days prior written notice to the other upon the failure of such other Party to perform or observe an obligation imposed by this Agreement, unless such other Party cures such failure within such [thirty (30)] calendar day period.

4) Either [ABC] or Agent may terminate this Agreement at the end of the initial term or at any time thereafter by giving [sixty (60)] calendar days prior written notice of termination to the other Party.

8.3 Effect of Termination or Expiration. Upon termination or expiration of this Agreement, Agent shall immediately cease selling, marketing and promoting the Products; and

1) The rights of any Party against any other which may have accrued up to the date of such termination or expiration and the provisions of Sections 6.8 (Reports and Inspections), 6.10 (Business Conduct), 7 (Intellectual Property), 9 (Term and Termination), and 10.2 (Non-waiver) of this Agreement shall survive such termination or expiration and remain in effect.

2) Unless required by law, no Party will be liable to the other for damages, indemnity or compensation solely on account of termination or expiration of this Agreement with or without cause as provided herein, whether such damages, indemnity or compensation might be claimed for loss through commitments or obligations of leases, loss of investments, loss of present or prospective profits, loss of goodwill or any other loss caused by termination or expiration of this Agreement as provided.

3) Upon termination, [ABC]'s sole obligation shall be to pay Agent for any work

performed prior to such termination and to reimburse Agent for any expenses incurred in accordance with Section 5.

9. GENERAL PROVISIONS

9.1 Independent Contractor. The relationship of [ABC] and Agent established by this Agreement is that of independent contractor, and nothing contained in this Agreement shall be construed (i) to give either party the power to direct and control the day-to-day activities of the other, (ii) to constitute the parties as partners, joint venturers, co-owners or otherwise as participants in a joint undertaking, or (iii) to allow Agent to create or assume any obligation on behalf of [ABC] for any purpose whatsoever, except as set forth herein. All financial and other obligations associated with Agent's business are the sole responsibility of Agent.

9.2 Non-waiver. Failure of [ABC] or Agent to terminate this Agreement or to exercise any of its other rights under this Agreement after any breach of this Agreement, or failure to comply with any provision thereof, by [ABC] or Agent shall not be deemed a waiver by [ABC] or Agent of any of its defenses, rights or causes of action arising from such or any other breach or non-compliance. No waiver of any breach of this Agreement shall be effective unless in writing and no waiver shall constitute a waiver of any subsequent breach. The terms of this Section 10 survive any termination of this Agreement.

9.3 Force Majeure. A Party shall be excused from performance under this Agreement and shall not be liable for losses or damage sustained by the other as a result of a delay caused by a Force Majeure event, during the period of such delay. A Force Majeure event shall mean all events which are beyond the control of an affected Party to this Agreement and which prevent total or partial performance by the affected Party. Such events shall include earthquakes, typhoons, flood, fire, war, strikes, riots, acts of governments, changes in law or the application thereof or any other instances which are beyond the control of a Party, including instances which are accepted as Force Majeure



in general international commercial practice.

1) If an event of Force Majeure occurs, an affected Party's contractual obligations under this Agreement shall be suspended during the period of delay caused by the Force Majeure and shall be automatically extended, without penalty or liability, for a period equal to such suspension.

2) The Party claiming Force Majeure shall promptly inform the other Party in writing and shall furnish within five (5) working days thereafter, sufficient proof of the occurrence and estimated duration of such Force Majeure event. The Party claiming Force Majeure shall also use all reasonable endeavours to terminate the Force Majeure.

3) In the event of Force Majeure, the Parties shall immediately consult with each other in order to find an equitable solution and shall use all reasonable endeavours to minimize the consequences of such Force Majeure.

9.4 Notices.

1) Any notice or request given under this Agreement shall be in [English] and shall be deemed to have been sufficiently given when (i) it has been sent by hand delivery or overnight courier service with delivery confirmation and (ii) it has been addressed to the receiving Party at their respective address set forth below:

If to [ABC]:

[INSERT ADDRESS]

[INSERT ADDRESS]

Attn: [INSERT CONTACT PERSON/TITLE]

If to Agent:

[INSERT ADDRESS]

[INSERT ADDRESS]

Attn: [INSERT CONTACT PERSON/TITLE]

2) Either Party may be given written notice of change of address, in which event any such notice or request shall thereafter be given to it as above provided at such changed address.

3) All such notices or requests shall be effective upon receipt by the sender of

confirmation of the delivery, or where no such confirmation is possible, when received.

9.5 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the People's Republic of China without giving effect to conflicts of laws principles thereof. Agent agrees that any legal suit, claim, action or proceeding arising out of or relating in any way to this Agreement shall be brought in [INSERT APPLICABLE COURT] (the "Court") exclusively. Agent irrevocably submits to the exclusive jurisdiction of the Court in any such suit, claim, action or proceeding and waives any objection to the laying of venue in the Court.

9.6 Entire Agreement; Amendments. The terms and provisions contained in this Agreement, including the Schedules attached hereto, constitute the entire Agreement between the Parties and supersede all previous communications, representations, agreements or understandings, whether oral or written, between the Parties with respect to the subject matter hereof. All amendments and other modifications hereof shall be in writing and signed by [ABC] and Agent.

9.7 Captions. The captions of the sections in this Agreement are for convenience only and shall not control or affect the meaning or construction of any of the provisions of this Agreement.

9.8 Binding on Assigns; Assignability. This Agreement shall be binding upon and shall insure to the benefit of the Parties hereto and their respective successors and assigns; provided, however, that Agent shall not directly or indirectly sell, transfer, subcontract, assign, pledge or otherwise encumber this Agreement to any person or entity without the prior written consent of [ABC]. For purposes of this Agreement, the transfer by Agent of all or substantially all of its assets or the transfer of a majority of its outstanding voting stock will be deemed to be an assignment of this Agreement. Therefore, Agent must obtain [ABC]'s written approval prior to any such transfer. [ABC] shall have the right to assign this Agreement without the written consent of Agent.

9.9 Invalid Provisions. If any provision of this Agreement is held to be illegal, invalid or unenforceable under any applicable present or future law, and if the rights or obligations of any Party hereto under this Agreement will not be materially



and adversely affected thereby, (a) such provision will be fully severable, (b) this Agreement will be construed and enforced as if such illegal, invalid or unenforceable provision had never comprised a part hereof, (c) the remaining provisions of this Agreement will remain in full force and effect and will not be affected by the illegal, invalid or unenforceable provisions or by its severance herefrom and (d) in lieu of such illegal, invalid or unenforceable provision, there will be added automatically as a part of this Agreement, a legal, valid and enforceable provision as similar in terms to such illegal, invalid or unenforceable provision as may be possible.

9.10 Counterparts. This Agreement may be executed in two or more counterparts, each of which shall be deemed an original and all of which shall constitute one and the same instrument.

9.11 Language of Contract. This text of this Agreement in the English language shall be the original text, and any text in another language, even if such a text is made by translation of the text in English language or prepared by any of the Parties hereto for the purpose of its own convenience, shall have no meaning for any purpose between the Parties hereto. Any information to be provided under this Agreement, including, without limitation, any Intellectual Property, has to be provided in the English language.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

[INSERT COMPANNY NAME] [INSERT AGENT NAME]

as [ABC] as Agent

By:_____

By:_____

Name:_____

Name:_____

Title:_____

Title:_____

SCHEDULE A

PRODUCTS & PRICES

SCHEDULE B

TERMS OF SALE

SCHEDULE C

TERRITORY

SCHEDULE D

TARGET CUSTOMERS

SCHEDULE E

SALES GOALS



CONSULTING SERVICE AGREEMENT

THIS CONSULTING SERVICE AGREEMENT (the “Agreement”) dated this _____ day of _____, _____.

BETWEEN:

CLIENT

CONSULTANT

(the “Client”)

(the “Consultant”)

BACKGROUND

A. The Client is of the opinion that the Consultant has the necessary qualifications, experience and abilities to provide consulting services to the Client.

B. The Consultant is agreeable to providing such consulting services to the Client on the terms and conditions set out in this Agreement.

IN CONSIDERATION OF the matters described above and of the mutual benefits and obligations set forth in this Agreement, the receipt and sufficiency of which consideration is hereby acknowledged, the Client and the Consultant (individually the “Party” and collectively the “Parties” to this Agreement) agree as follows:

SERVICES PROVIDED

1. The Client hereby agrees to engage the Consultant to provide the Client with the following consulting services (the “Services”):

2. The Services will also include any other consulting tasks which the Parties may

agree on. hereby agrees to provide such Services to the Client.

TERM OF AGREEMENT

3. The term of this Agreement (the “Term”) will begin on the date of this Agreement and will remain in full force and effect until the completion of the Services, subject to earlier termination as provided in this Agreement. The term may be extended with the written consent of the Parties.

PERFORMANCE

4. The Parties agree to do everything necessary to ensure that the terms of this Agreement take effect.

CURRENCY

5. Except as otherwise provided in this Agreement, all monetary amounts referred to in this Agreement are in RMB (RenMinBi Yuan).

COMPENSATION

6. The Consultant will charge the Client a flat fee of ¥ _____ for the Services (the “Compensation”).

7. The Client will be invoiced when the Services are complete.

8. Invoices submitted by the Consultant to the Client are due within 30 days of receipt.

9. In the event that this Agreement is terminated by the Client prior to completion of the Services but where the Services have been partially performed, the Consultant will be entitled to pro rata payment of the Compensation to the date of termination provided that there has been no breach of contract on the part of the Consultant.

10. The Compensation as stated in this Agreement does not include sales tax, or other applicable duties as may be required by law. Any sales tax and duties required by law



will be charged to the Client in addition to the Compensation.

REIMBURSEMENT OF EXPENSES

11. The Consultant will be reimbursed from time to time for reasonable and necessary expenses incurred by the Consultant in connection with providing the Services.

12. All expenses must be pre-approved by the Client.

CONFIDENTIALITY

13. Confidential information (the “Confidential Information”) refers to any data or information relating to the Client, whether business or personal, which would reasonably be considered to be private or proprietary to the Client and that is not generally known and where the release of that Confidential Information could reasonably be expected to cause harm to the Client.

14. The Consultant agrees that they will not disclose, divulge, reveal, report or use, for any purpose, any Confidential Information which the Consultant has obtained, except as authorized by the Client or as required by law. The obligations of confidentiality will apply during the Term and will survive indefinitely upon termination of this Agreement.

15. All written and oral information and material disclosed or provided by the Client to the Consultant under this Agreement is Confidential Information regardless of whether it was provided before or after the date of this Agreement or how it was provided to the Consultant.

OWNERSHIP OF INTELLECTUAL PROPERTY

16. All intellectual property and related material, including any trade secrets, moral rights, goodwill, relevant registrations or applications for registration, and rights in any patent, copyright, trademark, trade dress, industrial design and trade name (the “Intellectual Property”) that is developed or produced under this Agreement, is a “work

made for hire” and will be the sole property of the Client. The use of the Intellectual Property by the Client will not be restricted in any manner.

17. The Consultant may not use the Intellectual Property for any purpose other than that contracted for in this Agreement except with the written consent of the Client. The Consultant will be responsible for any and all damages resulting from the unauthorized use of the Intellectual Property.

RETURN OF PROPERTY

18. Upon the expiration or termination of this Agreement, the Consultant will return to the Client any property, documentation, records, or Confidential Information which is the property of the Client.

CAPACITY/INDEPENDENT CONTRACTOR

19. In providing the Services under this Agreement it is expressly agreed that the Consultant is acting as an independent contractor and not as an employee. The Consultant and the Client acknowledge that this Agreement does not create a partnership or joint venture between them, and is exclusively a contract for service. The Client is not required to pay, or make any contributions to, any social security, local, state tax, unemployment compensation, workers' compensation, insurance premium, profit-sharing, pension or any other employee benefit for the Consultant during the Term. The Consultant is responsible for paying, and complying with reporting requirements for, all local, state taxes related to payments made to the Consultant under this Agreement.

NOTICE

20. All notices, requests, demands or other communications required or permitted by the terms of this Agreement will be given in written and delivered to the Parties at the



following addresses:

- a. _____
- b. _____

or to such other address as either Party may from time to time notify the other, and will be deemed to be properly delivered (a) immediately upon being served personally, (b) two days after being deposited with the postal service if served by registered mail, or (c) the following day after being deposited with an overnight courier.

INDEMNIFICATION

21. Except to the extent paid in settlement from any applicable insurance policies, and to the extent permitted by applicable law, each Party agrees to indemnify and hold harmless the other Party, and its respective affiliates, officers, agents, employees, and permitted successors and assigns against any and all claims, losses, damages, liabilities, penalties, punitive damages, expenses, reasonable legal fees and costs of any kind or amount whatsoever, which result from or arise out of any act or omission of the indemnifying party, its respective affiliates, officers, agents, employees, and permitted successors and assigns that occurs in connection with this Agreement. This indemnification will survive the termination of this Agreement.

MODIFICATION OF AGREEMENT

22. Any amendment or modification of this Agreement or additional obligation assumed by either Party in connection with this Agreement will only be binding if evidence in writing signed by each Party or an authorized representative of each Party.

TIME OF THE ESSENCE

23. Time is of the essence in this Agreement. No extension or variation of this Agreement will operate as a waiver of this provision.

ASSIGNMENT

24. The Consultant will not voluntarily, or by operation of law, assign or otherwise transfer its obligations under this Agreement without the prior written consent of the Client.

ENTIRE AGREEMENT

25. It is agreed that there is no representation, warranty, collateral agreement or condition affecting this Agreement except as expressly provided in this Agreement.

ENUREMENT

26. This Agreement will enure to the benefit of and be binding on the Parties and their respective heirs, executors, administrators and permitted successors and assigns.

FORCE MAJEURE

27. The Consultant shall be excused for failure to provide the Services hereunder to the extent that such failure is directly or indirectly caused by an occurrence commonly known as “force majeure”, including without limitation, delays arising out of acts of God, acts or orders of a government, agency or instrumentality thereof (whether of fact or law), acts of public enemy, riots, embargoes, strikes or other concerted acts of workers (with of the Consultant or other persons), casualties or accidents, delivery of materials, transportation or shortage of ships, cars, trucks, fuel, power, labor or materials or any other causes, circumstances or contingencies that are beyond the control of the Consultant; provided, however, that the Consultant shall use its best efforts to resume provision of the Services as soon as possible. Notwithstanding any events operating to excuse performance by the Consultant, this Agreement shall continue in full force for the remainder of the term and any renewals thereof.



TITLES/HEADINGS

28. Headings are inserted for the convenience of the Parties only and are not to be considered when interpreting this Agreement.

GOVERNING LAW

29. This Agreement will be governed by and construed in accordance with the laws of the People's Republic of China.

HANDLING OF DISPUTES

30. Any dispute arising from or in connection with this Agreement shall be submitted to Shenzhen Court of International Arbitration Mediation Center for mediation. If the mediation is successful, the Parties agree to submit the settlement agreement to SCIA to request that an arbitral award be rendered in accordance with the Arbitration Rules and based on the terms of the settlement agreement. If any Party is unwilling to mediate or the mediation fails, the dispute shall be referred to SCIA for arbitration."

SEVERABILITY

31. In the event that any of the provisions of this Agreement are held to be invalid or unenforceable in whole or in part, all other provisions will nevertheless continue to be valid and enforceable with the invalid or unenforceable parts severed from the remainder of this Agreement.

WAIVER

32. The waiver by either Party of a breach, default, delay or omission of any of the provisions of this Agreement by the other Party will not be construed as a waiver of any subsequent breach of the same or other provisions.

IN WITNESS WHEREOF the Parties have duly affixed their signatures under hand and seal on this ____ day of ____, ____.

(Client)

(Consultant)



INTELLECTUAL PROPERTY TRANSFER AGREEMENT

THIS INTELLECTUAL PROPERTY TRANSFER AGREEMENT (the “Agreement”) is made on [date], 2019

BETWEEN

1. _____, a company incorporated in the country of _____, whose principal office is at _____ (“Transferor”); and _____, a corporation organized under the laws of the _____, whose principal office is at _____
2. _____ (the “Company”).

WHEREAS

(A) Transferor has agreed to sell and/or transfer all of its and its applicable affiliates’ right, title and interest in the Intellectual Property (as defined below) to the Company, and

(B) The Company has agreed to purchase and accept the same for the Consideration (as defined below).

NOW, IT IS AGREED as follows:

1.1 Definitions and Interpretation.

1.2 In this Agreement:

Business Day means a day (other than a Saturday or Sunday) on which banks generally are open in _____ for the transaction of a full range of business.

Buyer means _____

Completion means completion of the transfer hereunder in accordance with Section 3.

Consideration has the meaning given to it Section 2.2.

Intellectual Property means the software applications (together with all source and object code and documentation related thereto and all intellectual property rights therein) and other intellectual property rights described on Schedule A.

Transfer Time means close of the Business Day on the date of this Agreement.

1.3 In this Agreement:

(a) the headings are inserted for convenience only and shall not affect the construction of this Agreement;

(b) a reference to sell or purchase or transfer includes a reference to procure the sale of or procure the purchase of or procure the transfer of, as the case may be; and

(c) general words introduced by the word other shall not be given a restrictive meaning by reason of the fact that they are preceded by words indicating a particular class of act, matter or thing, nor by the fact that they are followed by particular examples intended to be embraced by the general words.

2. THE TRANSFER

2.1 Effective as of the Transfer Time, Transferor hereby sells and transfers and the Company hereby purchases all of Transferor and its applicable affiliates' right, title and interest in the Intellectual Property.

2.2 The price for the sale and transfer in Section 2.1 shall be the sum of _____, as outlined in Schedule A (the "Consideration").

2.3 If any sales tax, value added tax or other transfer tax is properly chargeable in respect of the sale and purchase in Section 2.1, the Company shall pay to Transferor the



amount of such tax in addition to and at the same time as the Consideration. Transferor will issue to the Company a proper tax invoice in respect thereof.

2.4 THE COMPANY HEREBY ACKNOWLEDGES THAT TRANSFEROR MAKES NO REPRESENTATION OR WARRANTY TO THE COMPANY UNDER THIS AGREEMENT, EITHER EXPRESS OR IMPLIED, WITH RESPECT TO THE INTELLECTUAL PROPERTY, AND THAT THE ABOVE SALE AND TRANSFER IS MADE TO THE COMPANY ON AN “AS IS” BASIS.

3. COMPLETION

3.1 The sale and purchase of the Intellectual Property shall be completed, and legal title and ownership in respect of the Intellectual Property shall be deemed to pass to the Company, in each case, with effect from the Transfer Time.

3.2 Transferor shall:

- (a) cause to be delivered or made available to the Company such additional documents as the Company may reasonably require to complete the sale and purchase of the Intellectual Property; and
- (b) do such other things reasonably necessary to give full effect to this Agreement.

3.3 The Company shall:

- (a) Timely pay or cause to be paid the Consideration in cash to Transferor or to whom and in the manner as Transferor may direct; and
- (b) cause to be delivered or made available to Transferor such additional documents as Transferor may reasonably require to complete the sale and purchase of the Intellectual Property; and
- (c) do such other things reasonably necessary to give full effect to this Agreement.

4. LICENSES

4.1 The Company acknowledges that, as a current affiliate of Transferor, it has a royalty-free, non-exclusive, non-transferable and non-sublicensable right and license

to use the third-party software set forth on Schedule B in connection with its business, pursuant to agreements between Transferor and/or an affiliate (other than the Company) and the applicable third parties. The Company covenants that it shall use all such software in compliance with all terms and conditions of such agreements to the extent that Buyer and/or the Company has been given access to a copy of such agreements.

4.2 Transferor grants to the Company a perpetual, royalty-free, non-exclusive license to use all know-how, techniques, ideas, processes and similar intellectual property that (i) was created, invented or developed by Transferor (or its applicable affiliates) prior to the Transfer Time and (ii) relates to the business of the Company, but is not included in the Transferred Know-How (as defined in Schedule A). The Company may sublicense this license solely in connection with the operation of its business, and not for the independent use of any third party. The Company may assign this license only in connection with the merger, reorganization or sale of the business of the Company to which this license relates. Any purported sublicense or assignment by the Company in violation of the foregoing shall be null and void and of no force or effect. To the extent Transferor or any affiliate (other than the Company), on the one hand, and the Company or any current or future affiliate, on the other hand, enter into any future agreement governing a party's use of specific items of intellectual property of the other party, such specific provisions (and the term of any such permitted use) shall be deemed to supersede and modify accordingly the above general license.

4.3 The Company grants to Transferor and its affiliates (other than the Company) a perpetual, royalty-free, non-exclusive license to use all Transferred Know-How that has a relation or application to the business of Transferor or any affiliate other than the Company. Transferor and its affiliates may sublicense this license solely in connection with the operation of their businesses, and not for the independent use of any third party. Transferor and its affiliates may assign this license only in connection with the merger, reorganization or sale of any of their businesses to which this license relates. Any purported sublicense or assignment by Transferor or an applicable affiliate in violation of the foregoing shall be null and void and of no force or effect. To the



extent Transferor or any affiliate (other than the Company), on the one hand, and the Company or any current or future affiliate, on the other hand, enter into any future agreement governing a party's use of specific items of intellectual property of the other party, such specific provisions (and the term of any such permitted use) shall be deemed to supersede and modify accordingly the above general license.

5. ENTIRE AGREEMENT

This Agreement (including the Exhibits, which are hereby incorporated in the terms of this Agreement) sets forth the entire understanding and agreement among the parties as to matters covered herein and therein and supersedes any prior understanding, agreement or statement (written or oral) of intent among the parties with respect to the subject matter hereof.

6. COUNTERPARTS

This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original and all of which together shall be deemed to be one and the same instrument.

7. VARIATION

No waiver shall be deemed to have been made by any party of any of its rights under this Agreement unless the same is in writing and is signed on its behalf by an authorized signatory. Any such waiver shall constitute a waiver only with respect to the specific matter described in such writing and shall in no way impair the rights of the party granting such waiver in any other respect or at any other time. To be binding, any amendment of this Agreement must be effected by an instrument in writing signed by the parties.

8. NOTICES

All notices, demands, instructions, waivers, consents or other communications to be provided pursuant to this Agreement shall be in writing, shall be effective upon receipt, and shall be sent by hand, facsimile, air courier or certified or registered mail, return receipt requested, as follows:

If to the Company:

With a copy to:

If to Transferor:

With a copy to:

or to such other address as a party may specify by notice from time to time in writing to the other parties in the manner specified in this Section.



9. COSTS

Transferor and the Company shall each pay its own costs, charges and expenses incurred in connection with the preparation and implementation of this Agreement and the transactions contemplated by it.

10. GOVERNING LAW; SUBMISSION TO JURISDICTION; APPOINTMENT OF AGENT FOR SERVICE OF PROCESS; WAIVER OF JURY TRIAL.

10.1 THE AGREEMENT SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF _____.

10.2 Each party hereby irrevocably agrees that, any dispute, claim or controversy arising out of, or related to, this Agreement shall be referred to and finally resolved by arbitration in accordance with the UNCITRAL Arbitration Rules in effective at the time the demand for arbitration is filed. The appointing authority shall be Hong Kong International Arbitration Centre. The place of arbitration shall be in Hong Kong at Hong Kong International Arbitration Centre (HKIAC). The tribunal shall consist of three arbitrators. If the Parties are unable to agree on a single arbitrator within thirty (30) days from the commencement of arbitration, each Party shall select an arbitrator and the two (2) arbitrators shall promptly select a third neutral arbitrator, the three of whom shall serve as an arbitration panel. The language of the arbitration shall be English. All negotiations connected with the Arbitration shall be conducted in complete confidence, and the Parties undertake not to divulge details of such negotiations except to their professional advisors who shall also be subject to such confidentiality and shall be without prejudice to the rights of the parties in any future proceedings. The arbitrators shall have no authority to award, nor shall any Party be entitled to receive damages not otherwise recoverable under this Agreement. The decision of the arbitrator(s) shall be final and binding upon the Parties and shall include written findings of law and fact.

Any award issued by the arbitrator(s) may be reduced to a judgment and entered in a court of competent jurisdiction. Each Party shall bear its own costs and expenses and an equal share of the arbitrators' and administrative fees of the Arbitration. The obligation to arbitrate shall not be binding upon any Party with respect to requests for preliminary injunctions, temporary restraining orders or other similar temporary procedures in a court of competent jurisdiction to obtain interim relief when deemed necessary by such court to preserve the status quo or prevent irreparable injury pending resolution by arbitration of the actual dispute. It is not the intention of the Parties that such injunctive procedures shall be in lieu of, or cause substantial delay to, any arbitration proceeding commenced under this Section.

10.3 EACH OF THE PARTIES HERETO HEREBY IRREVOCABLY WAIVES ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY LEGAL PROCEEDING ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY.

11. TAXES

Each party shall be responsible for paying any and all local, state, territorial, provincial, national or federal duties, taxes, excise taxes, goods and services taxes, value added taxes, withholding taxes, ancillary charges and the like levied on him by any government body or authority in respect of the transactions anticipated hereunder.

12. MUTUAL REPRESENTATIONS

Each Party to this Agreement represents and warrants to the other Party that: (i) such Party has the full corporate right, power and authority to enter into this Agreement and to perform the acts required of it hereunder, (ii) such Party has, or shall license or acquire, all rights necessary to perform its obligations hereunder, (iii) the execution of this Agreement by such Party, and the performance by such Party of its obligations and duties hereunder, do not and will not violate any agreement to which such Party is a



party or by which it is otherwise bound.

AS WITNESS, this Agreement has been signed by or on behalf of the parties the day and year first above written.

SIGNED (
for and on behalf of (Signature
(
(Name
(
(Title

SIGNED (
for and on behalf of (Signature
(
(Name
(
(Title

SCHEDULE A – Proprietary Intellectual Property

Intellectual Property	Consideration
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All know-how, techniques, ideas, processes and similar intellectual property that (i) was created, invented or developed by Transferor or an affiliate prior to the Transfer Time and (ii) relates primarily to the business of the Company (the “Transferred Know-How”).

SCHEDULE B – Third-Party Software

**XXX Co., Ltd
AND**

DISTRIBUTION AGREEMENT



THIS AGREEMENT is made in _____, on this day of _____ by and between:

(1) the “Supplier”, XXX XXX Co., Ltd., a limited liability company established and existing under the laws of People’s Republic of China, with its registered address at

_____ (hereinafter referred to as “the Supplier”); and

(2) the Distributor, _____, (hereinafter referred to as “the Distributor”).

(3) _____ BACKGROUND:

A. The Supplier recognizes that the Distributor has an indepth understanding of the requirements of the customers in the Territory.

B. The Supplier has agreed to collaborate with the Distributor in the _____ products, hereinafter called _____ Products.

C. The Supplier has agreed to sell and the Distributor has agreed to buy the _____ Products with a view to sale to customers in the Territory, as those terms are defined below, on the terms and conditions set out in this Agreement.

TERMS:

The parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1. Definitions: In this Agreement the following expressions shall have the following meanings:

“Agreement” means this Agreement, including all its Schedules and Annexes.

“Force Majeure” shall mean any cause or condition beyond the reasonable control of the Supplier, including acts of God, acts of government (in particular with respect to the refusal to issue necessary import or export licenses), fire, flood, earthquake, war, riots, embargoes, or inability to obtain supplied of the Products, but excluding strikes or other labour difficulties affecting the Supplier.

“Price” means the prices of the Products determined in accordance with Clause 5.

The “_____ Products” means the products described in Schedule 1.

“Specification” means the specification for the _____ Products as amended from time

to time in accordance with the agreement of both parties to this agreement.

“Term” means the term of this Agreement, which shall commence on the date of this Agreement and continue until termination or expiry in accordance with Clause 9.

The “Territory” covered under this Agreement shall be confined to the _____ only.

“Trademarks” means “_____” which is owned by the

1.2. Construction: In this Agreement:

1.2.1 The section headings and captions to the clauses in this Agreement are inserted for convenience of reference only and shall not be considered a part of or affect the construction or interpretation of this Agreement.

1.2.2 References to Schedules are references to the Schedules attached to and included as part of this Agreement.

1.2.3 The expressions “include”, “includes”, “including”, “in particular” and similar expressions shall be construed without limitation.

2. APPOINTMENT

2.1. Appointment. The Supplier appoints the Distributor as its exclusive distributor in the Territory for the _____ Products for the Term. The Distributor accepts and assumes such appointment for sale and distribution of the _____ Products in the Territory.

2.2. No Activities Outside Territory.

The Distributor shall not seek customers for, establish any branch or maintain any distribution depot for the sale of the _____ Products outside the Territory.

2.3. In the event that the Distributor receives an order, request for an order or any other inquiry from outside the Territory, the Distributor shall promptly refer such inquiry to the Supplier.

2.4. Marketing Efforts.

2.4.1 The Distributor shall use all reasonable efforts to promote and increase sales of



the _____ Products in the Territory and in particular shall at its own expense:

2.4.1.1 advertise and promote the _____ Products; and

2.4.1.2 maintain a comprehensive sales network and employ staff with the training and technical expertise necessary to maintain such network and to effect prompt delivery of _____ Products and efficient after-sales and maintenance services.

2.4.2 The Supplier can provide the support for trade show, brand presentation, sales support, sales training.

2.6. Own Name. The Distributor shall at all times carry on business and arrange and conclude sales of the _____ Products on its own behalf and in its own name. In particular, the Distributor shall make it clear that it is not an agent or employee of the Supplier, and shall not claim to give any guarantee, promise, representation or warranty in relation to the _____ Products in the name or on the behalf of the Supplier, except to the extent that it is expressly authorized to do so in writing by the Supplier.

2.7. Privity. The relationship hereby established between The Supplier and the Distributor, during the effective period of this Agreement ,shall be solely that the Seller and Buyer. The Distributor shall under no circumstances be considered to be the agent of legal representative of the Supplier for any purpose whatsoever and shall have no right or authority to create or assume any obligation or responsibility of any kind, expressed or implied,in the name of or on behalf of the Supplier.

3. SALE AND PURCHASE

3.1. Purchases. The Supplier shall sell the _____ Products and the Distributor shall purchase the _____ Products on the terms and conditions of this agreement, with a view to resale of the _____ Products to customers in the Territory.The Distributor cannot re-sell to other distributor.

3.2. Orders. The Distributor shall order the Products by submitting an official Purchase Order in a format acceptable to both parties and each order shall be stamped by the Distributor.

3.2.1 Upon receipt of the official Purchase Order the Supplier will check stock levels of the Products ordered and will no later than conclusion of work on the next business day inform the Distributor on the availability of the stock ordered and when it should be delivered to the Premises of the Distributor or the distribution point nominated by the Distributor.

3.3. Minimum Purchase. The Distributor guarantees to purchase the _____ Products from the Supplier in the minimum amount specified below:

- 1) _____ for the first half year period starting from the effective date of this agreement.
- 2) _____ for the first one year period starting from the effective date of this agreement.
- 3) On the base of minimum amount of the last year, increases by _____ for each subsequent year.

4. CONDITIONS OF SALE

4.1. All Sales On These Conditions.

4.1.1 Subject to Clause 4.2 , all sales of the _____ Products by the Supplier to the Distributor shall be made on the terms and conditions set out in this Agreement.

4.1.2 No other terms shall apply to the sale of the _____ Products, including any standard conditions of purchase of the Distributor, notwithstanding that they are printed on the written order of the Distributor or any other document issued by the Distributor.

4.2. No Less Favourable Terms. The terms and conditions on which the Supplier sells the _____ Products to the Distributor shall at no time be less favourable in any material respect than those on which it supplies products similar to _____ Products to other customers.

4.3. Delivery Location. Delivery shall be at the Distributor's premises at _____ unless otherwise agreed by the parties.

4.4. Instalments. Unless otherwise expressly agreed, the Supplier may make delivery



in one instalment.

4.5. Packaging, Carriage and Insurance. The Prices are inclusive of any costs of standard packaging, carriage and insurance, which shall be arranged by the Supplier.

4.6. Title and Risk. Title and risk to the _____ Products purchased shall pass to the Distributor upon delivery.

5. PRICES AND PAYMENT

5.1. The price of the Products shall refer to the latest price list of the Supplier. The Supplier shall provide its latest price list to the Distributor while the Distributor orders the Products.

5.2. VAT. All Prices are exclusive of value added tax or any other government taxes or duties which, if applicable, shall be paid in accordance with the law.

5.3. Payment Terms. Unless otherwise agreed in writing by the Supplier, the Distributor shall make all payments due to the Supplier in accordance with the purchase order.

6. WARRANTIES AND LIABILITIES

6.1. Warranties. The Supplier warrants that:

6.1.1 at the time of sale, it will have title to sell the _____ Products to the Distributor; and

6.1.2 the _____ Products sold to the Distributor will conform with the respective Specification.

7. Intellectual Property Rights

7.1. The Parties hereby acknowledge that the “ _____ ” Trademark is wholly and exclusively owned by the Supplier.

7.2. The Distributor may use the Trademark of the Supplier during the effective period of this Agreement only in connection with the sale of Products;

7.3. Any and all rights granted herein by the Supplier to the Distributor shall terminate upon termination of this Agreement, and the Distributor shall henceforth cease to exercise any right or rights granted under this Agreement;

7.4. The Distributor cannot copy the design of the Products provided by the Supplier and create or manufacture the same or similar products on their own or any third parties.

7.5. In case the Distributor has found that the Supplier's Trademarks, patents, copyrights or other intellectual property rights are infringed upon by any third party, the Distributor shall promptly inform the Supplier of such infringement and assist the Supplier in taking necessary steps to protect this rights effectively.

8. INFORMATION

8.2. Each party shall appoint representatives to administer and discuss performance of their respective obligations under this Agreement. Unless otherwise agreed, discussions shall take place as often as reasonably requested by either party, but no more than monthly.

9. Market Report

9.1. In order to keep the Supplier well informed of the prevailing market conditions, the Distributor shall supply the Supplier, at least 3 month or at any time when necessary, with market reports concerning changes of the local regulations in connection with the import and sales of the products stipulated this agreement, local market tendency and the buyer's comments on quality, packing, function, etc., of the Products. The Distributor shall also supply the Supplier with quotations and advertising materials on similar products of other suppliers.

10. Duration

10.1. Unless terminated earlier in accordance with Clause 10.2.



10.1.1 this Agreement shall continue for a period of one (1) year, commencing on the date of this Agreement; and

10.1.2 if either party considers it's necessary to extend the Agreement, the proposing party may take the initiative to conduct negotiation with the other party one month prior to its expiration.

10.1.3 this Agreement shall continue in force until terminated by either party giving two months' written notice to the other.

10.2. This Agreement may be terminated by either party immediately by notice in writing to the other party if that other party:

10.2.1 commits a material or persistent breach of any of its obligations under this Agreement, and where such breach is remediable, fails to remedy it in 30 days after service of written notice from the party serving notice requiring such remedy;

10.2.2 is unable to pay its debts as they fall due, or compounds with or negotiates for any composition with its creditors generally or permits any judgement against it to remain unsatisfied for seven days;

10.2.3 being a company, calls any meeting of its creditors, has an examiner or receiver of all or any of its assets appointed or applies for, or enters into liquidation.

10.3 in the event that the Distributor fails to purchase the minimum amount (stipulated in Article 3.3)during the first half year or any one subsequent year period, the Supplier may ,at its opinion, convert the exclusive right granted under to no exclusive right, or may terminate this agreement.

11. CONSEQUENCES OF TERMINATION

10.1. Upon termination of this Agreement for any reason:

11.1.1 the Supplier may, at its discretion, cancel any unfulfilled orders for the _____ Products;

11.1.2 any amounts owing to the Supplier shall immediately become due and payable by the Distributor; and

11.2. The termination of this Agreement shall be without prejudice to:

11.2.1 any rights or obligations which shall have accrued before termination, including any remedy available in respect of a breach of this Agreement; or

11.2.2 any provision of this Agreement which is expressed to survive termination.

12. MISCELLANEOUS PROVISIONS

12.1. Announcements: No announcement or public statement concerning the existence, subject matter or any term of this Agreement, or its performance, shall be made by or on behalf of any party without the prior written approval of the other, such approval not to be unreasonably withheld or delayed.

12.2. Force Majeure. The Supplier shall not be liable for failure or delay in the performance of any of its obligations under this Agreement if such failure or delay results from Force Majeure, but any such failure or delay shall be remedied as soon as practicable.

12.3. Parties Bound: This Agreement shall be binding upon and run for the benefit of the parties, their successors and permitted assigns.

12.4. Notices:

12.4.1 A notice under or in connection with this Agreement (a “Notice”):

12.4.1.1 shall be in writing;

12.4.1.2 shall be in the English language; and

12.5.1 may be delivered personally or sent by first class post (and air mail if overseas) or by fax to the party due to receive the Notice at its address set out below:

12.5.2 The address referred to in Clause 12.5.1 is:

(a) in the case of the Supplier: Address: _____, email address:

_____Marked for the attention of:_____

(b) in the case of the Distributor: Address: _____, email address:

_____Marked for the attention of:_____

12.5.3 Notice is deemed given:



12.5.3.1 if delivered personally, when the person delivering the notice obtains the signature of a person at the address referred to in Clause 12.5.2;

12.5.3.2 if sent by email, when proof of its transmission has been recorded by the sender.

12.6. Severability: If any provision in this Agreement is deemed to be, or becomes invalid, illegal, void or unenforceable under applicable laws, such provision will be deemed amended to conform to applicable laws so as to be valid and enforceable, or if it cannot be so amended without materially altering the intention of the parties, it will be deleted, but the validity, legality and enforceability of the remaining provisions of this Agreement shall not be impaired or affected in any way.

12.7. Entire Agreement: This Agreement constitutes the entire agreement and understanding between the parties with respect to their subject matter, and except as expressly provided, supersede all prior representations, writings, negotiations or understandings with respect to that subject matter.

12.8. Further Assurance: Each party shall do and execute, or arrange for the doing and executing of, each necessary act, document and thing reasonably within its power to implement this Agreement.

12.9. Counterparts: This Agreement may be executed in any number of counterparts, each of which when so executed shall be deemed to be an original and all of which when taken together shall constitute this Agreement.

12.10. Waivers and Variations:

12.10.1 A failure to exercise or delay in exercising a right or remedy provided by this Agreement or by law does not constitute a waiver of the right or remedy or a waiver of other rights or remedies. No single or partial exercise of a right or remedy provided by this Agreement or by law prevents further exercise of the right or remedy or the exercise of another right or remedy.

12.10.2 No variation of this Agreement shall be effective unless it is made in writing and signed by each of the parties.

13. Secrecy

All information provided by the Supplier and made available under this Agreement shall be kept in strict confidence from any third party without prior consent in writing of the other party.

14. Applicable Law

14.1 The formation of the Agreement, its validity, interpretation, execution and the settlement of disputes under it shall be governed by the law of People's Republic of China.

15. Arbitration

15.1 All disputes arising from the execution of, or in connection with this Agreement shall be settled through friendly negotiation between both parties hereto. In case no settlement to disputes can be reached through friendly negotiation, the disputes shall be submitted to China International Economic and Trade Arbitration Commission (CIETAC) South China Sub-Commission for arbitration which shall be conducted in accordance with the CIETAC's arbitration rules in effect at the time of applying for arbitration. The arbitral award is final and binding upon both parties.

The Supplier:

Representative

Date:

The Distributor:

Representative

Date:

SCHEDULE 1 PRODUCTS

All forms of _____ products the Specification for which shall be notified to



the Supplier in writing on or prior to the placing of an Order and for the avoidance of doubt, the acceptance of such Order will be deemed to be an acceptance of that Specification by the Supplier. Such _____ Products shall be branded and/or sold under the name “_____”.

NON-DISCLOSURE AGREEMENT

保密协议

THIS NON-DISCLOSURE AGREEMENT (“Agreement”) is made on [29 April 2019] by and between ____, a [corporation] organised and existing under the laws of the Republic of Singapore, with its [registered address] at ____ (hereinafter referred to as “Seller”), and ____ a limited liability company organised and existing under the laws of the People's Republic of China with its registered address at ____ (hereinafter referred to as “Buyer”). Seller and Buyer shall hereinafter be referred to individually as a “Party” and collectively as the “Parties”.

本保密协议（“本协议”）于【2019年4月29日】由以下双方签订：____，一家根据新加坡共和国法律组建及存续的【公司】，【注册地址】为____（以下简称“卖方”）与____，一家根据中华人民共和国法律组建及存续的有限责任公司，注册地址为____（以下简称“买方”）。买方和卖方一下各称“一方”，合称“双方”。

BACKGROUND

背景

(A) The Parties have agreed to enter into preliminary discussions regarding the terms of a proposed acquisition by Buyer of shares held by Seller in ____ (“Target”) located in ____, Singapore (the “Proposed Acquisition”).

双方已同意就买方拟收购卖方所持有的位于新加坡____的____（“目标公司”）的股权进行初步磋商（“拟议收购”）。

(B) In the course of discussions, certain proprietary information of each Party has been or will be disclosed to the other Party in order to assess Buyer’s interest in acquiring all or part of the shares of Target held by Seller (the “Purpose”) and the Parties desire to ensure that such proprietary information remains confidential.

在谈判过程中，为了评估买方对收购卖方所持有目标公司的部分或全部股权



的权益（“目的”），各方已经或将要向另一方披露其某些专有信息，且双方希望对该等专有信息予以保密。

Now the Parties hereby agree as follows:

双方现协议如下：

1. CONFIDENTIAL INFORMATION

保密信息

“Confidential Information” means any and all information whether commercial, marketing, technical, scientific or other information relating to the business of Seller or Target, including without limitation, know-how, data, processes, designs, photographs, drawings, specifications, software programs, and samples, which is marked with an indicator such as “Confidential” or “Proprietary”, is disclosed in circumstances of confidence, or would be understood by the Parties, exercising reasonable business judgement, to be confidential. For the avoidance of doubt, the existence and contents of this Agreement shall also be considered Confidential Information, and Confidential Information disclosed by an agent, attorney, accountant or other advisor of a Party shall be deemed to be disclosed by such Party.

“保密信息”指在保密的情况下披露的、或双方根据合理的商业判断应理解为保密资料的，标记有“保密”或“……所有”字样的，与卖方或目标公司业务相关的所有商业、营销、技术、科学或其他信息，包括但不限于专有技术、数据、工艺、设计、照片、图纸、技术参数、软件程序和样品等。为免存疑，本协议的存在和及其内容也应视为保密信息，并且一方的代理、律师、会计师或其他顾问披露的保密信息也应视为由该方披露。

2. BUYER OBLIGATIONS

买方义务

2.1 From time to time prior to and during the Term, Seller has disclosed or may disclose Confidential Information to Buyer. Buyer shall, during the Term:

在本协议订立前以及在本协议期限内，卖方已经或者可能不时向买方披露的保密信息。在本协议期限内，买方应当：

(a) maintain the confidentiality of Confidential Information;

对保密信息予以保密；

(b) not use Confidential Information for any purposes other than in connection with the Purpose or the Proposed Acquisition; and

不得为除目的或拟议收购之外的其他目的使用保密信息；

(c) not disclose any such Confidential Information to any person or entity, except to (i) its employees or employees of its affiliates, its agents, attorneys, accountants and other advisors who need to know such information to perform their responsibilities in connection with the Purpose or the Proposed Acquisition, (ii) authorised securities regulators or exchanges in accordance with applicable laws or the relevant rules of the securities exchange to which Buyer is subject, and (iii) officials in relevant government departments in accordance with applicable laws to which Buyer is subject (collectively “Permitted Disclosure Parties”).

不得向任何人或任何实体披露该等保密信息，下述对象除外：(i)为履行其与目的或拟议收购有关的职责而确有必要知悉保密信息的买方雇员或其关联机构雇员、买方的代理、律师、会计师或其他顾问；(ii)根据买方所受约束的适用法律或相关证券交易所规则授权的证券监管机构或证券交易所；(iii)根据买方所受约束的适用法律规定的相关政府部门的官员（合称“经允许的披露对象”）。

2.2 The provisions of Clause 2.1 above shall not apply to information that:

上述本协议第2.1条的规定不适用于以下信息：

(a) can be shown to be known by Buyer by written records made prior to disclosure by Seller;

能够通过向卖方向买方披露前制作的书面记录证明已被买方掌握的信息；

(b) is trivial or obvious;

不重要的或显而易见的信息；

(c) is or becomes public knowledge otherwise than through Buyer’s breach of this Agreement; or



目前或将来非因买方违反本协议而被公众知悉的信息；

(d) was obtained by Buyer from a third party having no obligation of confidentiality with respect to such information.

买方从对该信息无保密义务的第三方获得的信息。

2.3 Buyer shall formulate rules and regulations to inform its directors, senior staff, employees, and any other Permitted Disclosure Parties of the confidentiality obligations set forth in Clause 2.1.

买方应制订规章制度，告知其董事、高级职员、雇员以及任何其他经允许的披露对象本协议第2.1条规定的保密义务。

2.4 If the actions of Buyer (or a Permitted Disclosure Party) result in a loss or an unauthorised disclosure of any of the Confidential Information under the provisions of this Agreement, Buyer will immediately notify Seller and use its best endeavours to retrieve the lost or improperly disclosed Confidential Information.

如果买方（或某一经允许的披露对象）的行为导致本协议项下任何保密信息的丢失或未经授权的披露，买方应立即通知卖方，并且尽其最大或所有商业合理努力挽回丢失的或被不当披露的保密信息。

3. SELLER OBLIGATIONS

卖方义务

3.1 Except for disclosure to its employees or employees of its affiliates, its agents, attorneys, accountants and other advisors who need to know such information to perform their responsibilities in connection with the Purpose or the Proposed Acquisition, Seller shall keep secret and confidential any information regarding the strategic plans of Buyer, including the facts that Buyer is interested in and negotiating with Seller regarding the Proposed Acquisition.

除了为履行其与宗旨或拟议收购有关的职责而确有必要知悉该等信息的卖方或其关联机构雇员、卖方的律师、会计师或其他顾问外，卖方应对与买方战略规划相关的任何信息予以保密，包括买方对拟以收购感兴趣以及正在与卖方就拟议

收购进行谈判的事实。

4. TERM

协议期限

4.1 This Agreement shall become effective on the date hereof and shall terminate upon completion of the Proposed Acquisition between the Parties or [3] years from the date of this Agreement, whichever is earlier (the “Term”).

本协议自协议所载日期始生效，并于双方完成拟议收购或自本协议签订【3】年后终止，以较早者为准（“协议期限”）。

4.2 Notwithstanding anything to the contrary herein, termination of negotiations and discussions between the Parties prior to completion of the Proposed Acquisition shall in no way limit the rights and obligations of the Parties under this Agreement before the expiration of the Term.

即使本协议有任何相反规定，双方在拟议收购完成前的谈判和磋商的终止，不应限制双方在协议期限届满前在本协议项下的权利和义务。

5. RETURN OF MATERIAL

资料的归还

5.1 If the Parties terminate negotiations and discussions in connection with the Proposed Acquisition and do not proceed to completion of the Proposed Acquisition, then upon Seller’s request at any time, whether before or after the expiration of the Term, Buyer shall:

如果双方终止与拟议收购相关的谈判和磋商，并且不再继续完成拟议收购的，经卖方随时（无论在协议期限届满之前或之后）提出要求的，买方应当：

(a) return to Seller, or at Seller’s direction destroy, all materials (including any copies thereof) embodying the Confidential Information; and

将所有含有保密信息的资料（包括所有复印件）归还于卖方，或根据卖方的指示销毁；以及



(b) certify in writing to Seller, within [10] days after Seller's request, that all of such materials have been returned or destroyed.

在卖方提出请求后【10】天内，书面向卖方确认所有该等资料均已归还或销毁。

6. BUYER ACKNOWLEDGEMENT

买方确认

6.1 Buyer acknowledges that:

买方确认：

(a) All Confidential Information disclosed by Seller to Buyer shall remain the property of Seller.

卖方向买方披露的所有保密信息均为卖方的财产。

(b) This Agreement and disclosure of the Confidential Information shall not be construed as establishing, either expressly or by implication any grant of licence or right in the Confidential Information to Buyer, or any agency relationship between the Parties.

本协议及保密信息的披露不应解释为明示或默示地授予买方保密信息中的任何许可或权利，或在双方之间建立任何代理关系。

(c) Nothing in this Agreement shall be construed as an obligation of Seller to enter into any agreement with Buyer in furtherance of the Proposed Acquisition or to disclose information of any kind to Buyer. Seller reserves the right, in its sole discretion, to terminate negotiations and discussions with Buyer at any time.

本协议的任何约定均不应解释为卖方具有与买方达成任何协议以促成拟议收购或向买方披露任何性质的信息的义务。卖方保留自主决定在任何时候终止与买方谈判和磋商的权利。

(d) Seller does not make any representation or warranty, express or implied, with respect to any information provided under this Agreement, or its accuracy or completeness.

卖方未就本协议项下提供的任何信息或其准确性或完整性作出任何明示或默示的陈述或保证。

(e) Buyer shall be liable for any loss or improper disclosure of the Confidential Information by the Permitted Disclosure Parties.

买方应对经允许的披露对象造成的保密信息的任何丢失或不当披露负责。

7. INDEMNITY

补偿

Buyer agrees to indemnify Seller for all reasonable losses, costs and liabilities incurred by Seller due to a breach of the confidentiality obligations imposed under this Agreement or the misuse or improper use of Confidential Information by Buyer.

买方同意对就卖方因买方违反本协议项下的保密义务或滥用或不当使用保密信息而遭受的一切合理损失、费用和负债，对卖方进行补偿。

8. NOTICE

通知

8.1 Any notice or written communication provided for in this Agreement by either Party to the other, including but not limited to any and all offers, writings, or notices to be given hereunder, shall be made in both the Chinese language and the English language and delivered:

本协议规定的一方向另一方发出的通知或书面函件（包括但不限于本协议项下的所有要约、书面文件或通知），均应以中文和英文制作，并通过以下方式送达：

(a) by hand;

当面递交；

(b) by courier service delivered letter;

专递信函；

(c) by email; or



电邮；或

(d) by facsimile.

传真

Any notice given by a Party under or in connection with this Agreement shall be delivered to the other Party as follows:

根据本协议或与本协议相关的由一方向另一方发出的任何通知应向以下地址送达：

Seller/卖方：

Seller Mailing Address/卖方邮寄地址：[INSERT SELLER MAILING ADDRESS]/【填入卖方邮寄地址】

Email address/电子邮件地址：[INSERT SELLER EMAIL ADDRESS/填入卖方电子邮件地址]

Attention/收件人：[INSERT NAME OR TITLE]/【填入姓名或职务】

Buyer/买方：

Buyer Mailing Address/买方邮寄地址：[INSERT BUYER MAILING ADDRESS]/【填入买方邮寄地址】

Email address/电子邮件地址：[INSERT BUYER EMAIL ADDRESS/填入买方电子邮件地址]

Attention/收件人：[INSERT NAME OR TITLE]/【填入姓名或职务】

8.2 Notices shall be deemed to have been delivered at the following times:

在以下时间点内通知应被视为已经送达：

(a) if by hand, on reaching the designated address and subject to return receipt or other proof of delivery;

以当面递交方式送达的，送达指定地址并签署回执或其他送达证明时；

(b) if by courier, [5] working days (i.e. days when banks in [Hong Kong] are generally open for business (“Business Days”) after the date of dispatch;

以专递信函方式送达的，为递交日后的【5】个工作日（即【香港】内银行通常对外营业的任何一天（“工作日”））；

(c) if by email, on the date the email is dispatched (so long as written notice of such

transmission is sent within 2 Business Days thereafter by another delivery method pursuant to this Clause 8);

以电子邮件方式送达的，为电子邮件发送之日（只要于电子邮件发送后2个工作日内根据本协议第8条规定的另一种送达方式发送关于该等传输的书面通知）；

(d) if by fax, upon the next Business Day following the date marked on the confirmation of transmission report by the sender's fax machine, indicating completed uninterrupted transmission to the relevant facsimile number.

以传真方式送达的，为发送传真方的传真机生成的发送确认报告（表面已向相关传真号码发送完整的、未中断的传真）上标记的日期后的下一个工作日。

8.3 During the Term, each Party may change its particulars for receipt of notices at any time by notice given to the other Party pursuant to this Clause 8.

在协议期限内，一方可随时根据本协议第8条规定的方式通知另一方变更通知的送达地址。

9. SETTLEMENT OF DISPUTES

争议解决

9.1 This Agreement shall be governed by the laws of [Hong Kong]. In the event that any dispute between the Parties arising in connection with this Agreement cannot be resolved within a period of [30] days on the basis of mutual consultation, then either of the Parties may refer such dispute to [the Hong Kong International Arbitration Centre (HKIAC)] for arbitration in [English and Chinese] under the [HKIAC Administered Arbitration Rules].

本协议受【中华人民共和国香港特别行政区】的法律管辖，如果双方由本协议引起的或与之相关的任何争议未能在【30】日内通过共同协商解决，则任何一方可将该等争议提交【香港国际仲裁中心】按照【《香港国际仲裁中心机构仲裁规则》】进行仲裁，仲裁语言为【英文和中文】。

9.2 Notwithstanding the foregoing, any disclosure or misappropriation of any Confidential Information in violation of this Agreement may cause irreparable damage



to Seller, the amount of which may be difficult to assess, and Buyer therefore agrees that Seller shall have the right to apply to a court of competent jurisdiction for equitable relief, including injunctive relief restraining and enjoining any further disclosure or breach and for such other relief as Seller deems appropriate. Such right of Seller shall be in addition to the remedies otherwise available to Seller under applicable law.

尽管有上述规定，违反本协议对任何保密信息进行的任何披露或滥用可能对卖方造成不可挽回的损失，该等损失的金额可能难以评估，因此，买方同意卖方有权向有管辖权的法院申请衡平救济，包括限制或禁止任何进一步的披露或违约的禁止令救济，以及卖方认为合适的其他救济。卖方的该等权利应为卖方根据适用法律可获得的其他救济的补充。

10. GENERAL PROVISIONS

一般规定

10.1 This Agreement is made for the benefit of the Parties hereto and their respective lawful successors and assigns and is legally binding on them.

本协议对本协议双方以及各自的合法继受者和受让人具有法律约束力。

10.2 This Agreement shall not be deemed to grant to any third party any interest in or right to enforce the Agreement.

本协议不得视为授予任何第三方本协议项下的利益或执行本协议的权利。

10.3 This Agreement shall not be changed verbally, but only by a written agreement signed by the Parties.

本协议不得口头方式修改，而须双方签署书面协议后方可修改。

10.4 Either Party's failure to exercise or delay in exercising any right, power or privilege under this Agreement shall not operate as a waiver thereof, and any single or partial exercise of any right, power or privilege shall not preclude any subsequent or further exercise of such right, power or privilege.

如果一方未能行使或延迟行使其在本协议项下的任何权利、权力或特权，不构成该方对该项权利、权力或特权的放弃，并且单独或者部分行使任何权利、权

力或特权，并不妨碍其随后或将来行使该等权利、权力或特权。

10.5 The rights and remedies granted pursuant to this Agreement shall be in addition to, not instead of, any right or remedy available to a Party under applicable laws.

根据本协议授予的权利和救济应作为一方在适用法律项下可获得的权利或救济的补充，而非代替。

10.6 Neither Party may assign in whole or in part any of its rights hereunder without prior written consent from the other Party.

未经另一方事先书面同意，任何一方不得全部或部分转让其在本协议项下的权利。

10.7 The invalidity of any provision of this Agreement shall not affect the validity of any other provision of this Agreement.

本协议的任何条款的无效不影响本协议其他条款的效力。

10.8 This Agreement constitutes the entire agreement between the Parties hereto with respect to the subject matter of this Agreement and supersedes all prior discussions, negotiations and agreements between them.

本协议构成双方就本协议标的达成的全部协议，并取代双方之间此前就该标的进行的所有磋商、谈判和达成的协议。

10.9 This Agreement may be executed in counterparts where each counterpart constitutes an original and all counterparts together constitute the same Agreement. A Party may execute this Agreement by signing and sending (including by facsimile or email) a counterpart copy to the other Party.

本协议可签署副本。每一副本构成一份协议原件，且所有副本共同构成同一份协议。一方可通过签字并向另一方发送（包括通过传真或电子邮件）一份副本的方式签署本协议。

10.10 Save as otherwise provided in this Agreement, each Party shall bear its own legal and other professional costs in relation to its negotiation, execution and performance of this Agreement.

除非本协议另有规定，每一方应承担其自身与本协议的谈判、签署和履行相关的律师费和其他专业顾问费用。



10.11 This Agreement is executed in both the Chinese language and the English Language, in case of any discrepancy between the Chinese and English versions, the English version shall prevail.

本协议以中文和英文签署。两种文本不一致的，以英文版为准。

IN WITNESS WHEREOF, each of the Parties hereto has caused this Agreement to be executed by its duly authorised representative on the date first written above.

双方已于本合同首页所载日期通过其正式授权的代表签署本合同，以资证明。

For and on behalf of [SELLER NAME]:

代表【填入卖方名称】：

For and on behalf of [BUYER NAME]:

代表【填入买方名称】：

Signed/

签名：

Signed/

签名：

Name/[INSERT SELLER SIGNATORY
NAME]/

姓名：【填入卖方签字人姓名】

Name/[BUYER SIGNATORY NAME]/

姓名：【买方签字人姓名】

Position/[INSERT SELLER SIGNATORY
POSTION]/

职位：【填入卖方签字人职位】

Position/[INSERT BUYER SIGNATORY
POSTION]/

职位：【填入买方签字人职位】

专题四





Lawyer' s Letter

[Letterhead of law firm]

VIA E-MAIL AND REGULAR INTERNATIONAL MAIL

[DATE]

CONTACT INFORMATION OF
ADDRESSEE

Re: Threat of Legal Action for Late Payment and Breach of Contract

Dear XXX:

Please be advised that our firm has been retained to represent our client XXX, to follow up on the issue of XXXX.

[Description of the dispute matter]

In light of all the above, we demand that you make payment in full and in the amount as above-mentioned within FIVE (5) DAYS of the date of this letter. If you fail to do that, XXX will be forced to instruct us to initiate legal proceedings against you without further delay with sole resolution to protect itself from the damage being caused by your dishonest and unlawful business practice.

Please note that in the event that we are instructed to initiate legal proceedings against you, an application will also be made to the court to have you fixed with the legal costs of these proceedings along with other fees which are necessary and incidental to the same, including any attorney's fees, court fees and any other associated costs.

We would respectfully suggest that you treat this matter with urgency it deserves and we believe this will be your final opportunity to resolve matters without the expense of court proceedings.

Sincerely yours,

XXX LAW FIRM

(SEAL)

XXX

Practicing Lawyer

专题五





Employment Contract Template 1

EMPLOYMENT AGREEMENT

This Agreement is executed on this 1st day of [], 2019 and made between:

[] (“THE COMPANY”), a corporation having
its principal office at _____,

and

[] (“Employee”), Passport No _____, I.D. Card
No _____, an individual residing of _____.

ARTICLE 1. EMPLOYMENT

1.1 THE COMPANY hereby hires Employee as _____ of THE COMPANY (the "Position") in accordance with the terms and conditions set forth in this Agreement and the applicable laws and regulations of P. R. China, and Employee accept such employment and agrees to share THE COMPANY's values and vision through the employment.

1.2 The Employee represents that the Employee is free to enter this Agreement and to comply with all conditions contained herein are not in conflict with the provisions of any other contract and/or agreement to which the Employee is a party, or by which the Employee is bound.

1.3 The Employee shall acquire the legal visa status relevant to this employment according to the laws and regulations of P. R. China, and THE COMPANY shall provide all the necessary documents which should be prepared or submitted by THE COMPANY itself. Without the legal visa status, employment will be automatically

withheld.

ARTICLE 2. TERM

2.1 This Agreement shall be in full force and be put into effect from the first working date at the office of THE COMPANY for one (1) year, provided that the visa status relevant to this Employment shall be obtained.

2.2 This Agreement may be extended for a successive one (1) year therefrom by the mutual consent in writing at least thirty(30) days prior to the expiration of this Agreement.

ARTICLE 3. PROBATION PERIOD

THE COMPANY will exercise three (3) months probation period from the first working day. During this Period, THE COMPANY will evaluate the Employee and may terminate this Agreement. The initial three (3) months period of employment will serve as a probationary period during which AB may terminate this Agreement.

ARTICLE 4. DUTIES OF EMPLOYEE

4.1 The main duties of the Employee are follows:

4.2 Employee shall work exclusively for and give his/her best to THE COMPANY. Employee shall not during the term hereof enter into the official services of, or be officially employed in any capacity by any other firm or organization unless otherwise agreed to by THE COMPANY.

ARTICLE 5. WORK SCHEDULE

5.1 Employee shall be required to work five (5) days a week for a total of forty (40) hours from 8:30 AM to 5:30 PM (eight hours a day except one hour for lunch) during the term of this Agreement. Working days shall be from Monday through Friday every



week.

5.2 In unusual circumstances or when work requires it, the Employee may be required to work beyond his/her normally scheduled work schedule.

ARTICLE 6. PLACE OF WORK

6.1 During the term of this Agreement, the Employee shall work at the [] (Beijing, Shanghai, Guangzhou...). However, at any time that THE COMPANY regards it as necessary for the purpose of its business, the Employee may be required to work at such place or places as he/she may be directed by THE COMPANY, on a temporary basis.

6.2 THE COMPANY will furnish the Employee with such facilities and services suitable to his/her positions and adequate for the performance of his/her duties under this Agreement as THE COMPANY sees fit.

ARTICLE 7. COMPENSATION

7.1 As compensation for any and all services rendered by the Employee under this Agreement, THE COMPANY shall pay the Employee based on the annual gross sum of _____ CNY of taxable salary, including retirement pay and other legal allowances, equally payable on the 30th day of each and every month during the term of this Agreement.

7.2 The withholding taxes and other payroll deductions which are required by law shall be deducted from the Employee's monthly salary.

7.3 THE COMPANY shall pay the Employee a fundamental cost of living adjustment allowance in the amount of _____ CNY on a monthly basis in addition to standard taxable salary during the term of this Agreement.

7.4 Employee may be required to take business trips both in country and/or overseas to carry out official duties. In this case, THE COMPANY will allow an appropriate travel allowance as determined by THE COMPANY.

ARTICLE 8. OTHER BENEFITS

8.1 THE COMPANY shall provide residence/apartment and basic amenities such as standard home appliances.

8.2 Employee may enroll in a health insurance policy offered by THE COMPANY by paying part of the premium from payroll deduction.

ARTICLE 9. HOLIDAYS AND VACATION

9.1 Employee shall be entitled to five (5) days paid vacation per year during the terms of this Agreement. Each day of paid vacation will be equal to one working day.

9.2 Employee's paid vacation shall be subject to one (1) week prior to approval by THE COMPANY, and off-duty leave of official holidays shall be determined by THE COMPANY.

ARTICLE 10. SICK LEAVE

10.1 THE COMPANY shall allow the Employee a maximum of a five (5) sick leave per year throughout the period of this Agreement.

10.2 THE COMPANY will pay forty percent (40%) of regular salary for one month only if the Employee should be treated continually after his/her sick leave has been used. If the Employee should be treated continually beyond this time period, THE COMPANY shall allow the Employee to continue health insurance policy but will suspend all pay until he/she fully return to duty. Moreover, THE COMPANY may, consistent with applicable law, secure a replacement for the Employee if his/her absence creates an undue hardship on THE COMPANY.

ARTICLE 11. CONFIDENTIAL INFORMATION

11.1 All ideas and inventions, whether copyrighted or patented or not, which are



worked on during the time period the Employee is employed by THE COMPANY, regardless of where this work takes place, are and remain the property rights of THE COMPANY. This shall be the case whether the material the individual works on, produces or composes, is done in an individual capacity or in collaboration with others, whether produced inside or outside THE COMPANY ' s facilities or whether during or outside of business hours.

11.2 The Employee acknowledges and agrees that, as a result of the nature of THE COMPANY's business and the nature of Employee's services to THE COMPANY, the Employee has been and will come into contact with, and will have access to and learn various technical and non-technical information, plans, customer and mailing lists, trade secrets, and other confidential information which are the property of THE COMPANY. Such trade secrets, plans programs, lists and other confidential proprietary information includes, but are not limited to, finance, methods, procedures, programs and other means used by THE COMPANY in the conducts of its business. Such confidential information includes, additionally, information with respect to customers (past, present and prospective), costs, profits, markets, sales, business projects, plans for future business and other development. All of the aforementioned confidential information is not generally known to the public with respect to THE COMPANY and has been developed, acquired and compiled by THE COMPANY at its great efforts and expenses.

11.3 The Employee further acknowledges and agrees that any disclosure or use of the aforesaid confidential information by the Employee, other than in connection with THE COMPANY's business or specifically authorized by THE COMPANY, will be or may become highly detrimental to the business of THE COMPANY and that serious loss of business and pecuniary damage to THE COMPANY will or may result therefrom.

11.4 Accordingly, the Employee specifically covenants and agrees to hold all such information and data, and records and documents containing the same, in the strictest confidence, and that he will not disclose, divulge or reveal said confidential information to any person or persons whomever, either during the Employee's retention or at any

time after the termination of his/her services to THE COMPANY without specific written authorization.

11.5 The Employee further covenants and agrees to promptly deliver to THE COMPANY, upon the termination of his services to THE COMPANY, or at any other time as THE COMPANY may so request, all documentation, memoranda, notes, records, reports, programs, and any other documents (and all copies thereof) relating to THE COMPANY's business and all property associated therewith, which the Employee may then possess or have under his/her control.

ARTICLE 12. HONOR CODE

During the performance of this Agreement, The employee shall follow and obey rules and honor code of THE COMPANY for being cooperative and honest.

ARTICLE 13. TERMINATION

13.1 Under any of the following cases, THE COMPANY has the rights to terminate this Agreement:

13.1.1 The Employee is found to violate any of the terms mentioned in this Agreement; or

13.1.2 The Employee, without approval, is absent from his/her job over 3 days; or,

13.1.3 The Employee is unable to competently perform the essential functions of the job or meet THE COMPANY's standards of performance.

13.2 The Employee shall notify THE COMPANY by letter not later than thirty (30) days prior to the date the Employee wish to cancel.

ARTICLE 14. SEVERABILITY

In the event that any of the foregoing clauses may be determined to be a breach of any law rule or regulation or otherwise unenforceable, such determination shall not affect



any of the other clauses of this Agreement, but such other clauses shall remain in full force and effect.

ARTICLE 15. NON-WAIVER

Any waiver by THE COMPANY of a breach of any provision of this Agreement by the Employee, or any failure of THE COMPANY to take action against any other employee(s) for similar breach on their part, shall not operate or be construed as a waiver of any subsequent breach by the Employee.

ARTICLE 16. MODIFICATION

This Agreement may only be modified by the express written consent of both parties.

ARTICLE 17. MISCELLANEOUS

17.1 Any case outside the terms of this Agreement shall be decided under the discretion of THE COMPANY.

17.2 In the case the Employee causes any monetary damage to THE COMPANY, the Employee shall be charged for it.

17.3 This Agreement shall be governed by and construed in accordance with the laws of P. R. China.

17.4 All disputes which may arise between the parties in connection with this Agreement shall be settled by mutual consent.

17.5 The place of jurisdiction for any disputes arising in connection with this Agreement shall be exclusively THE COMPANY's business domicile.

IN WITNESS WHEREOF, the parties hereto sign this Agreement as set forth as of the date first above written.

THE COMPANY:

Employee:

By:
Name:
Title:

By.
Name:
Title:



Employment Contract Template 2

Employment Contract 全日制劳动合同

甲方（用人单位）名称Name of Party A (Employer):

住所Address:

法定代表人（或主要负责人）Legal Representative (or Principal Responsible Person):

乙方（劳动者）姓名Name of Party B (Employee):

居民身份证号ID Card No:

住址Address:

联系电话Contact No.:

联系邮箱Email-box:

根据《中华人民共和国劳动法》、《中华人民共和国劳动合同法》等法律、法规、规章的规定，在平等自愿，协商一致的基础上，同意订立本劳动合同，共同遵守本合同所列条款。

The Parties, intending to be bound hereby, agree to enter into this Employment Contract on the basis of equality, free will and mutual consultation pursuant to the Labor Law of the People's Republic of China ("PRC"), the Employment Contract Law of the PRC and other laws, regulations and rules.

1. 劳动合同类型及期限

Article 1 Type and Term of the Employment Contract

1.1. 劳动合同类型及期限按下列第【 】项确定。

The type and term of the Employment Contract shall be determined as set forth in Item _____ below:

1.1.1. 固定期限：自 年 月 日起至 年 月 日止。

Fixed Term: From _____ to _____;

1.1.2. 无固定期限：自年月日起至法定的解除或终止合同的条件出现时止。

Open-ended: From _____ to the date when a statutory obligation or agreement to terminate the contract arises; or

1.1.3. 以完成一定工作为期限：自 年 月 日起至终止。

Project-based: From _____ to the expiration of the term.

1.2. 本合同约定试用期，试用期自 年 月 日起至 年 月 日止。

This Contract specifies a probationary period commencing on _____ and ending on _____.

2. 工作内容、工作地点及要求

Article 2 Job Description, Workplace Location and Work Requirements

2.1. 乙方从事【 】工作，工作地点在【 】。

Party B shall engage in the job of _____, with the workplace located at _____.

2.2. 乙方应履行甲方制定的岗位职责，按时、按质、按量完成其本职工作。

Party B shall perform his or her work duties provided by Party A, and shall complete his or her work task in accordance with the provisions in terms of time limit, quality and workload.

2.3. 乙方承诺，愿服从甲方根据工作需要、乙方工作能力及其表现而安排



或调 动的工作岗位。并同意在下列情况下本合同不作变更处理。

Party undertakes to accept the arrangement or change of work made by Party A in light of Party A's work requirements and Party B's working ability and performance; Party B agrees that this Agreement may not be altered under any of the following circumstances.

2.3.1. 乙方的工作地点由所在部门安排。今后因工作需要乙方在甲方所在本市的全部经营办公场所及附属场所（包括公司自有产权的物业或租赁的物业，）之间调整时。

Party B's working site is to be arranged by the division he or she works in; Party A is to change Party B's working site within all its business offices and attached sites in the city where Party A is domiciled (including Party A's own property or other premises leased by Party A), on the basis of Party A's working requirement;

2.3.2. 甲方因工作需要，临时指派乙方到境内外短期出差地点工作的。
Party A assigns Party B to work at home or abroad on business travel for a short term on the basis of Party A's working requirement.

2.3.3. 甲方因工作需要，安排乙方临时外借到其它部门或其他单位工作的。
In response to working requirement, Party A temporarily assigns Party B to work at other divisions of Party A or other entities.

3. 工作时间和休息休假

Article 3 Working Hours, Rest and Leave Entitlements

3.1. 工作时间按下列第【 】项确定：

The working hours shall be determined as set forth in Item _____ below:

3.1.1. 实行标准工时制。乙方每日工作时间不超过8小时，每周工作时间不超过40小时，每周至少休息一天。

The normal working hours system shall be implemented. Party B shall work no more than 8 hours a day, and 40 hours a week, and shall have at least one day's rest each week.

3.1.2. 实行经劳动保障行政部门批准实行的不定时工作制。

A non-fixed working hours system shall be implemented with the necessary approval from the relevant labor administration authorities.

3.1.3. 实行经劳动保障行政部门批准实行的综合计算工时工作制。

A cumulative working hours system shall be implemented with the necessary approval from the relevant labor administration authorities.

3.2. 延长工作时间：甲方由于生产经营需要经与工会和乙方协商后可以延长乙方工作时间，一般每日不得超过一小时；因特殊原因需要延长工作时间的，每日不得超过三小时，但每月不得超过三十六小时。甲方依法保证乙方的休息休假权利。

Over Time: Due to its operational needs, Party may extend Party B's working hours upon consultation with the Trade Union and Party B, provided that the extended working hours for a given day should generally not exceed one hour. If an extension of working hours is necessary for special reasons, the extended working hours for a given day should not exceed three hours, provided that the extended working hours for a month should not exceed 36 hours. Party A shall ensure that Party B will receive their rest and leave entitlements according to the law.

4. 劳动报酬及支付方式与时间

Article 4 Work Remuneration, Payment Method and Date of Payment.

4.1. 乙方的劳动报酬包括每月发放的固定工资和以及相关的津贴补贴、每季度考核发放的绩效工资等部分组成，按照甲方薪酬管理规定执行。合同签订后甲方发给《职工薪酬告知书》，具体明确薪酬类别和标准。《职工薪酬告知书》作为本合同的附件，与本合同具有同等法律效力。

The remuneration for Party B includes fixed monthly salary, allowance, quarterly performance-based wage and the like, and the remuneration is to be paid in accordance with Party A's regulations on remuneration. After execution hereof, Party A is to send Party B a Notification of Employee's Remuneration, which specifies the type and



standard of the remuneration; such Notification constitutes an annex to this Agreement and have the same legal binding force as this Agreement.

4.2. 在履行本合同期间的日常操作中，甲方依照《职工薪酬告知书》中约定的薪酬标准作以下扣除处理的，本合同不作变更处理。

If, in the course of the performance of this Agreement, Party A deducts any payment of the remuneration in accordance with the Notification of Employee's Remuneration, this Agreement may not be deemed as being altered.

4.2.1. 由公司代扣代缴的个人所得税。

Individual income taxes withheld and paid by Party A on behalf;

4.2.2. 由职工个人承担的社会保险费、住房公积金、企业年金的扣款。

The part of social insurance premium, housing accumulation funds, enterprise annuity to be borne by Party B;

4.2.3. 因职工违反公司规章制度所发生违约金、赔偿等扣款。

Penalty, compensation and the like arising from Party B's breach of Party A's regulations or rules;

4.2.4. 因职工发生事假等非带薪假期所作的扣款。

Deduction of remuneration made by Party A owing to private affair leave and leaves taken by Party B other than leaves with payment;

4.2.5. 因法院对职工涉案判决所指定公司执行的扣款。

Deduction of remuneration made by Party A under the order of court on the basis of the judgement of case concerning Party B;

4.2.6. 其它符合法律及公司制度而发生的扣款。

Deduction of remuneration in compliance with laws or Party A's regulation system.

4.3. 在本合同期间，甲方因调增职工薪酬标准的，本合同不作变更处理。

If, during the validity term of this Agreement, Party A increases the remuneration for employees, this Agreement may not be deemed as being altered.

4.4. 甲方每月5日以货币形式通过银行转账到乙方个人账户的办法支付乙方工资，包括岗位工资、工龄工资及按月发放的相关补贴。乙方同意属于乙方可得的绩效工资、补贴津贴等按甲方薪酬管理规定的日期和形式发放，届时甲方以电

子邮件等形式通知乙方。

Party A shall, on the fifth day of each and every month, pay Party B remuneration by transferring the currency to Party B's account through bank, including post-based wage, working age-based wage and relevant allowance to be paid on a monthly basis. Party B agrees that all the performance-based wage, allowance and the like may be paid on the date and by the means provided by Party A with respect to remuneration, and Party A is to notify Party B by means of email of the payment thereafter.

4.5. 若乙方提供了正常劳动，甲方支付给乙方的工资报酬不得低于本市政府规定的最低工资标准。

The remuneration paid by Party A to Party B may not be less than the minimum level provided by the local municipal government, provided that Party B provides normal work for Party A.

4.6. 甲方每月向乙方发放上月工资清单。该清单属于保密范围，应妥善保管，不得泄露给本人家庭成员以外的任何第三人、员工之间不得相互打探，如有疑问可以向甲方人力资源部咨询。

Party A shall, on a monthly basis, send Party B remuneration list for the last month; such remuneration list must be treated as confidential information and kept properly, and such list may not be disclosed to any third parties other than the family members of Party B; employees may not enquire of one another about the remuneration; in the event of any objection, Party B may consult Party A's human resource department.

5. 社会保険

Article 5 Social Insurance

甲乙双方依法参加社会保险，按月缴纳社会保险费。

Party a and Party B must participate in social insurance and pay social insurance premiums on a monthly basis in accordance with the law.



6. 劳动保护、劳动条件和职业危害防护

Article 6 Labor Protection, Working Conditions and Protections Against Occupational Hazards

甲乙双方都必须严格执行国家有关安全生产、劳动保护、职业卫生等规定。有职业危害的工种应在合同约定中告知，甲方应为乙方的生产工作提供符合规定的劳动保护设施、劳动防护用品及其他劳动保护条件。乙方应严格遵守各项安全操作规程。

The Parties must strictly implement relevant national occupational safety, labor protection and occupational sanitation procedures and standards. Any job exposed to occupational hazards shall be specified in the contract, and Party A shall provide Party B with work safety and hygiene facilities, labor protection equipment and other necessary conditions for Party B's work activities. Party B must strictly comply with the work disciplines, operating procedures and safety rules set by Party A.

7. 劳动纪律

Article 7 Discipline

乙方应严格遵守甲方制定的各项规章制度和劳动纪律（详请参照《员工手册》执行）

Party B shall strictly obey Party A's regulations and discipline. Please refer to Party A's employee manual.

8. 保密义务

Article 8 Confidentiality

8.1. 乙方应遵守甲方《保密条例》，不得泄露甲方秘密，不得在合同期内再受聘其他任何单位从事与甲方相同或类似或有竞争冲突的业务。不得引诱甲方的其他在职职工离职。

Party B shall, after signing of this Agreement, observe Party A's Confidentiality Rules, and may not disclose any of Party A's confidential information; during the validity term hereof, Party B may not engage in any business similar with or in competition with Party A's business for any other employer, and Party B may not induce other employees working for Party A to resign from Party A.

8.2. 乙方在合同期内，属其岗位职务行为或主要利用甲方的物质技术条件所产生的所有专利、版权和其他知识产权归甲方所有，乙方无权进行商业性开发。 Any and all patents, copyrights and other intellectual property rights produced by Party B as his or her work duty or mainly by utilizing Party A's material during the validity term of this Agreement shall be Party A's property, and Party B is not entitled to any commercial rights pertaining thereto.

8.3. 甲乙双方另订《保密协议》，具体确定双方的权利义务。乙方在本合同存续期间和终止解除后承担甲方《保密协议》中规定的保密义务。

Party A and Party B are to enter into Non-disclosure Agreement separately, so as to stipulate the obligations and rights of the two parties. During the validity term of this Agreement and after the termination hereof, the confidentiality obligation stipulated in the Confidentiality Agreement has binding force upon Party B.

8.4. 乙方如在本合同存续期间，违反《保密协议》约定的，视作违纪行为，按《职工违规处理办法》有关规定处理。

If, during the validity term of this Agreement, Party B breaches the Confidentiality Agreement, Party B shall be deemed as having breached Party A's disciplines and is to be treated in accordance with the Rules for Treatment of Employees in Breach of Regulations.

8.5. 乙方因违约给甲方造成经济或名誉损失的，应承担侵权赔偿责任，甲方有权利向乙方追偿经济损失。

If Party B breaches this Agreement and thereby causes any economic loss or reputation loss, Party B shall bear the liability therefor and Party A may have the right of recourse against Party B for any economic loss.



9. 劳动合同变更、解除、终止

Article 9 Modification, Cancellation and Termination the Employment Contract

9.1. 经甲乙双方协商一致，可以变更劳动合同相关内容。变更劳动合同，应当采用书面形式。变更后的劳动合同文本由甲乙双方各执一份。

The Parties may modify relevant terms of the Employment Contract where they have agreed to do so through mutual consultation and agreement.

9.2. 经甲乙双方协商一致，可以解除劳动合同。

The Parties may terminate the Employment Contract where they have agreed to do so through mutual consultation and agreement.

9.3. 乙方提前三十日以书面形式通知甲方，可以解除劳动合同。乙方在试用期内提前三日通知甲方，可以解除劳动合同。

Party B may terminate the Employment Contract with 30 days' prior written notice to Party A. Party B may terminate the Employment Contract during the probationary period with 3 days' written notice to Party A.

10. 其他约定

Article 10 Miscellaneous

10.1. 本合同自甲方盖章、乙方签署之日起生效。

This contract shall come into effect since both sides sign their names.

10.2. 本合同以中文版本为准，合同一式二份，甲、乙双方各执一份。

In case of divergence, the Chinese texts shall be regarded as authentic. Two originals, one for Party A, the other one for Party B.

甲方（Party A）：

签署日期（Date）：

乙方（Party B）：

签署日期（Date）：